

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER R5-2018-0018

AMENDING WASTE DISCHARGE REQUIREMENTS
ORDER R5-2016-0062 (NPDES PERMIT NO. CA0078999)
AND RESCINDING TIME SCHEDULE ORDER R5-2016-0075

CITY OF COLUSA
WASTEWATER TREATMENT PLANT
COLUSA COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter "Central Valley Water Board") finds that:

1. The City of Colusa Wastewater Treatment Plant (Facility) is a Publicly-Owned Treatment Works, owned and operated by the City of Colusa (Discharger). The Facility provides sewerage service for the City of Colusa, serves a population of approximately 6,000, and has no industrial users. The Facility has a design average dry weather flow capacity of 0.7 million gallons per day and is an activated sludge tertiary treatment plant. The treatment system consists of an influent pump station, plant headworks with mechanical screens and flow metering, a nitrifying activated sludge system (an aeration basin, air blowers, secondary clarifier, and return sludge pump station), tertiary filtration facilities (chemical addition, flocculation, and cloth media filtration), ultraviolet (UV) light disinfection, and an effluent re-aeration basin and pump station. Disinfected tertiary treated wastewater is discharged to Powell Slough. Waste sludge is digested in two lined solids storage basins, dewatered, and solar dried every two years. Dried biosolids are hauled to either the Recology landfill in Marysville or the Colusa County Landfill near Stonyford.
2. On 18 August 2016, the Central Valley Water Board adopted Waste Discharge Requirements (WDRs) Order R5-2016-0062 that went into effect on 1 November 2016. This Order prescribes waste discharge requirements for the discharge, including final effluent limitations for copper, in accordance with the Clean Water Act National Pollutant Discharge Elimination System (NPDES) program. The Discharger was unable to immediately comply with these effluent limitations.
3. On 18 August 2016 the Central Valley Water Board adopted Time Schedule Order (TSO) R5-2016-0075, providing interim effluent limitations for copper. The TSO required the Discharger to complete a streamlined copper water-effect ratio (WER) study by 27 October 2017. If the discharge did not meet the revised final effluent limitations after incorporation of the WER, the Discharger would pursue relocating its discharge to land with the intent of ceasing discharge to surface water by 30 June 2020.
4. The Discharger submitted a *Copper Water-Effect Ratio Study Work Plan* on 28 October 2016 and *City of Colusa Copper Water-Effect Ratio Study* (Study) on 20 October 2017. The Study is in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper applies to the discharge.
5. Central Valley Water Board staff conducted a reasonable potential analysis for copper

based on the adjusted criteria using the site-specific total recoverable copper WER of 9.11. The reasonable potential analysis demonstrated that reasonable potential no longer exists for copper to cause or contribute to exceedance of the copper water quality objectives.

6. The Study is new information that was not available at the time of permit issuance and would have justified the application of different NPDES permit conditions at the time of issuance. Therefore, Order R5-2016-0062 may be modified for cause pursuant to 40 C.F.R. § 122.62(a)(2).
7. This Order amends Order R5-2016-0062 to remove the final effluent limitations and monthly compliance effluent monitoring requirements for copper.
8. For the reasons detailed above, the Discharger is now in compliance with the TSO, the TSO is no longer necessary; therefore, the TSO is rescinded by this Order.
9. Issuance of this Order is exempt from the provisions of the California Environmental Quality Act (Pub. Resources Code, § 21000 et seq.) pursuant to Water Code section 13389, since the adoption or modification of a NPDES permit for an existing source is statutorily exempt, and this Order only serves to modify a NPDES permit (*Pacific Water Conditioning Ass'n, Inc. v. City Council of City of Riverside* (1977) 73 Cal.App.3d 546, 555-556.).
10. The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to amend WDRs Order R5-2016-0062 and rescind TSO R5-2016-0075 for this discharge and has provided them with an opportunity to submit their written views and recommendations.

IT IS HEREBY ORDERED THAT:

1. Time Schedule Order R5-2016-0075 is rescinded upon the effective date of this Order except for enforcement purposes
2. Waste Discharge Requirements Order R5-2016-0062 is amended in order to remove the effluent limitations and monitoring requirements for copper.

Effective immediately upon adoption, Order R5-2016-0062 is amended as shown in Items a through p below.

- a. Change the order number throughout to R5-2016-0062-01.
- b. **TITLE.** Update information found in the title of the Order to reflect changes made in this amending Order as shown in underline/strikeout format below:

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

**ORDER R5-2016-0062-01
AS AMENDED BY ORDER R5-2018-0018
NPDES NO. CA0078999**

**WASTE DISCHARGE REQUIREMENTS FOR THE
CITY OF COLUSA
WASTEWATER TREATMENT PLANT
COLUSA COUNTY**

- c. **Cover Page.** Modify the paragraph above the signatory line on the Cover Page, as shown in underline format below:

I, PAMELA C. CREEDON, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **18 August 2016 and amended by order R5-2018-0018 on 6 April 2018.**

- d. **Effluent Limitations and Discharge Specifications.** Modify Table 4, in part, in section IV.A.1.a of the Limitations and Discharge Requirements, as shown in strikeout format below:

Table 4. Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Copper	µg/L	5	—	9.3	—	—

- e. **Special Provisions.** Modify section VI.C.1.e of the Limitations and Discharge Requirements, as shown in underline/strikeout format below:

- e. **Water-Effects Ratios (WER) and Metal Translators.** With the exception of copper, a default WER of 1.0 has been used in this Order for calculating criteria for applicable inorganic constituents. The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study* submitted 20 October 2017), in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper and 9.57 for dissolved copper applies to the discharge. Based on this new information, the Central Valley Water Board adopted an amendment to WDRs Order R5-2016-0062 on 6 April 2018 and effluent limitations and monthly compliance monitoring for copper were removed. In addition, default dissolved-to-total metal translators have been used to convert water quality objectives from dissolved to total recoverable when developing effluent limitations for copper. ~~If the Discharger performs studies to determine site-specific WERs and/or site-specific dissolved-to-total metal~~

~~translators, this Order may be reopened to modify the effluent limitations for the applicable inorganic constituents.~~

- f. **Effluent Monitoring Requirements.** Modify Table E-3, in part, in section IV.A.1 of Attachment E - Monitoring and Reporting Program, as shown in strikeout format below:

Table E-3 Effluent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Copper, Total Recoverable	µg/L	Grab	1/Month	4 -

- g. **Applicable Beneficial Uses and Water Quality Criteria and Objectives.** Modify Table F-6 of Attachment F – Fact Sheet, as shown in part in underline/strikeout format below:

Table F-6. Summary of CTR Criteria for Hardness-dependent Metals

CTR Metals	Ambient Hardness (mg/L) ²	CTR Criteria (µg/L, total recoverable) ¹	
		Acute	chronic
Copper	65 ³	<u>9.385</u>	<u>6.559</u>

¹ Metal criteria rounded to two significant figures in accordance with the CTR (40 C.F.R. §131.38(b)(2)).

² The ambient hardness values in this table represent actual observed receiving water hardness measurements from the dataset shown in Figure F-1.

³ Collected on 7 October 2014.

- h. **Determining the Need for WQBEL's. Constituents with No Reasonable Potential.** Add section IV.C.3.a.iii to Attachment F – Fact Sheet, as shown in underline format below: The subsequent sections are also renumbered accordingly:

iii. Copper

- (a) **WQO.** The CTR includes hardness-dependent criteria for the protection of freshwater aquatic life for copper. These criteria for copper are presented in dissolved concentrations. USEPA recommends conversion factors to translate dissolved concentrations to total concentrations.

The Discharger conducted a site-specific WER for copper (City of Colusa Copper Water-Effect Ratio Study, dated October 2017) in accordance with

applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper and 9.57 for dissolved copper apply to the discharge. The site-specific WER of 9.11 is used in place of the default WER.

- (b) **RPA Results.** Section IV.C.2.e of this Fact Sheet includes procedures for conducting the RPA for hardness-dependent CTR metals, such as copper. The CTR includes hardness-dependent criteria for copper for the receiving water. The upstream receiving water hardness and reasonable worst-case downstream hardness, plus the site-specific WER of 9.11, were used to calculate the criteria. The acute criterion and chronic criterion were calculated to be 85 µg/L and 59 µg/L, respectively. The maximum background concentration was 671 µg/L (based on the dataset from January 2012 to November 2015) and the MEC is 8 µg/L from 44 effluent samples (based on the dataset from January 2012 to November 2015) and 2 additional effluent samples (based on the dataset from June and July 2017). Therefore, copper in the discharge does not have reasonable potential to cause or contribute to an in-stream excursion above the water quality criteria. Removal of copper effluent limitations is in accordance with federal and anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

- i. **Determining the Need for WQBEL's. Constituents with Reasonable Potential.** Remove section IV.C.3.b.ii from Attachment F – Fact Sheet, as shown in strikeout format below: The subsequent sections are also renumbered accordingly:

iv. ~~Copper~~

- (a) ~~**WQO.** The CTR includes hardness-dependent criteria for the protection of freshwater aquatic life for copper. These criteria for copper are presented in dissolved concentrations. USEPA recommends conversion factors to translate dissolved concentrations to total concentrations. Default USEPA translators were used for the receiving water and effluent.~~
- (b) ~~**RPA Results.** Section IV.C.2 of this Fact Sheet includes procedures for conducting the RPA for hardness-dependent CTR metals, such as copper. The CTR includes hardness-dependent criteria for copper for the receiving water. The upstream receiving water was not monitored for copper. The RPA was conducted using the upstream receiving water hardness to calculate the criteria for comparison to the maximum ambient background concentration, and likewise using the effluent hardness as the reasonable worst-case downstream hardness to compare the maximum effluent concentration. The table below shows the specific criteria used for the RPA.~~

	CTR Chronic-Criterion (Total Recoverable)	Maximum-Concentration (Total-Recoverable)	Reasonable Potential? (Y/N)
Receiving-Water	6.5 µg/L ¹	5.9 µg/L	No ³
Effluent	6.5 µg/L ²	9.3 µg/L	Yes ⁴

¹ Effluent dominated stream. Based on lowest observed effluent hardness of 65 mg/L (as CaCO₃)

² Based on reasonable worst case downstream hardness of 65 mg/L (as CaCO₃)

³ Per Section 1.3, step 4 of the SIP.

⁴ Per Section 1.3, step 6 of the SIP.

Based on the available data, copper in the discharge has a reasonable potential to cause or contribute to an in-stream excursion above the CTR criteria for the protection of freshwater aquatic life.

(c) ~~WQBEL's.~~ Due to no assimilative capacity, dilution credits are not allowed for development of the WQBEL's for copper. This Order contains a final average monthly effluent limitation (AMEL) and maximum daily effluent limitation (MDEL) for copper of 5 µg/L and 9.3 µg/L, respectively, based on the CTR criterion for the protection of freshwater aquatic life.

(d) ~~Plant Performance and Attainability.~~ The maximum copper detection of 8 µg/L occurred twice in 44 monthly sampling events over a 3-year period. A total of 21 sample results exceeded the AMEL of 5 µg/L. The sample results for the effluent indicate that the Discharger will be in immediate non-compliance upon issuance of the permit. Section 2.1 of the SIP allows for compliance schedules within the permit for existing discharges where it is demonstrated that it is infeasible for a Discharger to achieve immediate compliance with a CTR criterion. The Discharger submitted an Infeasibility Study on 11 July 2016 demonstrating that the Facility cannot immediately comply with the final copper effluent limitations. As part of the Infeasibility Study, the Discharger requested a compliance schedule that would be completed by February 2017. If granted, the time schedule order would provide a compliance schedule from the date of adoption of this Order through the proposed compliance schedule date of February 2017.

j. **WQBEL Calculations.** Modify section IV.C.4.a of Attachment F – Fact Sheet, as shown in strikeout format below:

- a. This Order includes WQBEL's for ammonia, ~~copper~~, BOD₅, electrical conductivity, pH, settleable solids, total coliform organisms, and TSS. The general methodology for calculating WQBEL's based on the different criteria/objectives is described in subsections IV.C.4.b through e, below. See Attachment H for the WQBEL calculations.

- k. **WQBEL Calculations.** Modify Table F-10, in part, in section IV.C.4.e of Attachment F – Fact Sheet, as shown in ~~strikeout~~ format below:

Table F-10. Summary of Water Quality-Based Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Copper	ug/L	5	—	9.3	—	—

- l. **Final Effluent Limitation Considerations.** Modify section IV.D.3, in part, of Attachment F – Fact Sheet, as shown in underline/~~strikeout~~ format below: Section IV.D.3.b is also renumbered accordingly:

3. Satisfaction of Anti-Backsliding Requirements

The CWA specifies that a revised permit may not include effluent limitations that are less stringent than the previous permit unless a less stringent limitation is justified based on exceptions to the anti-backsliding provisions contained in CWA sections 402(o) or 303(d)(4), or, where applicable, 40 C.F.R. section 122.44(l).

The effluent limitations in this Order are at least as stringent as the effluent limitations in the previous Order, with the exception of effluent limitations for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes. The effluent limitations for these pollutants are less stringent than those in Order R5-2008-0184. This relaxation of effluent limitations is consistent with the anti-backsliding requirements of the CWA and federal regulations.

- a. **CWA section 402(o)(1) and 303(d)(4).** CWA section 402(o)(1) prohibits the establishment of less stringent water quality-based effluent limits *"except in compliance with Section 303(d)(4)."* CWA section 303(d)(4) has two parts: paragraph (A) which applies to nonattainment waters and paragraph (B) which applies to attainment waters.
- i. For waters where standards are not attained, CWA section 304(d)(4)(A) specifies that any effluent limit based on a TMDL or other WLA may be revised only if the cumulative effect of all such revised effluent limits based on such TMDL's or WLAs will assure the attainment of such water quality standards.

- ii. For attainment waters, CWA section 303(d)(4)(B) specifies that a limitation based on a water quality standard may be relaxed where the action is consistent with the antidegradation policy.

The unnamed tributary is considered an attainment water for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes because the receiving water is not listed as impaired on the 303(d) list for these constituents.¹ As discussed in section IV.D.4, below, removal of the effluent limits complies with federal and state antidegradation requirements. Thus, removal of the effluent limitations for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes from Order R5-2008-0184 meets the exception in CWA section 303(d)(4)(B).

- b. **CWA section 402(o)(2).** CWA section 402(o)(2) provides several exceptions to the anti-backsliding regulations. CWA 402(o)(2)(B)(i) allows a renewed, reissued, or modified permit to contain a less stringent effluent limitation for a pollutant if information is available which was not available at the time of permit issuance (other than revised regulations, guidance, or test methods) and which would have justified the application of a less stringent effluent limitation at the time of permit issuance.

As described further in section IV.C.3.b of this Fact Sheet, updated information that was not available at the time Order R5-2008-0184 was issued indicates that aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes do not exhibit reasonable potential to cause or contribute to an exceedance of water quality objectives in the receiving water. Additionally, updated information that was not available at the time Order R5-2008-0184 was issued indicates that less stringent effluent limitations for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes based on available dilution credits satisfy requirements in CWA section 402(o)(2). The updated information that supports the relaxation of effluent limitations for these constituents includes the following:

¹ "The exceptions in Section 303(d)(4) address both waters in attainment with water quality standards and those not in attainment, i.e. waters on the section 303(d) impaired waters list." State Water Board Order WQ 2008-0006, Berry Petroleum Company, Poso Creek/McVan Facility.

- v. **Copper.** The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study*, dated October 2017) in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper and 9.57 for dissolved copper apply to the discharge. Application of the site-specific WER of 9.11 to the effluent discharge results in the Facility no longer exhibiting reasonable potential to cause or contribute to exceedance of the water quality objective for copper.

- m. **Final Effluent Limitation Considerations.** Modify Table F-12, in part, in section IV.D.5 of Attachment F – Fact Sheet, as shown in strikeout format below:

Table F-12. Summary of Final Effluent Limitations

Copper	µg/L	5	–	9.3	–	–	CTR
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CTR – Based on water quality criteria contained in the California Toxics Rule and applied as specified in the SIP.

- n. **FINDINGS. Rational for Provisions.** Modify section VI.B.1.c of Attachment F – Fact Sheet, as shown in underline/strikeout format below:
- c. **Water Effects Ratio (WER) and Metal Translators.** A default WER of 1.0 has been used in this Order for calculating criteria for applicable inorganic constituents. The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study*, dated October 2017) in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper apply to the discharge. The site-specific WER of 9.11 is used in place of the default WER. Based on this new information, the Central Valley Water Board adopted an amendment to Order R5-2016-0062 on 6 April 2018, and effluent limitations and monthly compliance monitoring for copper were removed. In addition, default dissolved to total metal translators have been used to convert water quality objectives from dissolved to total recoverable when developing effluent limitations for copper. If the Discharger performs studies to determine site-specific WERs and/or site-specific dissolved to total metal translators, this Order may be reopened to modify the effluent limitations for the applicable inorganic constituents.
- o. **Rational for Monitoring and Reporting Requirements.** Modify sections VII.B.2 through VII.B.4 of Attachment F – Fact Sheet, as shown in part in underline/strikeout format below:
- Effluent monitoring frequencies and sample types for flow (continuous), ammonia (1/week), BOD₅ (1/week), ~~copper, total recoverable (1/month),~~ electrical conductivity (1/week), hardness (1/quarter), total mercury (1/quarter), pH (3/week), standard minerals (1/year), settleable solids (1/month), temperature (1/week), total dissolved solids (1/week), and total suspended solids (1/week) have been retained from Order R5-2008-0184 to determine compliance with effluent limitations for these parameters.

4. Monitoring data collected from 1 January 2012 to 18 July 2017 did not demonstrate reasonable potential to exceed water quality objectives/criteria. Thus, specific monitoring requirements for copper have been removed from this Order.

- p. **Attachment G.** Modify the Table in Attachment G - Summary of Reasonable Potential Analysis, in part, as shown in underline/strikeout format below:

ATTACHMENT G – SUMMARY OF REASONABLE POTENTIAL ANALYSIS

Constituent	Units	MEC	B	C	CMC	CCC	Water & Org	Org. Only	Basin Plan	MCL	Reasonable Potential
Copper, Total Recoverable ¹	µg/L	8	<u>58</u>	<u>6.58.4</u>	<u>9.385</u>	<u>6.559</u>	1,300	--	--	1,000	<u>Yes</u> No

Footnotes:

(1) See discussion in Fact Sheet section IV.C.3.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date of this Order, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality or will be provided upon request.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **6 April 2018**.


PAMELA C. CREEDON, Executive Officer

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

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<http://www.waterboards.ca.gov/centralvalley>

**ORDER R5-2016-0062-01
AS AMENDED BY ORDER R5-2018-0018
NPDES NO. CA0078999**

**WASTE DISCHARGE REQUIREMENTS FOR THE
CITY OF COLUSA
WASTEWATER TREATMENT PLANT
COLUSA COUNTY**

The following Discharger is subject to waste discharge requirements (WDR's) set forth in this Order:

Table 1. Discharger Information

Discharger	City of Colusa
Name of Facility	Wastewater Treatment Plant
Facility Address	2820 Will S. Green Rd.
	Colusa, CA 95932
	Colusa County

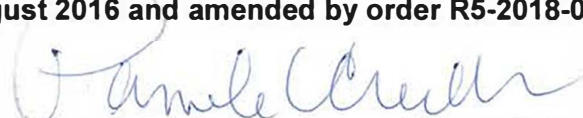
Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude (North)	Discharge Point Longitude (West)	Receiving Water
001	Wastewater	39° 10' 50"	122° 01' 48"	Unnamed tributary to Powell Slough

Table 3. Administrative Information

This Order was adopted on:	18 August 2016
This Order shall become effective on:	1 November 2016
This Order shall expire on:	30 September 2021
The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDR's in accordance with title 23, California Code of Regulations, and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than:	31 March 2021
The U.S. Environmental Protection Agency (U.S. EPA) and the California Regional Water Quality Control Board, Central Valley Region have classified this discharge as follows:	Minor

I, PAMELA C. CREEDON, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on **18 August 2016 and amended by order R5-2018-0018 on 6 April 2018.**



PAMELA C. CREEDON, Executive Officer

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I. FACILITY INFORMATION

Information describing the Wastewater Treatment Facility (Facility) is summarized in Table 1 and in sections I and II of the Fact Sheet (Attachment F). Section I of the Fact Sheet also includes information regarding the Facility's permit application.

II. FINDINGS

The California Regional Water Quality Control Board, Central Valley Region (hereinafter Central Valley Water Board), finds:

- A. Legal Authorities.** This Order serves as WDR's pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit for point source discharges from this facility to surface waters.
- B. Background and Rationale for Requirements.** The Central Valley Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and other available information. The Fact Sheet (Attachment F), which contains background information and rationale for the requirements in this Order, is hereby incorporated into and constitutes Findings for this Order. Attachments A through E and G through H are also incorporated into this Order.
- C. Provisions and Requirements Implementing State Law.** The provisions/requirements in subsections IV.B, IV.C, and V.B are included to implement state law only. These provisions/requirements are not required or authorized under the federal CWA; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.
- D. Monitoring and Reporting.** 40 C.F.R. section 122.48 requires that all NPDES permits specify requirements for recording and reporting monitoring results. Water Code sections 13267 and 13383 authorize the Central Valley Water Board to require technical and monitoring reports. The Monitoring and Reporting Program establishes monitoring and reporting requirements to implement federal and State requirements. The Monitoring and Reporting Program is provided in Attachment E.

The technical and monitoring reports in this Order are required in accordance with Water Code section 13267, which states the following in subsection (b)(1), *"In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports."*

The Discharger owns and operates the Facility subject to this Order. The monitoring reports required by this Order are necessary to determine compliance with this Order. The need for the monitoring reports is discussed in the Fact Sheet.

- E. Notification of Interested Parties.** The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDR's for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet.
- F. Consideration of Public Comment.** The Central Valley Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the Public Hearing are provided in the Fact Sheet.

THEREFORE, IT IS HEREBY ORDERED that this Order supersedes Order R5-2008-0184 except for enforcement purposes, and, in order to meet the provisions contained in division 7 of the Water Code (commencing with section 13000) and regulations adopted thereunder, and the provisions of the CWA and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements in this Order. This action in no way prevents the Central Valley Water Board from taking enforcement action for past violations of the previous Order.

III. DISCHARGE PROHIBITIONS

- A.** Discharge of wastewater from the Facility, as the Facility is specifically described in the Fact Sheet in section II.B, in a manner different from that described in this Order is prohibited.
- B.** The by-pass or overflow of wastes to surface waters is prohibited, except as allowed by Federal Standard Provisions I.G. and I.H. (Attachment D).
- C.** Neither the discharge nor its treatment shall create a nuisance as defined in section 13050 of the Water Code.
- D.** The Discharger shall not allow pollutant-free wastewater to be discharged into the treatment or disposal system in amounts that significantly diminish the system's capability to comply with this Order. Pollutant-free wastewater means rainfall, groundwater, cooling waters, and condensates that are essentially free of pollutants.

IV. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations – Discharge Point 001

1. Final Effluent Limitations – Discharge Point 001

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point 001, with compliance measured at Monitoring Location EFF-001 as described in the Monitoring and Reporting Program, Attachment E:

- a. The Discharger shall maintain compliance with the effluent limitations specified in Table 4:

Table 4. Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	20	--	--
	lbs/day	58	88	120	--	--

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Total Suspended Solids	mg/L	10	15	20	--	--
	lbs/day	58	88	120	--	--
pH	standard units	--	--	--	6.5	8.5
Settleable Solids	mL/L	0.1		0.2	--	--
Ammonia 1 April – 15 November	mg/L	0.6	1.0	--	--	--
	lbs/day	3.5	5.8	--	--	--
Ammonia 16 November – 31 March	mg/L	1.2	1.8	--	--	--
	lbs/day	7.0	10	--	--	--

- b. **Percent Removal:** The average monthly percent removal of 5-day biochemical oxygen demand (BOD₅) and total suspended solids (TSS) shall not be less than 85 percent.
- c. **Acute Whole Effluent Toxicity.** Survival of aquatic organisms in 96-hour bioassays of undiluted waste shall be no less than:
 - i. 70%, minimum for any one bioassay; and
 - ii. 90%, median for any three consecutive bioassays.
- d. **Total Coliform Organisms.** Effluent total coliform organisms shall not exceed:
 - i. 2.2 most probable number (MPN) per 100 mL, as a 7-day median.
 - ii. 23 MPN/100 mL, more than once in any 30-day period; and
 - iii. 240 MPN/100 mL, at any time.
- e. **Average Dry Weather Flow.** The average dry weather discharge flow shall not exceed 0.7 MGD.
- f. **Mercury, Total Recoverable.** For a calendar year, the total annual mass discharge of total mercury shall not exceed 0.098 pounds/year.
- g. **Electrical Conductivity.** For a calendar year, the annual average effluent electrical conductivity shall not exceed 1500 µmhos/cm.

2. Interim Effluent Limitations – NOT APPLICABLE

B. Land Discharge Specifications – NOT APPLICABLE

C. Recycling Specifications – NOT APPLICABLE

V. RECEIVING WATER LIMITATIONS

A. Surface Water Limitations

The discharge shall not cause the following in the unnamed tributary to Powell Slough:

- 1. **Bacteria.** The fecal coliform concentration, based on a minimum of not less than five samples for any 30-day period, to exceed a geometric mean of 200 MPN/100 mL, nor

more than 10 percent of the total number of fecal coliform samples taken during any 30-day period to exceed 400 MPN/100 mL.

2. **Biostimulatory Substances.** Water to contain biostimulatory substances which promote aquatic growths in concentrations that cause nuisance or adversely affect beneficial uses.
3. **Chemical Constituents.** Chemical constituents to be present in concentrations that adversely affect beneficial uses.
4. **Color.** Discoloration that causes nuisance or adversely affects beneficial uses.
5. **Dissolved Oxygen:**
 - a. The monthly median of the mean daily dissolved oxygen concentration to fall below 85 percent of saturation in the main water mass;
 - b. The 95 percentile dissolved oxygen concentration to fall below 75 percent of saturation; nor
 - c. The dissolved oxygen concentration to be reduced below 7.0 mg/L at any time.
6. **Floating Material.** Floating material to be present in amounts that cause nuisance or adversely affect beneficial uses.
7. **Oil and Grease.** Oils, greases, waxes, or other materials to be present in concentrations that cause nuisance, result in a visible film or coating on the surface of the water or on objects in the water, or otherwise adversely affect beneficial uses.
8. **pH.** The pH to be depressed below 6.5 nor raised above 8.5
9. **Pesticides:**
 - a. Pesticides to be present, individually or in combination, in concentrations that adversely affect beneficial uses;
 - b. Pesticides to be present in bottom sediments or aquatic life in concentrations that adversely affect beneficial uses;
 - c. Total identifiable persistent chlorinated hydrocarbon pesticides to be present in the water column at concentrations detectable within the accuracy of analytical methods approved by USEPA or the Executive Officer;
 - d. Pesticide concentrations to exceed those allowable by applicable antidegradation policies (see State Water Board Resolution No. 68-16 and 40 CFR 131.12.); nor
 - e. Pesticide concentrations to exceed the lowest levels technically and economically achievable;
10. **Radioactivity:**
 - a. Radionuclides to be present in concentrations that are harmful to human, plant, animal, or aquatic life nor that result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life.
11. **Suspended Sediments.** The suspended sediment load and suspended sediment discharge rate of surface waters to be altered in such a manner as to cause nuisance or adversely affect beneficial uses.

12. **Settleable Substances.** Substances to be present in concentrations that result in the deposition of material that causes nuisance or adversely affects beneficial uses.
13. **Suspended Material.** Suspended material to be present in concentrations that cause nuisance or adversely affect beneficial uses.
14. **Taste and Odors.** Taste- or odor-producing substances to be present in concentrations that impart undesirable tastes or odors to fish flesh or other edible products of aquatic origin, or that cause nuisance, or otherwise adversely affect beneficial uses.
15. **Temperature.** The natural temperature to be increased by more than 5°F. Compliance to be determined based on the difference in temperature at Monitoring Locations RSW-001D and RSW-001U.
16. **Toxicity.** Toxic substances to be present, individually or in combination, in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.
17. **Turbidity.**
 - a. Shall not exceed 2 Nephelometric Turbidity Units (NTU) where natural turbidity is less than 1 NTU;
 - b. Shall not increase more than 1 NTU where natural turbidity is between 1 and 5 NTUs;
 - c. Shall not increase more than 20 percent where natural turbidity is between 5 and 50 NTUs;
 - d. Shall not increase more than 10 NTU where natural turbidity is between 50 and 100 NTUs; nor
 - e. Shall not increase more than 10 percent where natural turbidity is greater than 100 NTUs.

B. Groundwater Limitations.

1. Release of waste constituents from any portion of the Facility shall not cause the underlying groundwater to contain waste constituents in concentrations greater than background water quality or water quality objectives, whichever is greater. The discharge shall not cause the groundwater to exceed water quality objectives, unreasonably affect beneficial uses, or cause a condition of pollution or nuisance.

VI. PROVISIONS

A. Standard Provisions

1. The Discharger shall comply with all Standard Provisions included in Attachment D.
2. The Discharger shall comply with the following provisions. In the event that there is any conflict, duplication, or overlap between provisions specified by this Order, the more stringent provision shall apply:
 - a. If the Discharger's wastewater treatment plant is publicly owned or subject to regulation by California Public Utilities Commission, it shall be supervised and operated by persons possessing certificates of appropriate grade according to Title 23, CCR, division 3, chapter 26.

- b. After notice and opportunity for a hearing, this Order may be terminated or modified for cause, including, but not limited to:
 - i. violation of any term or condition contained in this Order;
 - ii. obtaining this Order by misrepresentation or by failing to disclose fully all relevant facts;
 - iii. a change in any condition that requires either a temporary or permanent reduction or elimination of the authorized discharge; and
 - iv. a material change in the character, location, or volume of discharge.

The causes for modification include:

- i. *New regulations.* New regulations have been promulgated under section 405(d) of the CWA, or the standards or regulations on which the permit was based have been changed by promulgation of amended standards or regulations or by judicial decision after the permit was issued.
- ii. *Land application plans.* When required by a permit condition to incorporate a land application plan for beneficial reuse of sewage sludge, to revise an existing land application plan, or to add a land application plan.
- iii. *Change in sludge use or disposal practice.* Under 40 CFR section 122.62(a)(1), a change in the Discharger's sludge use or disposal practice is a cause for modification of the permit. It is cause for revocation and reissuance if the Discharger requests or agrees.

The Central Valley Water Board may review and revise this Order at any time upon application of any affected person or the Central Valley Water Board's own motion.

- c. If a toxic effluent standard or prohibition (including any scheduled compliance specified in such effluent standard or prohibition) is established under section 307(a) of the CWA, or amendments thereto, for a toxic pollutant that is present in the discharge authorized herein, and such standard or prohibition is more stringent than any limitation upon such pollutant in this Order, the Central Valley Water Board will revise or modify this Order in accordance with such toxic effluent standard or prohibition.

The Discharger shall comply with effluent standards and prohibitions within the time provided in the regulations that establish those standards or prohibitions, even if this Order has not yet been modified.

- d. This Order shall be modified, or alternately revoked and reissued, to comply with any applicable effluent standard or limitation issued or approved under sections 301(b)(2)(C) and (D), 304(b)(2), and 307(a)(2) of the CWA, if the effluent standard or limitation so issued or approved:
 - i. Contains different conditions or is otherwise more stringent than any effluent limitation in the Order; or
 - ii. Controls any pollutant limited in the Order.

The Order, as modified or reissued under this paragraph, shall also contain any other requirements of the CWA then applicable.

- e. The provisions of this Order are severable. If any provision of this Order is found invalid, the remainder of this Order shall not be affected.
- f. The Discharger shall take all reasonable steps to minimize any adverse effects to waters of the State or users of those waters resulting from any discharge or sludge use or disposal in violation of this Order. Reasonable steps shall include such accelerated or additional monitoring as necessary to determine the nature and impact of the non-complying discharge or sludge use or disposal.
- g. The Discharger shall ensure compliance with any existing or future pretreatment standard promulgated by USEPA under section 307 of the CWA, or amendment thereto, for any discharge to the municipal system.
- h. A copy of this Order shall be maintained at the discharge facility and be available at all times to operating personnel. Key operating personnel shall be familiar with its content.
- i. Safeguard to electric power failure:
 - i. The Discharger shall provide safeguards to assure that, should there be reduction, loss, or failure of electric power, the discharge shall comply with the terms and conditions of this Order.
 - ii. Upon written request by the Central Valley Water Board, the Discharger shall submit a written description of safeguards. Such safeguards may include alternate power sources, standby generators, retention capacity, operating procedures, or other means. A description of the safeguards provided shall include an analysis of the frequency, duration, and impact of power failures experienced over the past 5 years on effluent quality and on the capability of the Discharger to comply with the terms and conditions of the Order. The adequacy of the safeguards is subject to the approval of the Central Valley Water Board.
 - iii. Should the treatment works not include safeguards against reduction, loss, or failure of electric power, or should the Central Valley Water Board not approve the existing safeguards, the Discharger shall, within 90 days of having been advised in writing by the Central Valley Water Board that the existing safeguards are inadequate, provide to the Central Valley Water Board and USEPA a schedule of compliance for providing safeguards such that in the event of reduction, loss, or failure of electric power, the Discharger shall comply with the terms and conditions of this Order. The schedule of compliance shall, upon approval of the Central Valley Water Board, become a condition of this Order.
- j. The Discharger, upon written request of the Central Valley Water Board, shall file with the Board a technical report on its preventive (failsafe) and contingency (cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. This report may be combined with that required under the Central Valley Water Board Standard Provision contained in section VI.A.2.i of this Order.

The technical report shall:

 - i. Identify the possible sources of spills, leaks, untreated waste by-pass, and contaminated drainage. Loading and storage areas, power outage, waste

treatment unit outage, and failure of process equipment, tanks and pipes should be considered.

- ii. Evaluate the effectiveness of present facilities and procedures and state when they became operational.
- iii. Predict the effectiveness of the proposed facilities and procedures and provide an implementation schedule containing interim and final dates when they will be constructed, implemented, or operational.

The Central Valley Water Board, after review of the technical report, may establish conditions which it deems necessary to control accidental discharges and to minimize the effects of such events. Such conditions shall be incorporated as part of this Order, upon notice to the Discharger.

- k. A publicly owned treatment works whose waste flow has been increasing, or is projected to increase, shall estimate when flows will reach hydraulic and treatment capacities of its treatment and disposal facilities. The projections shall be made in January, based on the last 3 years' average dry weather flows, peak wet weather flows and total annual flows, as appropriate. When any projection shows that capacity of any part of the facilities may be exceeded in 4 years, the Discharger shall notify the Central Valley Water Board by 31 January. A copy of the notification shall be sent to appropriate local elected officials, local permitting agencies and the press. Within 120 days of the notification, the Discharger shall submit a technical report showing how it will prevent flow volumes from exceeding capacity or how it will increase capacity to handle the larger flows. The Central Valley Water Board may extend the time for submitting the report.
- l. The Discharger shall submit technical reports as directed by the Executive Officer. All technical reports required herein that involve planning, investigation, evaluation, or design, or other work requiring interpretation and proper application of engineering or geologic sciences, shall be prepared by or under the direction of persons registered to practice in California pursuant to California Business and Professions Code, sections 6735, 7835, and 7835.1. To demonstrate compliance with Title 16, CCR, sections 415 and 3065, all technical reports must contain a statement of the qualifications of the responsible registered professional(s). As required by these laws, completed technical reports must bear the signature(s) and seal(s) of the registered professional(s) in a manner such that all work can be clearly attributed to the professional responsible for the work.
- m. The Central Valley Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13385, 13386, and 13387.
- n. For publicly owned treatment works, prior to making any change in the point of discharge, place of use, or purpose of use of treated wastewater that results in a permanent decrease of flow in any portion of a watercourse, the Discharger must file a petition with the State Water Board, Division of Water Rights, and receive approval for such a change. (Water Code section 1211).
- o. In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the Discharger, the Discharger shall notify

the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board.

To assume operation under this Order, the succeeding owner or operator must apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, the state of incorporation if a corporation, address and telephone number of the persons responsible for contact with the Central Valley Water Board and a statement. The statement shall comply with the signatory and certification requirements in the federal Standard Provisions (Attachment D, section IV.B) and state that the new owner or operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the Water Code. Transfer shall be approved or disapproved in writing by the Executive Officer.

- p. Failure to comply with provisions or requirements of this Order, or violation of other applicable laws or regulations governing discharges from this facility, may subject the Discharger to administrative or civil liabilities, criminal penalties, and/or other enforcement remedies to ensure compliance. Additionally, certain violations may subject the Discharger to civil or criminal enforcement from appropriate local, state, or federal law enforcement entities.
- q. In the event the Discharger does not comply or will be unable to comply for any reason, with any prohibition, effluent limitation, or receiving water limitation of this Order, the Discharger shall notify the Central Valley Water Board by telephone (916) 464-3291 within 24 hours of having knowledge of such noncompliance, and shall confirm this notification in writing within five days, unless the Central Valley Water Board waives confirmation. The written notification shall state the nature, time, duration, and cause of noncompliance, and shall describe the measures being taken to remedy the current noncompliance and prevent recurrence including, where applicable, a schedule of implementation. Other noncompliance requires written notification as above at the time of the normal monitoring report.

B. Monitoring and Reporting Program (MRP) Requirements

- 1. The Discharger shall comply with the MRP, and future revisions thereto, in Attachment E.

C. Special Provisions

1. Reopener Provisions

- a. Conditions that necessitate a major modification of a permit are described in 40 CFR section 122.62, including, but not limited to:
 - i. If new or amended applicable water quality standards are promulgated or approved pursuant to section 303 of the CWA, or amendments thereto, this permit may be reopened and modified in accordance with the new or amended standards.
 - ii. When new information, that was not available at the time of permit issuance, would have justified different permit conditions at the time of issuance.
- b. This Order may be reopened for modification, or revocation and reissuance, as a result of the detection of a reportable priority pollutant generated by special conditions included in this Order. These special conditions may be, but are not

limited to, fish tissue sampling, whole effluent toxicity, monitoring requirements on internal waste stream(s), and monitoring for surrogate parameters. Additional requirements may be included in this Order as a result of the special condition monitoring data.

- c. **Mercury.** If mercury is found to be causing toxicity based on acute or chronic toxicity test results, or if a TMDL program is adopted, this Order shall be reopened and the mass effluent limitation modified (higher or lower) or an effluent concentration limitation imposed. If the Central Valley Water Board determines that a mercury offset program is feasible for Dischargers subject to a NPDES permit, then this Order may be reopened to reevaluate the mercury mass loading limitation(s) and the need for a mercury offset program for the Discharger.
- d. **Whole Effluent Toxicity.** As a result of a Toxicity Reduction Evaluation (TRE), this Order may be reopened to include a numeric chronic toxicity limitation, a new acute toxicity limitation, and/or a limitation for a specific toxicant identified in the TRE. Additionally, if the State Water Board revises the SIP's toxicity control provisions that would require the establishment of numeric chronic toxicity effluent limitations, this Order may be reopened to include a numeric chronic toxicity effluent limitation based on the new provisions.
- e. **Water Effects Ratios (WER) and Metal Translators.** With the exception of copper, a default WER of 1.0 has been used in this Order for calculating criteria for applicable inorganic constituents. The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study* submitted 20 October 2017), in accordance with applicable USEPA guidance (i.e., EPA- 822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site- specific WER of 9.11 for total recoverable copper and 9.57 for dissolved copper applies to the discharge. Based on this new information, the Central Valley Water Board adopted an amendment to WDRs Order R5-2016-0062 on 6 April 2018 and effluent limitations and monthly compliance monitoring for copper were removed. In addition, default dissolved-to-total metal translators have been used to convert water quality objectives from dissolved to total recoverable when developing effluent limitations.
- f. **Ultraviolet (UV) Disinfection Operating Specifications.** The UV operating specifications in this Order are based on the UV guidelines developed by the National Water Research Institute and American Water Works Association Research Foundation titled, "Ultraviolet Disinfection Guidelines for Drinking Water and Water Reuse." If the Discharger conducts a site-specific UV engineering study that identifies site-specific UV operating specifications that will achieve the virus inactivation equivalent to Title 22 disinfected tertiary recycled water, this Order may be reopened to modify the UV operating specifications.

2. Special Studies, Technical Reports and Additional Monitoring Requirements

- a. **Toxicity Reduction Evaluation Requirements.** For compliance with the Basin Plan's narrative toxicity objective, this Order requires the Discharger to conduct chronic whole effluent toxicity (WET) testing, as specified in MRP section V. Furthermore, this Provision requires the Discharger to investigate the causes of, and identify corrective actions to reduce or eliminate effluent toxicity. If the discharge exceeds the numeric toxicity monitoring trigger during accelerated monitoring established in this Provision, the Discharger is required to initiate a Toxicity Reduction Evaluation (TRE) in accordance with an approved TRE Work

Plan, and take actions to mitigate the impact of the discharge and prevent recurrence of toxicity. A TRE is a site-specific study conducted in a stepwise process to identify the source(s) of toxicity and the effective control measures for effluent toxicity. TRE's are designed to identify the causative agents and sources of whole effluent toxicity, evaluate the effectiveness of the toxicity control options, and confirm the reduction in effluent toxicity. In July 2014 the Discharger experienced toxicity > 1 TUc when growth of *Pimphales promeias* exposed to 100% effluent was significantly reduced from that in RSW-001U control. However, based on the draft Test of Significant Toxicity (TST) chronic toxicity equaled 1 TUc. Therefore accelerated monitoring was not warranted. If the chronic toxicity had been > 1 TUc, then the Discharger would have been required to conduct accelerated monitoring. This Provision includes procedures for accelerated chronic toxicity monitoring and TRE initiation.

- i. **Accelerated Monitoring and TRE Initiation.** When the numeric toxicity monitoring trigger is exceeded during regular chronic toxicity monitoring, and the testing meets all test acceptability criteria, the Discharger shall initiate accelerated monitoring as required in the Accelerated Monitoring Specifications. If the Discharger pursues conducting accelerated monitoring, then the Discharger shall initiate a TRE to address effluent toxicity if any WET testing results exceed the numeric toxicity monitoring trigger during accelerated monitoring.
- ii. **Numeric Toxicity Monitoring Trigger.** The numeric toxicity monitoring trigger to initiate a TRE is >1 TUc (where TUc = 100/NOEC). The monitoring trigger is not an effluent limitation; it is the toxicity threshold at which the Discharger is required to begin accelerated monitoring and initiate a TRE.
- iii. **Accelerated Monitoring Specifications.** If the numeric toxicity monitoring trigger is exceeded during regular chronic toxicity testing, the Discharger shall initiate accelerated monitoring Work Plan within 14-days of notification by the laboratory of the exceedance. Accelerated monitoring shall consist of four chronic toxicity tests conducted once every two weeks using the species that exhibited toxicity. The following protocol shall be used for accelerated monitoring and TRE initiation:
 - (a) If the results of four consecutive accelerated monitoring tests do not exceed the monitoring trigger, the Discharger may cease accelerated monitoring and resume regular chronic toxicity monitoring. However, notwithstanding the accelerated monitoring results, if there is adequate evidence of a pattern of effluent toxicity, the Executive Officer may require that the Discharger initiate a TRE.
 - (b) If the source(s) of the toxicity is easily identified (e.g., temporary plant upset), the Discharger shall make necessary corrections to the facility and shall continue accelerated monitoring until four consecutive accelerated tests do not exceed the monitoring trigger. Upon confirmation that the effluent toxicity has been removed, the Discharger may cease accelerated monitoring and resume regular chronic toxicity monitoring.
 - (c) If the result of any accelerated toxicity test exceeds the monitoring trigger, the Discharger shall cease accelerated monitoring and begin to investigate the cause(s) of and identify corrective actions to reduce or eliminate

effluent toxicity. Within thirty (30) days of notification by the laboratory of any test result exceeding the monitoring trigger during accelerated monitoring, the Discharger shall submit a TRE Action Plan to the Central Valley Water Board including, at minimum:

- (1) Specific actions the Discharger will take to investigate and identify the cause(s) of toxicity, including a TRE WET monitoring schedule;
- (2) Specific actions the Discharger will take to mitigate the impact of the discharge and prevent the recurrence of toxicity; and
- (3) A schedule for these actions.

- b. **Work Plan and Schedule for a Groundwater Investigation.** To determine compliance with Groundwater Limitations V.B, the groundwater monitoring network shall include one or more background monitoring wells and a sufficient number of designated monitoring wells down gradient of every treatment, storage, and disposal unit that does or may release waste constituents to groundwater. **By 2 January 2017**, the Discharger shall submit a work plan and schedule for a groundwater investigation to collect groundwater and treatment pond samples that will be analyzed for standard minerals to delineate the source and lateral extents of impacts observed in the vicinity of RGW-003 or to cease discharging to groundwater. Within **30 days following Executive Officer approval of the Work Plan**, the discharger shall start implementing the approved plan. If the Discharger selects to continue discharging to groundwater, the investigation must start within **30 days following Executive Officer approval of the Work Plan**.
- i. **Within 1 year following commencement of the groundwater investigation** the Discharger shall complete installation of all additional groundwater monitoring wells necessary to perform a groundwater characterization study. All monitoring wells shall comply with the appropriate standards as described in California Well Standards Bulletin 74-90 (June 1991) and Water Well Standards: State of California Bulletin 74-81 (December 1981), and any more stringent standards adopted by the Discharger or County pursuant to CWC section 13801.
 - ii. **Within 3 years following commencement of the groundwater investigation** the Discharger shall complete the groundwater investigation.
- c. **Groundwater Water Quality Characterization Report.** The Discharger, after two years of monitoring, shall characterize natural background quality of monitored constituents in a technical report, to be submitted by **1 April 2020**. For each groundwater monitoring parameter/constituent identified in the Monitoring and Reporting Program (Attachment E, Section VIII.B.&C.), the report shall present a summary of monitoring data, calculation of the concentration in background monitoring wells, and a comparison of background groundwater quality to that in wells used to monitor the facility. Determination of background quality shall be made using the methods described in Title 27 California Code of Regulations Section 20415(e)(10), and shall be based on data from at least four consecutive quarterly (or more frequent) groundwater monitoring events. For each monitoring parameter/constituent, the report shall compare measured concentrations for compliance monitoring wells with the calculated background concentration.

- d. **Best Practicable Treatment or Control (BPTC) Evaluation Work Plan.** If the groundwater monitoring results show that the discharge of waste is threatening to cause or has caused groundwater to contain waste constituents in concentrations statistically greater than background water quality, the Discharger shall submit a BPTC Evaluation Work Plan by **1 October 2020**. The Discharger shall propose a work plan and schedule for providing BPTC as required by Resolution 68-16. The BPTC Evaluation Work Plan shall set forth a scope and schedule for a systematic and comprehensive technical evaluation of each component of the facilities' waste management system to determine best practicable treatment or control for each the waste constituents of concern and propose a time schedule for completing the comprehensive technical evaluation. The schedule to complete the evaluation shall be as short as practicable, and shall not exceed 1 year.
- e. **BPTC Evaluation Report.** If the Discharger is required to complete a BPTC Evaluation Work Plan, then within **18 months following completion of the comprehensive technical evaluation**, the Discharger shall submit a technical report describing the evaluation's results and critiquing each evaluated component with respect to BPTC and minimizing the discharge's impact on groundwater quality. Where deficiencies are documented, the technical report shall provide recommendations for necessary modifications (e.g., new or revised salinity source control measures, WWTP component upgrade and retrofit) to achieve BPTC and identify the source of funding and proposed schedule for modifications. The schedule shall be as short as practicable but in no case shall completion of the necessary modifications exceed four years past the Executive Officer's determination of the adequacy of the comprehensive technical evaluation, unless the schedule is reviewed and specifically approved by the Regional Water Board.
- f. **Submit Groundwater Annual Report.** The Annual Report shall include specific methods the Discharger proposes as a means to measure processes and assure continuous optimal performance of BPTC measures. The Discharger shall comply with the following compliance schedule in implementing the work required by this Provision:

<u>Task</u>	<u>Task Description</u>	<u>Compliance Date</u>
1	Submit technical report: Work Plan and Schedule for a groundwater investigation or to cease discharging to groundwater.	2 January 2017
2	Implement approved plan: Commence groundwater investigation or cease discharging to groundwater and submit notification to Central Valley Water Board.	30 days following Executive Officer approval of Task 1.

<u>Task</u>	<u>Task Description</u>	<u>Compliance Date</u>
3	Complete groundwater monitoring well installation and submit proof of installation.	1 February 2018 or 1 year following Task 2, whichever is sooner.
4	Complete groundwater investigation.	1 February 2020 or 2 years following Task 3, whichever is sooner.
5	Submit technical report: Groundwater Water Quality Characterization Report.	1 April 2020 or 60 days following completion of Task 3, whichever is sooner.
6	Submit technical report: BPTC Evaluation Work Plan.	1 October 2020
7	Submit technical report: BPTC Evaluation Report.	1 April 2022
8	Submit annual report describing the overall status of BPTC implementation and compliance with groundwater limitations over the past reporting year.	To be submitted in accordance with the MRP (Attachment E, Section X.D.1.)

3. Best Management Practices and Pollution Prevention

- a. **Salinity Evaluation and Minimization Plan.** The Discharger shall continue to implement a salinity evaluation and minimization plan to address sources of salinity from the Facility. The Discharger shall provide annual reports discussing the effectiveness of implementing the salinity evaluation and minimization plan, and changes in the salinity in the effluent discharge if it is increasing. The salinity evaluation and minimization plan shall be reviewed and updated if the effluent annual average calendar year electrical conductivity concentration is greater than 1500 µmhos/cm. If the plan must be updated, it shall be submitted by 1 April following the calendar year in which the effluent electrical conductivity annual average of 1500 µmhos/cm was exceeded. The annual reports shall be submitted in accordance with the Monitoring and Reporting Program (Attachment E, section X.D).

4. Construction, Operation and Maintenance Specifications

- a. **Filtration System Operating Specifications.** To ensure the filtration system is operating properly to provide adequate disinfection of the wastewater, the turbidity of the filter effluent measured at Monitoring Location FIL-001 shall not exceed:
 - i. 2 NTU as a daily average;
 - ii. 5 NTU more than 5 percent of the time within a 24-hour period; and
 - iii. 10 NTU, at any time.

- b. **Ultraviolet (UV) Disinfection System Operating Specifications.** The UV disinfection system must be operated in accordance with an operations and maintenance program that assures adequate disinfection, and shall meet the following minimum specifications to provide virus inactivation equivalent to Title 22 Disinfected Tertiary Recycled Water:
- i. **UV Dose.** The minimum hourly average UV dose in the UV reactor shall be 100 millijoules per square centimeter (mJ/cm^2).
 - ii. **UV Transmittance.** The minimum hourly average UV transmittance (at 254 nanometers) in the wastewater measured at UVS-001 shall not fall below 55 percent.
 - iii. The lamp sleeves and cleaning system components must be visually inspected per the manufacturer's operations manual for physical wear (scoring, solarization, seal leaks, cleaning fluid levels, etc.) and to check the efficacy of the cleaning system.
 - iv. The lamp sleeves must be cleaned periodically as necessary to meet the UV dose requirements.
 - v. Lamps must be replaced per the manufacturer's operations manual, or sooner, if there are indications the lamps are failing to provide adequate disinfection. Lamp age and lamp replacement records must be maintained.
- c. **Treatment/Storage Pond Operating Requirements.**
- i. No waste constituent shall be released, discharged, or placed where it will cause a violation of the Groundwater Limitations of this Order.
 - ii. Wastewater treatment, storage, and disposal shall not cause pollution or a nuisance as defined by Water Code section 13050.
 - iii. Public contact with wastewater shall be precluded through such means as fences, signs, and other acceptable alternatives.
 - iv. Ponds shall be managed to prevent breeding of mosquitoes. In particular,
 - (a) An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - (b) Weeds shall be minimized.
 - (c) Dead algae, vegetation, and debris shall not accumulate on the water surface.
 - v. Freeboard shall not be less than 2 feet (measured vertically to the lowest point of overflow) as a monthly average and never less than 1 foot at any time.
 - vi. Objectionable odors shall not be perceivable beyond the limits of the Facility property at an intensity that creates or threatens to create nuisance conditions.
 - vii. As a means of discerning compliance with Specification c.iv, the dissolved oxygen (DO) content in the upper one foot of any wastewater treatment or storage pond shall not be less than 1.0 mg/L for three consecutive weekly sampling events. If the DO in any single pond is below 1.0 mg/L for three consecutive sampling events, the Discharger shall report the findings to the

Central Valley Water Board in writing within 10 days and shall include a specific plan to resolve the low DO results within 30 days.

- viii. The treatment facilities shall be designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency.

5. Special Provisions for Municipal Facilities (POTW's Only)

a. Pretreatment Requirements – N/A

- b. **Sludge/Biosolids Treatment or Discharge Specifications.** Sludge in this document means the solid, semisolid, and liquid residues removed during primary, secondary, or advanced wastewater treatment processes. Solid waste refers to grit and screening material generated during preliminary treatment. Residual sludge means sludge that will not be subject to further treatment at the wastewater treatment plant. Biosolids refer to sludge that has been treated and tested and shown to be capable of being beneficially and legally used pursuant to federal and state regulations as a soil amendment for agricultural, silvicultural, horticultural, and land reclamation activities as specified under 40 C.F.R. part 503.

- i. Collected screenings, residual sludge, biosolids, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Executive Officer, and consistent with Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste, as set forth in Title 27, CCR, division 2, subdivision 1, section 20005, et seq. Removal for further treatment, storage, disposal, or reuse at sites (e.g., landfill, composting sites, and soil amendment sites) that are operated in accordance with valid waste discharge requirements issued by a Regional Water Board will satisfy these specifications.

Sludge and solid waste shall be removed from screens, sumps, ponds, clarifiers, etc. as needed to ensure optimal plant performance.

The treatment of sludge generated at the Facility shall be confined to the Facility property and conducted in a manner that precludes infiltration of waste constituents into soils in a mass or concentration that will violate groundwater limitations in section V.B. of this Order. In addition, the storage of residual sludge, solid waste, and biosolids on Facility property shall be temporary and controlled, and contained in a manner that minimizes leachate formation and precludes infiltration of waste constituents into soils.

- ii. The use, disposal, storage, and transportation of biosolids shall comply with existing federal and state laws and regulations, including permitting requirements and technical standards included in 40 C.F.R. parts 503. If the State Water Board and the Central Valley Water Board are given the authority to implement regulations contained in 40 C.F.R. part 503, this Order may be reopened to incorporate appropriate time schedules and technical standards. The Discharger must comply with the standards and time schedules contained in 40 C.F.R. part 503 whether or not they have been incorporated into this Order.
- iii. The Discharger shall comply with Section IX.A. Biosolids of the Monitoring and Reporting Program, Attachment E.

- iv. Any proposed change in biosolids use or disposal practice from a previously approved practice shall be reported to the Executive Officer and USEPA Regional Administrator at least **90 days** in advance of the change.
- v. **By 1 December 2016**, the Discharger shall submit a biosolids use or disposal plan to the Central Valley Water Board. The plan shall describe at a minimum:
 - (a) Sources and amounts of biosolids generated annually.
 - (b) Location(s) of on-site storage and description of the containment area.
 - (c) Plans for ultimate disposal. For landfill disposal, include the present classification of the landfill; and the name and location of the landfill.
- d. **Collection System.** On 2 May 2006, the State Water Board adopted State Water Board Order No. 2006-0003-DWQ, Statewide General WDR's for Sanitary Sewer Systems. The Discharger shall be subject to the requirements of Order No. 2006-0003-DWQ and any future revisions thereto. Order No. 2006-0003-DWQ requires that all public agencies that currently own or operate sanitary sewer systems apply for coverage under the general WDR's. The Discharger has applied for and has been approved for coverage under Order 2006-0003-DWQ for operation of its wastewater collection system.
- e. **Anaerobically Digestible Material.** If the Discharger proposes to receive hauled-in anaerobically digestible material for injection into an anaerobic digester for co-digestion, the Discharger shall notify the Central Valley Water Board and develop and implement standard operating procedures (SOP's) for this activity prior to initiation of the hauling. The SOP's shall address material handling, including unloading, screening, or other processing prior to anaerobic digestion; transportation; spill prevention; and spill response. In addition, the SOP's shall address avoidance of the introduction of materials that could cause interference, pass-through, or upset of the treatment processes; avoidance of prohibited material, vector control, odor control, operation and maintenance, and the disposition of any solid waste segregated from introduction to the digester. The Discharger shall provide training to its staff on the SOP's and shall maintain records for a minimum of three years for each load received, describing the hauler, waste type, and quantity received. In addition, the Discharger shall maintain records for a minimum of three years for the disposition, location, and quantity of accumulated pre-digestion-segregated solid waste hauled off-site.

6. Other Special Provisions

- a. **Title 22, or Equivalent, Disinfection Requirements.** Wastewater shall be oxidized, coagulated, filtered, and adequately disinfected pursuant to the State Water Board, Division of Drinking Water (DDW) reclamation criteria, CCR, Title 22, division 4, chapter 3, (Title 22), or equivalent.

7. Compliance Schedules– Not Applicable

VII. COMPLIANCE DETERMINATION

- A. **BOD₅ and TSS Effluent Limitations (Section IV.A.1.).** Compliance with the final effluent limitations for BOD₅ and TSS required in Limitations and Discharge Requirements section

IV.A.1.a shall be ascertained by 24-hour composite samples. Compliance with effluent limitations required in Limitations and Discharge Requirements section IV.A.1.b for percent removal shall be calculated using the arithmetic mean of BOD₅ and TSS in effluent samples collected over a monthly period as a percentage of the arithmetic mean of the values for influent samples collected at approximately the same times during the same period.

- B. Total Mercury Mass Loading Effluent Limitations (Section IV.A.1.f).** The procedures for calculating mass loadings are as follows:
1. The total pollutant mass load for each individual calendar month shall be determined using an average of all concentration data collected that month and the corresponding total monthly flow. All effluent monitoring data collected under the monitoring and reporting program, pretreatment program, and any special studies shall be used for these calculations. The total annual mass loading shall be the sum of the individual calendar months.
 2. In calculating compliance, the Discharger shall count all non-detect measures at one-half of the detection level. If compliance with the effluent limitation is not attained due to the non-detect contribution, the Discharger shall improve and implement available analytical capabilities and compliance shall be evaluated with consideration of the detection limits.
- C. Average Dry Weather Flow Effluent Limitations (Section IV.A.1.e).** The average dry weather discharge flow represents the daily average flow when groundwater is at or near normal and runoff is not occurring. Compliance with the average dry weather flow effluent limitations will be determined annually based on the average daily flow over three consecutive dry weather months (e.g., July, August, and September).
- D. Total Coliform Organisms Effluent Limitations (Section IV.A.1.d).** For each day that an effluent sample is collected and analyzed for total coliform organisms, the 7-day median shall be determined by calculating the median concentration of total coliform bacteria in the effluent utilizing the bacteriological results of the last 7 days. For example, if a sample is collected on a Wednesday, the result from that sampling event and all results from the previous 6 days (i.e., Tuesday, Monday, Sunday, Saturday, Friday, and Thursday) are used to calculate the 7-day median. If the 7-day median of total coliform organisms exceeds a most probable number (MPN) of 2.2 per 100 milliliters, the Discharger will be considered out of compliance.
- E. Mass Effluent Limitations.** The mass effluent limitations contained in the Final Effluent Limitations IV.A.1.a are based on the permitted average dry weather flow and calculated as follows:
- $$\text{Mass (lbs/day)} = \text{Flow (MGD)} \times \text{Concentration (mg/L)} \times 8.34 \text{ (conversion factor)}$$
- If the effluent flow exceeds the permitted average dry weather flow during wet-weather seasons, the effluent mass limitations contained in Final Effluent Limitations IV.A.1.a shall not apply. If the effluent flow is below the permitted average dry weather flow during wet-weather seasons, the effluent mass limitations do apply.
- F. Electrical Conductivity Calendar Year Annual Average Effluent Limitation (Section IV.A.1.g).** Compliance with the calendar year annual average effluent limitations for electrical conductivity shall be determined by calculating the sum of all daily discharges measured during a calendar year divided by the number of daily discharges measured during that year.

ATTACHMENT A – DEFINITIONS

Arithmetic Mean (μ)

Also called the average, is the sum of measured values divided by the number of samples. For ambient water concentrations, the arithmetic mean is calculated as follows:

Arithmetic mean = $\mu = \Sigma x / n$ where: Σx is the sum of the measured ambient water concentrations, and n is the number of samples.

Average Monthly Effluent Limitation (AMEL)

The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL)

The highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Bioaccumulative

Those substances taken up by an organism from its surrounding medium through gill membranes, epithelial tissue, or from food and subsequently concentrated and retained in the body of the organism.

Carcinogenic

Pollutants are substances that are known to cause cancer in living organisms.

Coefficient of Variation (CV)

CV is a measure of the data variability and is calculated as the estimated standard deviation divided by the arithmetic mean of the observed values.

Daily Discharge

Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

Detected, but Not Quantified (DNQ)

DNQ are those sample results less than the RL, but greater than or equal to the laboratory's MDL. Sample results reported as DNQ are estimated concentrations.

Dilution Credit

Dilution Credit is the amount of dilution granted to a discharge in the calculation of a water quality-based effluent limitation, based on the allowance of a specified mixing zone. It is calculated from the

dilution ratio or determined through conducting a mixing zone study or modeling of the discharge and receiving water.

Effluent Concentration Allowance (ECA)

ECA is a value derived from the water quality criterion/objective, dilution credit, and ambient background concentration that is used, in conjunction with the coefficient of variation for the effluent monitoring data, to calculate a long-term average (LTA) discharge concentration. The ECA has the same meaning as waste load allocation (WLA) as used in U.S. EPA guidance (Technical Support Document For Water Quality-based Toxics Control, March 1991, second printing, EPA/505/2-90-001).

Enclosed Bays

Enclosed Bays means indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between the headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of the bay. Enclosed bays include, but are not limited to, Humboldt Bay, Bodega Harbor, Tomales Bay, Drake's Estero, San Francisco Bay, Morro Bay, Los Angeles-Long Beach Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay. Enclosed bays do not include inland surface waters or ocean waters.

Estimated Chemical Concentration

The estimated chemical concentration that results from the confirmed detection of the substance by the analytical method below the ML value.

Estuaries

Estuaries means waters, including coastal lagoons, located at the mouths of streams that serve as areas of mixing for fresh and ocean waters. Coastal lagoons and mouths of streams that are temporarily separated from the ocean by sandbars shall be considered estuaries. Estuarine waters shall be considered to extend from a bay or the open ocean to a point upstream where there is no significant mixing of fresh water and seawater. Estuarine waters included, but are not limited to, the Sacramento-San Joaquin Delta, as defined in Water Code section 12220, Suisun Bay, Carquinez Strait downstream to the Carquinez Bridge, and appropriate areas of the Smith, Mad, Eel, Noyo, Russian, Klamath, San Diego, and Otay rivers. Estuaries do not include inland surface waters or ocean waters.

Inland Surface Waters

All surface waters of the state that do not include the ocean, enclosed bays, or estuaries.

Instantaneous Maximum Effluent Limitation

The highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation

The lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Maximum Daily Effluent Limitation (MDEL)

The highest allowable daily discharge of a pollutant, over a calendar day (or 24-hour period). For pollutants with limitations expressed in units of mass, the daily discharge is calculated as the total mass of the pollutant discharged over the day. For pollutants with limitations expressed in other units of measurement, the daily discharge is calculated as the arithmetic mean measurement of the pollutant over the day.

Median

The middle measurement in a set of data. The median of a set of data is found by first arranging the measurements in order of magnitude (either increasing or decreasing order). If the number of measurements (n) is odd, then the median = $X_{(n+1)/2}$. If n is even, then the median = $(X_{n/2} + X_{(n/2)+1})/2$ (i.e., the midpoint between the $n/2$ and $n/2+1$).

Method Detection Limit (MDL)

MDL is the minimum concentration of a substance that can be measured and reported with 99 percent confidence that the analyte concentration is greater than zero, as defined in 40 C.F.R. part 136, Attachment B, revised as of July 3, 1999.

Minimum Level (ML)

ML is the concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming that all the method specified sample weights, volumes, and processing steps have been followed.

Mixing Zone

Mixing Zone is a limited volume of receiving water that is allocated for mixing with a wastewater discharge where water quality criteria can be exceeded without causing adverse effects to the overall water body.

Not Detected (ND)

Sample results which are less than the laboratory's MDL.

Ocean Waters

The territorial marine waters of the State as defined by California law to the extent these waters are outside of enclosed bays, estuaries, and coastal lagoons. Discharges to ocean waters are regulated in accordance with the State Water Board's California Ocean Plan.

Persistent Pollutants

Persistent pollutants are substances for which degradation or decomposition in the environment is nonexistent or very slow.

Pollutant Minimization Program (PMP)

PMP means waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of a priority pollutant(s) through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Central Valley Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Pollution Prevention

Pollution Prevention means any action that causes a net reduction in the use or generation of a hazardous substance or other pollutant that is discharged into water and includes, but is not limited to, input change, operational improvement, production process change, and product reformulation (as

defined in Water Code section 13263.3). Pollution prevention does not include actions that merely shift a pollutant in wastewater from one environmental medium to another environmental medium, unless clear environmental benefits of such an approach are identified to the satisfaction of the State Water Resources Control Board (State Water Board) or Central Valley Water Board.

Satellite Collection System

The portion, if any, of a sanitary sewer system owned or operated by a different public agency than the agency that owns and operates the wastewater treatment facility that a sanitary sewer system is tributary to.

Source of Drinking Water

Any water designated as municipal or domestic supply (MUN) in a Central Valley Water Board Basin Plan.

Standard Deviation (σ)

Standard Deviation is a measure of variability that is calculated as follows:

$$\sigma = (\sum[(x - \mu)^2]/(n - 1))^{0.5}$$

where:

x is the observed value;

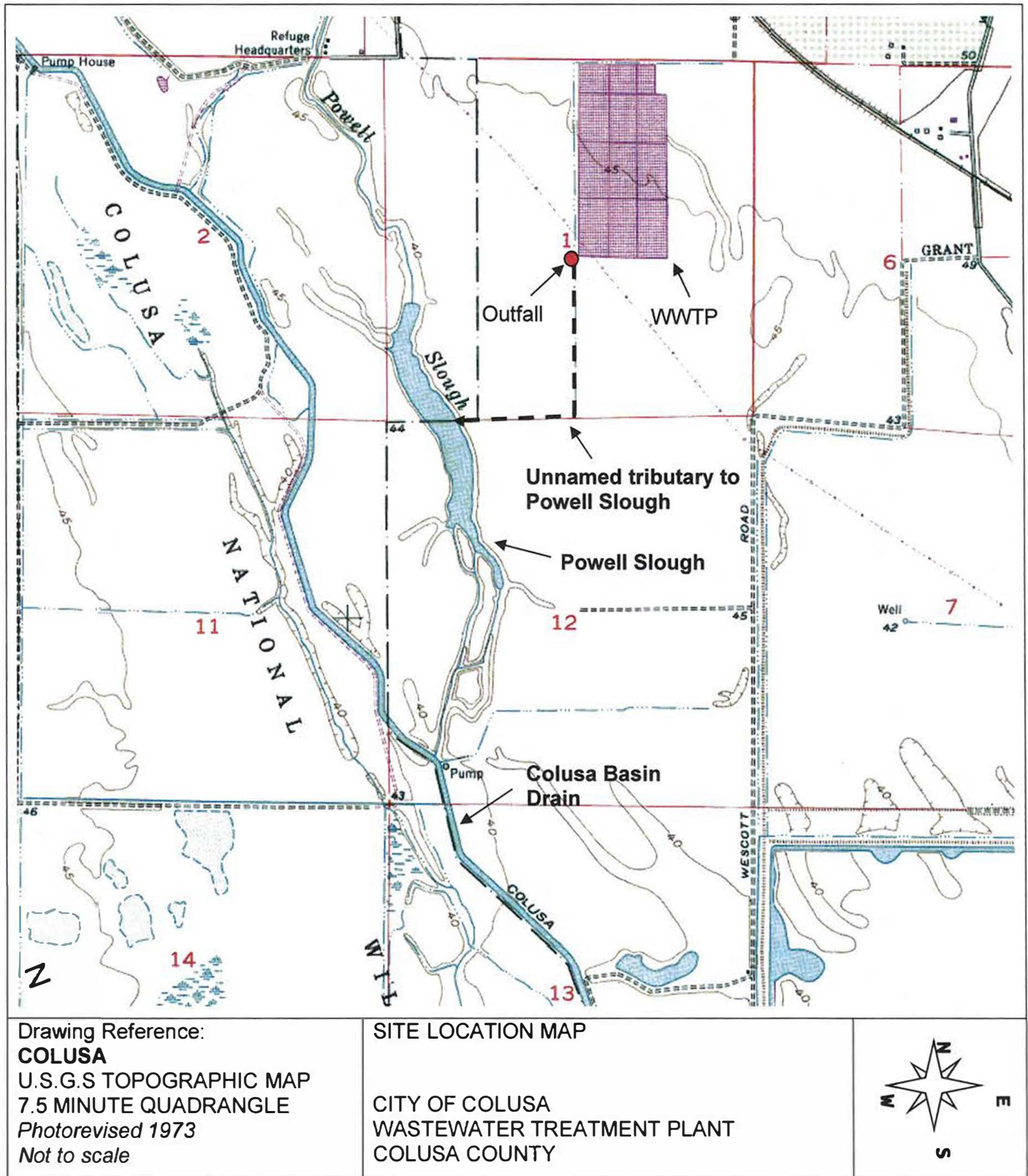
μ is the arithmetic mean of the observed values; and

n is the number of samples.

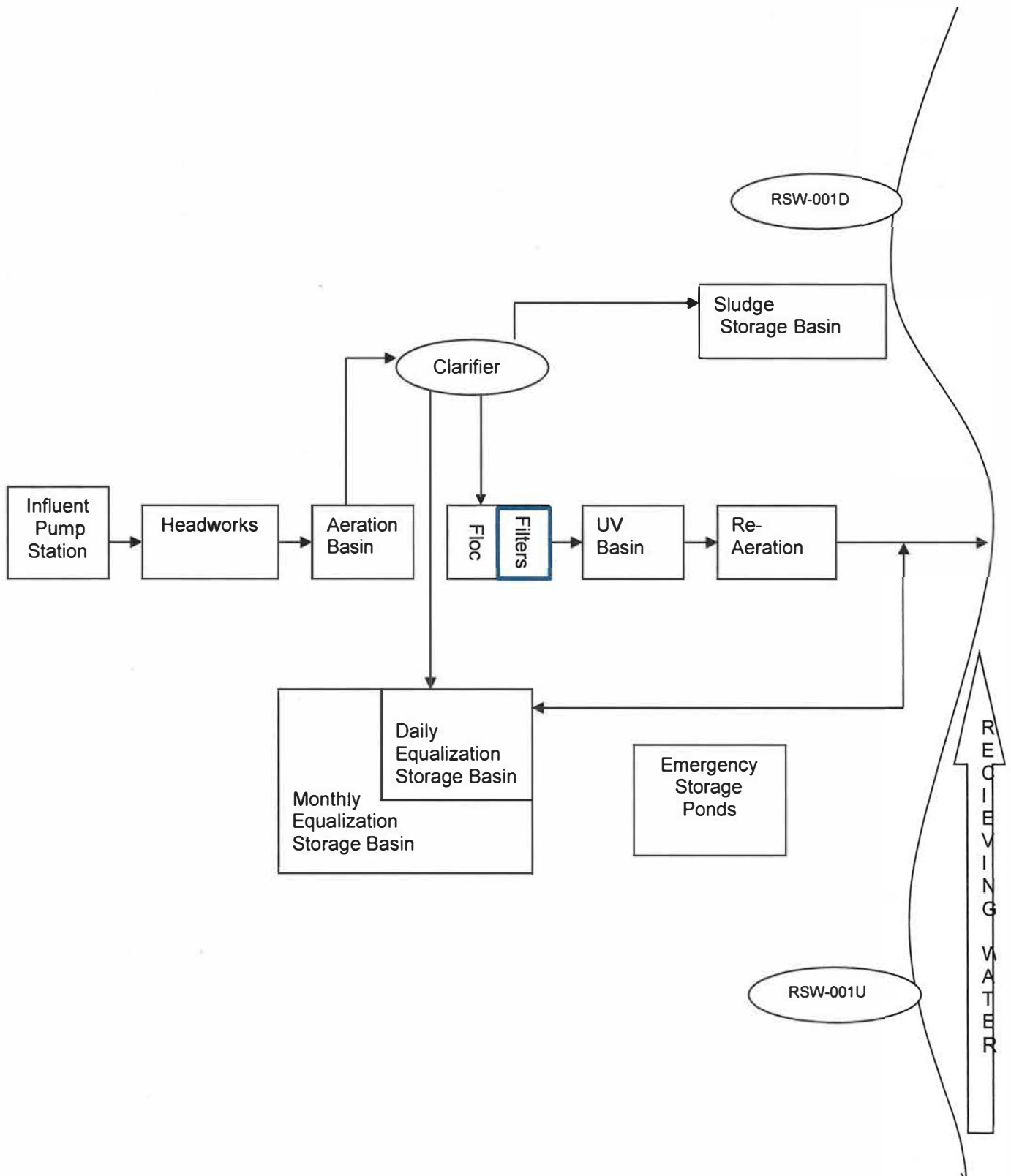
Toxicity Reduction Evaluation (TRE)

TRE is a study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

ATTACHMENT B – MAP



ATTACHMENT C – FLOW SCHEMATIC



ATTACHMENT D – STANDARD PROVISIONS

A. Duty to Comply

1. The Discharger must comply with all of the terms, requirements, and conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code and is grounds for enforcement action; permit termination, revocation and reissuance, or modification; denial of a permit renewal application; or a combination thereof. (40 C.F.R. § 122.41(a); Wat. Code, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385.)
2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants and with standards for sewage sludge use or disposal established under Section 405(d) of the CWA within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 C.F.R. § 122.41(a)(1).)

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order. (40 C.F.R. § 122.41(c).)

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge or sludge use or disposal in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 C.F.R. § 122.41(d).)

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order. (40 C.F.R. § 122.41(e).)

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 C.F.R. § 122.41(g).)
2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 C.F.R. § 122.5(c).)

F. Inspection and Entry

The Discharger shall allow the Central Valley Water Board, State Water Board, U.S. EPA, and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (33 U.S.C. § 1318(a)(4)(B); 40 C.F.R. § 122.41(i); Wat. Code, § 13267, 13383):

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (33 U.S.C § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(1); Wat. Code, §§ 13267, 13383);
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (33 U.S.C. § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(2); Wat. Code, §§ 13267, 13383);
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (33 U.S.C § 1318(a)(4)(B)(ii); 40 C.F.R. § 122.41(i)(3); Wat. Code, § 13267, 13383); and
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (33 U.S.C § 1318(a)(4)(B); 40 C.F.R. § 122.41(i)(4); Wat. Code, §§ 13267, 13383.)

G. Bypass

1. Definitions
 - a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 C.F.R. § 122.41(m)(1)(i).)
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production. (40 C.F.R. § 122.41(m)(1)(ii).)
2. Bypass not exceeding limitations. The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3, I.G.4, and I.G.5 below. (40 C.F.R. § 122.41(m)(2).)
3. Prohibition of bypass. Bypass is prohibited, and the Central Valley Water Board may take enforcement action against a Discharger for bypass, unless (40 C.F.R. § 122.41(m)(4)(i)):
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 C.F.R. § 122.41(m)(4)(i)(A));
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 C.F.R. § 122.41(m)(4)(i)(B)); and
 - c. The Discharger submitted notice to the Central Valley Water Board as required under Standard Provisions – Permit Compliance I.G.5 below. (40 C.F.R. § 122.41(m)(4)(i)(C).)

4. The Central Valley Water Board may approve an anticipated bypass, after considering its adverse effects, if the Central Valley Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above. (40 C.F.R. § 122.41(m)(4)(ii).)
5. Notice
 - a. Anticipated bypass. If the Discharger knows in advance of the need for a bypass, it shall submit a notice, if possible at least 10 days before the date of the bypass. (40 C.F.R. § 122.41(m)(3)(i).)
 - b. Unanticipated bypass. The Discharger shall submit notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below (24-hour notice). (40 C.F.R. § 122.41(m)(3)(ii).)

H. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation. (40 C.F.R. § 122.41(n)(1).)

1. Effect of an upset. An upset constitutes an affirmative defense to an action brought for noncompliance with such technology based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance I.H.2 below are met. No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review. (40 C.F.R. § 122.41(n)(2).)
2. Conditions necessary for a demonstration of upset. A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that (40 C.F.R. § 122.41(n)(3)):
 - a. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 C.F.R. § 122.41(n)(3)(i));
 - b. The permitted facility was, at the time, being properly operated (40 C.F.R. § 122.41(n)(3)(ii));
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b below (24-hour notice) (40 C.F.R. § 122.41(n)(3)(iii)); and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above. (40 C.F.R. § 122.41(n)(3)(iv).)
3. Burden of proof. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 C.F.R. § 122.41(n)(4).)

I. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition. (40 C.F.R. § 122.41(f).)

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 C.F.R. § 122.41(b).)

C. Transfers

This Order is not transferable to any person except after notice to the Central Valley Water Board. The Central Valley Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 C.F.R. § 122.41(l)(3); 122.61.)

II. STANDARD PROVISIONS – MONITORING

- A.** Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 C.F.R. § 122.41(j)(1).)
- B.** Monitoring results must be conducted according to test procedures approved under 40 C.F.R. part 136 for the analyses of pollutants unless another method is required under 40 C.F.R. subchapters N or O. In the case of pollutants for which there are no approved methods under 40 C.F.R. part 136 or otherwise required under 40 C.F.R. subchapters N or O, monitoring must be conducted according to a test procedure specified in this Order for such pollutants. (40 C.F.R. § 122.41(j)(4); 122.44(i)(1)(iv).)

III. STANDARD PROVISIONS – RECORDS

- A.** Except for records of monitoring information required by this Order related to the Discharger's sewage sludge use and disposal activities, which shall be retained for a period of at least five years (or longer as required by 40 C.F.R. part 503), the Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Central Valley Water Board Executive Officer at any time. (40 C.F.R. § 122.41(j)(2).)
- B.** Records of monitoring information shall include:
 - 1. The date, exact place, and time of sampling or measurements (40 C.F.R. § 122.41(j)(3)(i));
 - 2. The individual(s) who performed the sampling or measurements (40 C.F.R. § 122.41(j)(3)(ii));
 - 3. The date(s) analyses were performed (40 C.F.R. § 122.41(j)(3)(iii));
 - 4. The individual(s) who performed the analyses (40 C.F.R. § 122.41(j)(3)(iv));
 - 5. The analytical techniques or methods used (40 C.F.R. § 122.41(j)(3)(v)); and
 - 6. The results of such analyses. (40 C.F.R. § 122.41(j)(3)(vi).)
- C.** Claims of confidentiality for the following information will be denied (40 C.F.R. § 122.7(b)):
 - 1. The name and address of any permit applicant or Discharger (40 C.F.R. § 122.7(b)(1)); and
 - 2. Permit applications and attachments, permits and effluent data. (40 C.F.R. § 122.7(b)(2).)

IV. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Central Valley Water Board, State Water Board, or U.S. EPA within a reasonable time, any information which the Central Valley Water Board, State Water Board, or U.S. EPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Central Valley Water Board, State Water Board, or U.S. EPA copies of records required to be kept by this Order. (40 C.F.R. § 122.41(h); Wat. Code, §§ 13267, 13383.)

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Central Valley Water Board, State Water Board, and/or U.S. EPA shall be signed and certified in accordance with Standard Provisions – Reporting V.B.2, V.B.3, V.B.4, and V.B.5 below. (40 C.F.R. § 122.41(k).)
2. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of U.S. EPA). (40 C.F.R. § 122.22(a)(3).)
3. All reports required by this Order and other information requested by the Central Valley Water Board, State Water Board, or U.S. EPA shall be signed by a person described in Standard Provisions – Reporting V.B.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting V.B.2 above (40 C.F.R. § 122.22(b)(1));
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 C.F.R. § 122.22(b)(2)); and
 - c. The written authorization is submitted to the Central Valley Water Board and State Water Board. (40 C.F.R. § 122.22(b)(3).)
4. If an authorization under Standard Provisions – Reporting V.B.3 above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting V.B.3 above must be submitted to the Central Valley Water Board and State Water Board prior to or together with any reports, information, or applications, to be signed by an authorized representative. (40 C.F.R. § 122.22(c).)
5. Any person signing a document under Standard Provisions – Reporting V.B.2 or V.B.3 above shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my

inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations." (40 C.F.R. § 122.22(d).)

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 C.F.R. § 122.41(l)(4).)
2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Central Valley Water Board or State Water Board for reporting results of monitoring of sludge use or disposal practices. (40 C.F.R. § 122.41(l)(4)(i).)
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 C.F.R. part 136, or another method required for an industry-specific waste stream under 40 C.F.R. subchapters N or O, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or sludge reporting form specified by the Central Valley Water Board. (40 C.F.R. § 122.41(l)(4)(ii).)
4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 C.F.R. § 122.41(l)(4)(iii).)

D. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 C.F.R. § 122.41(l)(5).)

E. Twenty-Four Hour Reporting

1. The Discharger shall report any noncompliance that may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A written submission shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance. (40 C.F.R. § 122.41(l)(6)(i).)
2. The following shall be included as information that must be reported within 24 hours under this paragraph (40 C.F.R. § 122.41(l)(6)(ii)):
 - a. Any unanticipated bypass that exceeds any effluent limitation in this Order. (40 C.F.R. § 122.41(l)(6)(ii)(A).)
 - b. Any upset that exceeds any effluent limitation in this Order. (40 C.F.R. § 122.41(l)(6)(ii)(B).)
3. The Central Valley Water Board may waive the above-required written report under this provision on a case-by-case basis if an oral report has been received within 24 hours. (40 C.F.R. § 122.41(l)(6)(iii).)

F. Planned Changes

The Discharger shall give notice to the Central Valley Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 C.F.R. § 122.41(l)(1)):

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 C.F.R. § 122.41(l)(1)(i)); or
2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 C.F.R. § 122.41(l)(1)(ii).)
3. The alteration or addition results in a significant change in the Discharger's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan. (40 C.F.R. § 122.41(l)(1)(iii).)

G. Anticipated Noncompliance

The Discharger shall give advance notice to the Central Valley Water Board or State Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with this Order's requirements. (40 C.F.R. § 122.41(l)(2).)

H. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting V.C, V.D, and V.E above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E above. (40 C.F.R. § 122.41(l)(7).)

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Central Valley Water Board, State Water Board, or U.S. EPA, the Discharger shall promptly submit such facts or information. (40 C.F.R. § 122.41(l)(8).)

V. STANDARD PROVISIONS – ENFORCEMENT

- A.** The Central Valley Water Board is authorized to enforce the terms of this permit under several provisions of the Water Code, including, but not limited to, sections 13385, 13386, and 13387.

VI. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Publicly-Owned Treatment Works (POTW's)

All POTW's shall provide adequate notice to the Central Valley Water Board of the following (40 C.F.R. § 122.42(b)):

1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it were directly discharging those pollutants (40 C.F.R. § 122.42(b)(1)); and
2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order. (40 C.F.R. § 122.42(b)(2).)

3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 C.F.R. § 122.42(b)(3).)

ATTACHMENT E – MONITORING AND REPORTING PROGRAM

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

The Code of Federal Regulations (40 C.F.R. § 122.48) requires that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Valley Water Board to require technical and monitoring reports. This MRP establishes monitoring and reporting requirements that implement federal and California regulations.

I. GENERAL MONITORING PROVISIONS

- A.** Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. All samples shall be taken at the monitoring locations specified below and, unless otherwise specified, before the monitored flow joins or is diluted by any other waste stream, body of water, or substance. Monitoring locations shall not be changed without notification to and the approval of the Central Valley Water Board.
- B.** Effluent samples shall be taken downstream of the last addition of wastes to the treatment or discharge works where a representative sample may be obtained prior to mixing with the receiving waters. Samples shall be collected at such a point and in such a manner to ensure a representative sample of the discharge.
- C.** Chemical, bacteriological, and bioassay analyses of any material required by this Order shall be conducted by a laboratory certified for such analyses by the State Water Resources Control Board (State Water Board), Division of Drinking Water (DDW; formerly the Department of Public Health). Laboratories that perform sample analyses must be identified in all monitoring reports submitted to the Central Valley Water Board. In the event a certified laboratory is not available to the Discharger for any onsite field measurements such as pH, dissolved oxygen (DO), turbidity, temperature, and residual chlorine, such analyses performed by a noncertified laboratory will be accepted provided a Quality Assurance-Quality Control Program is instituted by the laboratory. A manual containing the steps followed in this program for any onsite field measurements such as pH, DO, turbidity, temperature, and residual chlorine must be kept onsite in the treatment facility laboratory and shall be available for inspection by Central Valley Water Board staff. The Discharger must demonstrate sufficient capability (qualified and trained employees, properly calibrated and maintained field instruments, etc.) to adequately perform these field measurements. The Quality Assurance-Quality Control Program must conform to USEPA guidelines or to procedures approved by the Central Valley Water Board.
- D.** Appropriate flow measurement devices and methods consistent with accepted scientific practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. All monitoring instruments and devices used by the Discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary, at least yearly, to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year to ensure continued accuracy of the devices.
- E.** Monitoring results, including noncompliance, shall be reported at intervals and in a manner specified in this Monitoring and Reporting Program.
- F.** Laboratories analyzing monitoring samples shall be certified by DDW, in accordance with the provision of Water Code section 13176, and must include quality assurance/quality control data with their reports.
- G.** The Discharger shall file with the Central Valley Water Board technical reports on self-monitoring performed according to the detailed specifications contained in this Monitoring and Reporting Program.

- H. The results of all monitoring required by this Order shall be reported to the Central Valley Water Board, and shall be submitted in such a format as to allow direct comparison with the limitations and requirements of this Order. Unless otherwise specified, discharge flows shall be reported in terms of the monthly average and the daily maximum discharge flows.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Table E-1. Monitoring Station Locations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
--	INF-001	A location where a representative sample of the Facility influent can be obtained, prior to any additives, treatment processes, and plant return flows.
001	EFF-001	A location where a representative sample of the Facility effluent can be obtained prior to discharge to the receiving water. (39° 10' 50" N, 122° 01' 48" W)
--	RSW-001U	Unnamed tributary to Powell Slough, below the first upstream agricultural discharge (up to 50 feet upstream).
--	RSW-001D	Unnamed tributary to Powell Slough, above the first downstream agricultural discharge (up to 200 feet downstream).
--	UVS-001	A location where a representative sample of wastewater can be collected immediately downstream of the ultraviolet light (UV) disinfection system.
--	FIL-001	A location where a representative sample of wastewater can be collected immediately downstream of the filters and prior to the ultraviolet light (UV) disinfection system.
--	RGW-001	North Groundwater Monitoring Well (39° 11' 42" N, 122° 01' 35" W)
--	RGW-002	South Groundwater Monitoring Well (39° 11' 5" N, 122° 01' 51" W)
--	RGW-003	East Groundwater Monitoring Well (39° 10' 5" N, 122° 01' 37" W)
--	RGW-004	West Groundwater Monitoring Well (39° 10' 49" N, 122° 01' 52" W)
--	PND-001	Representative sample location for equalization pond effluent.
--	PND-002	Representative sample location for monthly equalization storage pond effluent.
--	SPL-001	A location where a representative sample for the municipal water supply can be collected.
--	BIO-001	A location where a representative sample of the biosolids can be obtained.

The North latitude and West longitude information in Table E-1 are approximate for administrative purposes.

III. INFLUENT MONITORING REQUIREMENTS

A. Monitoring Location - INF-001

1. The Discharger shall monitor influent to the Facility at INF-001 as follows:

Table E-2. Influent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Flow	MGD	Meter	Continuous	--
Biochemical Oxygen Demand(5-day @ 20°C)	mg/L	24-hr Composite ²	2/Month	1
Electrical Conductivity @ 25°C	µmhos/cm	Grab ³	1/Week	1
Total Suspended Solids	mg/L	Grab ³	2/Month	1

¹ Pollutants shall be analyzed using the analytical methods described in 40 CFR part 136; or by methods approved by the Central Valley Water Board or the State Water Board.

² 24-hour flow proportional composite.

³ Grab samples shall not be collected at the same time each day to get a complete representation of variations in the influent.

IV. EFFLUENT MONITORING REQUIREMENTS

A. Monitoring Location - EFF-001

1. The Discharger shall monitor effluent at EFF-001 as follows. If more than one analytical test method is listed for a given parameter, the Discharger must select from the listed methods and corresponding Minimum Level:

Table E-3. Effluent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Flow	MGD	Meter	Continuous	--
Conventional Pollutants				
Biochemical Oxygen Demand (5-day @ 20° C)	mg/L	24-hr Composite ²	1/Week	1
	lbs/day	Calculate	1/Week	--
Total Suspended Solids	mg/L	24-hr Composite ²	1/Week	1
	lbs/day	Calculate	1/Week	--
pH	standard units	Grab	3/Week ^{3, 4}	1
Priority Pollutants				
Mercury, Total Recoverable	ng/L	Grab	1/Quarter	1, 8
Priority Pollutants and Other Constituents of Concern	See Section IX.D	See Section IX.D	See Section IX.D	1, 5
Non-Conventional Pollutants				
Ammonia Nitrogen, Total (as N)	mg/L	Grab	1/Week ^{3, 6}	1
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Week	1
Hardness, Total (as CaCO ₃) ⁷	mg/L	Grab	1/Quarter ⁷	1
Settleable Solids	ml/L	Grab	1/Month	1
Standard Minerals ⁹	mg/L	Grab	1/Year	1
Temperature	°C	Grab	1/Week ^{3, 4}	1
Total Dissolved Solids	mg/L	Grab	1/Week	1

¹ Pollutants shall be analyzed using the analytical methods described in 40 CFR Part 136 or by methods approved by the Central Valley Water Board or the State Water Board.

² 24-hour flow proportional composite.

³ pH and temperature shall be recorded at the time of ammonia sample collection.

⁴ A hand-held field meter may be used, provided the meter utilizes a USEPA-approved algorithm/method and is calibrated and maintained in accordance with the manufacturer's instructions. A calibration and maintenance log for each meter used for monitoring required by this Monitoring and Reporting Program shall be maintained at the Facility.

⁵ For priority pollutant constituents the reporting level shall be consistent with Sections 2.4.2 and 2.4.3 of the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (See Attachment E, **Table E-11**).

⁶ Concurrent with whole effluent toxicity monitoring.

⁷ Hardness samples shall be collected concurrently with metals samples.

⁸ Unfiltered methyl mercury and total mercury samples shall be taken using clean hands/dirty hands procedures, as described in U.S. EPA method 1669: Sampling Ambient Water for Trace Metals at EPA Water Quality Criteria Levels, for collection of equipment blanks (section 9.4.4.2), and shall be analyzed by U.S. EPA method 1630/1631 (Revision E) with a reporting limit of 0.05 ng/L for methyl mercury and 0.5 ng/L for total mercury.

⁹ Standard minerals shall include the following: boron, calcium, iron, magnesium, potassium, sodium, chloride, manganese, phosphorus, total alkalinity (including alkalinity series), and hardness, and include verification that the analysis is complete (i.e., cation/anion balance).

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

A. Acute Toxicity Testing. The Discharger shall conduct acute toxicity testing to determine whether the effluent is contributing acute toxicity to the receiving water. The Discharger shall meet the following acute toxicity testing requirements:

1. Monitoring Frequency – The Discharger shall perform quarterly acute toxicity testing, concurrent with effluent ammonia sampling.
2. Sample Types – The Discharger may use flow-through or static renewal testing. For static renewal testing, the samples shall be flow proportional 24-hour composites and shall be representative of the volume and quality of the discharge. The effluent samples shall be taken at Monitoring Location EFF-001.
3. Test Species – Test species shall be fathead minnows (*Pimephales promelas*).
4. Methods – The acute toxicity testing samples shall be analyzed using EPA-821-R-02-012, Fifth Edition. Temperature, total residual chlorine, and pH shall be recorded at the time of sample collection. No pH adjustment may be made unless approved by the Executive Officer.
5. Test Failure – If an acute toxicity test does not meet all test acceptability criteria, as specified in the test method, the Discharger must re-sample and re-test as soon as possible, not to exceed 7 days following notification of test failure. In lieu of performing a separate acute bioassay, the Discharger may report the 96-hour percent survival of the fathead minnow species with the results from the chronic toxicity test procedure for determination of compliance with acute toxicity requirements. The results for acute and chronic testing must be reported separately.

B. Chronic Toxicity Testing. The Discharger shall conduct three species chronic toxicity testing to determine whether the effluent is contributing chronic toxicity to the receiving water. The Discharger shall meet the following chronic toxicity testing requirements:

1. Monitoring Frequency – The Discharger shall perform semi-annual three species chronic toxicity testing.
2. Sample Types – Effluent samples shall be grab samples and shall be representative of the volume and quality of the discharge. The effluent samples shall be taken at Monitoring Location EFF-001. The receiving water control shall be a grab sample obtained from Monitoring Location RSW-001U, as identified in this Monitoring and Reporting Program.
3. Sample Volumes – Adequate sample volumes shall be collected to provide renewal water to complete the test in the event that the discharge is intermittent.
4. Test Species – Chronic toxicity testing measures sublethal (e.g., reduced growth, reproduction) and/or lethal effects to test organisms exposed to an effluent compared to that of the control organisms. The Discharger shall conduct chronic toxicity tests with:
 - a. The cladoceran, water flea, *Ceriodaphnia dubia* (survival and reproduction test);
 - b. The fathead minnow, *Pimephales promelas* (larval survival and growth test); and
 - c. The green alga, *Selenastrum capricornutum* (growth test).
5. Methods – The presence of chronic toxicity shall be estimated as specified in *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms, Fourth Edition*, EPA/821-R-02-013, October 2002.
6. Reference Toxicant – As required by the SIP, all chronic toxicity tests shall be conducted with concurrent testing with a reference toxicant and shall be reported with the chronic toxicity test results.
7. Dilutions – For routine and accelerated chronic toxicity monitoring, it is not necessary to perform the test using a dilution series. The test may be performed using 100% effluent

and one control. For TRE monitoring, the chronic toxicity testing shall be performed using the dilution series identified in Table E-4, below, unless an alternative dilution series is detailed in the submitted TRE Action Plan. A receiving water control or laboratory water control may be used as the diluent.

Table E-4. Chronic Toxicity Testing Dilution Series

Sample	Dilutions ^a (%)					Control
	100	75	50	25	12.5	
% Effluent	100	75	50	25	12.5	0
% Control Water	0	25	50	75	87.5	100

^a Receiving water control or laboratory water control may be used as the diluent.

8. **Test Failure** – The Discharger must re-sample and re-test as soon as possible, but no later than fourteen (14) days after receiving notification of a test failure. A test failure is defined as follows:
 - a. The reference toxicant test or the effluent test does not meet all test acceptability criteria as specified in the *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms, Fourth Edition*, EPA/821-R-02-013, October 2002 (Method Manual), and its subsequent amendments or revisions; or
 - b. The percent minimum significant difference (PMSD) measured for the test exceeds the upper PMSD bound variability criterion in Table 6 on page 52 of the Method Manual. (A retest is only required in this case if the test results do not exceed the monitoring trigger specified in the Special Provision at section VI. C. 2.a.ii. of the Order.)
- C. **WET Testing Notification Requirements.** The Discharger shall notify the Central Valley Water Board within 24-hours after the receipt of test results exceeding the monitoring trigger during regular or accelerated monitoring, or an exceedance of the acute toxicity effluent limitation.
- D. **WET Testing Reporting Requirements.** All toxicity test reports shall include the contracting laboratory's complete report provided to the Discharger and shall be in accordance with the appropriate "Report Preparation and Test Review" sections of the method manuals. At a minimum, whole effluent toxicity monitoring shall be reported as follows:
 1. **Chronic WET Reporting.** Regular chronic toxicity monitoring results shall be reported to the Central Valley Water Board with the monthly self monitoring report, and shall contain, at minimum:
 - a. The results expressed in TU_c, measured as 100/NOEC, and also measured as 100/LC50, 100/EC25, 100/IC25, and 100/IC50, as appropriate.
 - b. The statistical methods used to calculate endpoints;
 - c. The statistical output page, which includes the calculation of the percent minimum significant difference (PMSD);
 - d. The dates of sample collection and initiation of each toxicity test; and
 - e. The results compared to the numeric toxicity monitoring trigger.

Additionally, the monthly self-monitoring reports shall contain an updated chronology of chronic toxicity test results expressed in TUC, and organized by test species, type of test (survival, growth or reproduction), and monitoring frequency, i.e., either quarterly, monthly, accelerated, or Toxicity Reduction Evaluation (TRE).

2. **Acute WET Reporting.** Acute toxicity test results shall be submitted with the monthly discharger self-monitoring reports and reported as percent survival.
3. **TRE Reporting.** Reports for TREs shall be submitted in accordance with the schedule contained in the Discharger's approved TRE Workplan, or as amended by the Discharger's TRE Action Plan.
4. **Quality Assurance (QA).** The Discharger must provide the following information for QA purposes:
 - a. Results of the applicable reference toxicant data with the statistical output page giving the species, NOEC, LOEC, type of toxicant, dilution water used, concentrations used, PMSD, and dates tested.
 - b. The reference toxicant control charts for each endpoint, which include summaries of reference toxicant tests performed by the contracting laboratory.
 - c. Any information on deviations or problems encountered and how they were dealt with.

VI. LAND DISCHARGE MONITORING REQUIREMENTS

A. Monitoring Locations - PND-001 (Equalization Pond) and PND-002 (Monthly Storage Pond)

1. When the equalization pond or the monthly storage pond holds wastewater (raw influent, partially treated, or fully treated wastewater) for more than 7 days the Discharger shall monitor the pond(s) at Monitoring Locations PND-001 and PND-002 according to Table E-5. **If monitoring is not required, the Discharger shall so state in the SMR and indicate if rainwater is being stored in the pond.**

Table E-5. Pond Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Freeboard ¹	Feet	Measure	1/Week	—
Dissolved Oxygen	mg/L	Grab	1/Week	2, 3
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Week	2, 3
Odors	--	Observation	1/Week	—
pH	Standard units	Grab	1/Week	2, 3
Standard Minerals	mg/L	Grab	1/Quarter	4

¹ To be measured vertically from the water surface to the lowest point of overflow.

² Pollutants shall be analyzed using the analytical methods described in 40 CFR Part 136.

³ A hand-held field meter may be used, provided the meter utilizes a USEPA-approved algorithm/method and is calibrated and maintained in accordance with the manufacturer's instructions. A calibration and maintenance log for each meter used for monitoring required by this Monitoring and Reporting Program shall be maintained at the Facility.

⁴ Standard minerals shall include the following: boron, calcium, iron, magnesium, potassium, sodium, chloride, manganese, phosphorus, total alkalinity (including alkalinity series), and hardness, and include verification that the analysis is complete (i.e., cation/anion balance).

VII. RECYCLING MONITORING REQUIREMENTS – N/A

VIII. RECEIVING WATER MONITORING REQUIREMENTS

A. Monitoring Locations - RSW-001U and RSW-001D

1. The Discharger shall monitor the unnamed tributary to Powell Slough at RSW-001U and RSW-001D as follows:

Table E-6. Receiving Water Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency ¹	Required Analytical Test Method
pH ²	Standard Units	Grab	1/Week	3
Temperature ²	°F (°C)	Grab	1/Week	3
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Month	3
Dissolved Oxygen	mg/L	Grab	1/Month	3
	% saturation	measure	1/Month	
Hardness	mg/L	Grab	1/Quarter	3
Turbidity	NTU	Grab	1/Quarter	3
Nitrate	mg/L	Grab	1/Month	3
Priority Pollutants and Additional Constituents ^{4,5,6,7,8}	See Section IX.D	Grab	1/Year during 2019 ⁹	3,4

¹ Monitoring is not required at Monitoring Location RSW-001U when upstream receiving water flow is not present. **If upstream receiving water flow is not present, the Discharger shall so state in the SMR cover letter.**

² Temperature and pH data shall be collected on the same date and time as the ammonia sample.

³ Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. Part 136 or by methods approved by the Central Valley Water Board or the State Water Board.

⁴ For priority pollutant constituents the reporting level shall be consistent with Sections 2.4.2 and 2.4.3 of the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (See Attachment E, Table E-11).

⁵ Priority Pollutants is defined as USEPA Priority Pollutants and consists of the constituents listed in the most recent National Toxics Rule and California Toxics Rule.

⁶ For priority pollutant constituents with effluent limitations, detection limits shall be below the effluent limitations. If the lowest ML published in Appendix 4 of the SIP is not below the effluent limitation, the detection limit shall be the lowest ML. For priority pollutant constituents without effluent limitations, the detection limits shall be equal to or less than the lowest ML published in Appendix 4 of the SIP.

⁷ Concurrent with effluent hardness, pH, and temperature sampling.

⁸ All peaks are to be reported, along with any explanation provided by the laboratory.

⁹ Monitoring for priority pollutants, standard minerals, and other constituents of concern shall be conducted at Monitoring Location RSW-001 only. Standard minerals shall include the following: boron, calcium, iron, magnesium, potassium, sodium, chloride, manganese, phosphorus, total alkalinity (including alkalinity series), and hardness, and include verification that the analysis is complete (i.e., cation/anion balance).

2. In conducting the receiving water sampling, a separate log shall be kept of the receiving water conditions. Attention shall be given to the presence or absence of:

- | | |
|---------------------------------------|--|
| a. Floating or suspended matter | f. Fungi, slimes, or objectionable growths |
| b. Discoloration | g. Potential nuisance conditions |
| c. Bottom deposits | h. Flow Direction |
| d. Aquatic life | i. Upstream Conditions |
| e. Visible films, sheens, or coatings | |

3. Notes on the receiving water conditions shall be summarized in the monthly eSMR as an attachment.

B. Monitoring Locations - RGW-001, RGW-002, and RGW-004

1. The Discharger shall monitor groundwater at RGW-001, RGW-002, and RGW-004 as follows:

Table E-7. Groundwater Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Depth to Groundwater	±0.01 feet	Measurement	1/Quarter	--
Groundwater Elevation ¹	±0.01 feet	Calculated	1/Quarter	--
Gradient	feet/feet	Calculated	1/Quarter	--
Gradient Direction	degrees	Calculated	1/Quarter	--
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Quarter	2
Total Dissolved Solids	mg/L	Grab	1/Quarter	2
Temperature	Degrees F	meter	1/Quarter	2
pH	standard units	Grab	1/Quarter	2
Fecal Coliform Organisms	MPN/100 mL	Grab	1/Quarter	2
Nitrate Nitrogen, Total (as N)	mg/L	Grab	1/Quarter	2
Standard Minerals ³	µg/L	Grab	1/Quarter	2

¹ Groundwater elevation shall be determined based on depth-to-water measurements from a surveyed measuring point elevation on the well. The groundwater elevation shall be used to calculate the direction and gradient of groundwater flow, which must be reported.

² Pollutants shall be analyzed using the analytical methods described in 40 CFR Part 136 or by methods approved by the Central Valley Water Board or the State Water Board.

³ Standard minerals shall include the following: boron, calcium, iron, magnesium, potassium, sodium, chloride, manganese, phosphorus, total alkalinity (including alkalinity series), and hardness, and include verification that the analysis is complete (i.e., cation/anion balance).

C. Monitoring Location – RGW-003

1. Prior to construction and/or beginning a sampling program of any new groundwater monitoring wells, the Discharger shall submit plans and specifications to the Central Valley Water Board for approval. Once installed, all new wells shall be added to the monitoring network (which currently consists of Monitoring Well Nos. RGW-001 through RGW-004) and shall be sampled and analyzed according to the schedule below. All samples shall be collected using approved EPA methods. Water table elevations shall be calculated to determine groundwater gradient and direction of flow.
2. Prior to sampling, the groundwater elevations shall be measured and the wells shall be purged of at least three well volumes until temperature, pH, and electrical conductivity have stabilized. Depth to groundwater shall be measured to the nearest 0.01 feet. Groundwater monitoring at RGW-003, and any new groundwater monitoring wells shall include, at a minimum, the following:

Table E-8. Groundwater Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Depth to Groundwater	±0.01 feet	Measurement	1/Month	--

Groundwater Elevation ¹	±0.01 feet	Calculated	1/Month	--
Gradient	feet/feet	Calculated	1/Month	--
Gradient Direction	degrees	Calculated	1/Month	--
Electrical Conductivity @ 25°C	µmhos/cm	Grab	1/Month	2
Total Dissolved Solids	mg/L	Grab	1/Month	2
Temperature	Degrees F	meter	1/Month	2
pH	standard units	Grab	1/Month	2
Total Coliform Organisms	MPN/100 mL	Grab	1/Month	2
Nitrate Nitrogen, Total (as N)	mg/L	Grab	1/Month	2
Standard Minerals ³	µg/L	Grab	1/Month	2

¹ Groundwater elevation shall be determined based on depth-to-water measurements from a surveyed measuring point elevation on the well. The groundwater elevation shall be used to calculate the direction and gradient of groundwater flow, which must be reported.

² Pollutants shall be analyzed using the analytical methods described in 40 CFR Part 136 or by methods approved by the Central Valley Water Board or the State Water Board.

³ Standard minerals shall include the following: boron, calcium, iron, magnesium, potassium, sodium, chloride, manganese, phosphorus, total alkalinity (including alkalinity series), and hardness, and include verification that the analysis is complete (i.e., cation/anion balance).

IX. OTHER MONITORING REQUIREMENTS

A. Biosolids

1. Monitoring Location BIO-001

- A composite sample of sludge shall be collected annually at Monitoring Location BIO-001 in accordance with EPA's *POTW Sludge Sampling and Analysis Guidance Document*, August 1989, and tested for priority pollutants listed in 40 C.F.R. part 122, Appendix D, Tables II and III (excluding total phenols).
- Biosolids monitoring shall be conducted using the methods in Test Methods for Evaluating Solid Waste, Physical/Chemical methods (EPA publication SW-846), as required in 40 C.F.R. section 503.8(b)(4). All results must be reported on a 100% dry weight basis. Records of all analyses must state on each page of the laboratory report whether the results are expressed in "100% dry weight" or "as is."
- Sampling records shall be retained for a minimum of **5 years**. A log shall be maintained of sludge quantities generated and of handling and disposal activities. The frequency of entries is discretionary; however, the log must be complete enough to serve as a basis for part of the annual report.

B. Municipal Water Supply

1. Monitoring Location SPL-001

- The Discharger shall monitor the municipal water supply at SPL-001 as follows:

Table E-9. Municipal Water Supply Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Total Dissolved Solids ¹	mg/L	Grab	1/Year	2
Electrical Conductivity @ 25°C ¹	µmhos/cm	Grab	1/Year	2

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
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- ¹ If the water supply is from more than one source, the total dissolved solids and electrical conductivity shall be reported as a weighted average and include copies of supporting calculations.
- ² Pollutants shall be analyzed using the analytical methods described in 40 C.F.R. part 136 or by methods approved by the Central Valley Water Board or the State Water Board.

C. Filtration System and Ultraviolet Light (UV) Disinfection System

1. Monitoring Locations UVS-001 and FIL-001

- a. The Discharger shall monitor the filtration system at Monitoring Location FIL-001 and the UV disinfection system at Monitoring Location UVS-001 as follows:

Table E-10. Filtration System and UV Disinfection System Monitoring Requirements

Parameter	Units	Sample Type	Monitoring Location	Minimum Sampling Frequency
Flow	MGD	Meter	UVS-001	Continuous ¹
Turbidity	NTU	Meter	FIL-001	Continuous ^{1, 2}
Number of UV banks in operation	Number	Observation	N/A	Continuous ¹
UV Transmittance	Percent (%)	Meter	UVS-001	Continuous ¹
Total Coliform Organisms	MPN/100mL	Grab	UVS-001	3/Week

- ¹ For continuous analyzers, the Discharger shall report documented routine meter maintenance activities including date, time of day, and duration, in which the analyzer(s) is not in operation. If analyzer(s) fail to provide continuous monitoring for more than two hours and influent and/or effluent from the disinfection process is not diverted for retreatment, the Discharger shall obtain and report hourly manual and/or grab sample results. The Discharger shall not decrease power settings or reduce the number of UV lamp banks in operation while the continuous analyzers are out of service and water is being disinfected.
- ² Report daily average and maximum turbidity.

D. Effluent and Receiving Water Characterization

1. **Quarterly Monitoring (2019).** Quarterly samples shall be collected from the effluent and one sample shall be collected from the upstream receiving water (Monitoring Locations EFF-001 and RSW-001U, respectively) and analyzed for the constituents listed in Table E-11, below. Quarterly effluent monitoring (four consecutive samples, evenly distributed throughout the year) and the receiving water monitoring (during the wet season) shall be conducted during 2019 and the results of such monitoring shall be submitted to the Central Valley Water Board with the monthly self-monitoring reports. Each individual monitoring event shall provide representative sample results for the effluent and upstream receiving water.
2. **Concurrent Sampling.** Effluent and receiving water sampling shall be performed at approximately the same time, on the same date.
3. **Sample Type.** All receiving water samples shall be taken as grab samples. Effluent samples shall be taken as described in Table E-11, below.

Table E-11. Effluent and Receiving Water Characterization Monitoring

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
2- Chloroethyl vinyl ether	µg/L	Grab	1
Acrolein	µg/L	Grab	2

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
Acrylonitrile	µg/L	Grab	2
Benzene	µg/L	Grab	0.5
Bromoform	µg/L	Grab	0.5
Carbon Tetrachloride	µg/L	Grab	0.5
Chlorobenzene	µg/L	Grab	0.5
Chloroethane	µg/L	Grab	0.5
Chloroform	µg/L	Grab	2
Chloromethane	µg/L	Grab	2
Dibromochloromethane	µg/L	Grab	0.5
Dichlorobromomethane	µg/L	Grab	0.5
Dichloromethane	µg/L	Grab	2
Ethylbenzene	µg/L	Grab	2
Hexachlorobenzene	µg/L	Grab	1
Hexachlorobutadiene	µg/L	Grab	1
Hexachloroethane	µg/L	Grab	1
Methyl bromide (Bromomethane)	µg/L	Grab	1
Naphthalene	µg/L	Grab	10
3-Methyl-4-Chlorophenol	µg/L	Grab	--
Tetrachloroethene	µg/L	Grab	0.5
Toluene	µg/L	Grab	2
trans-1,2-Dichloroethylene	µg/L	Grab	1
Trichloroethene	µg/L	Grab	2
Vinyl chloride	µg/L	Grab	0.5
Methyl-tert-butyl ether (MTBE)	µg/L	Grab	--
Trichlorofluoromethane	µg/L	Grab	
1,1,1-Trichloroethane	µg/L	Grab	0.5
1,1,2-Trichloroethane	µg/L	Grab	0.5
1,1-dichloroethane	µg/L	Grab	0.5
1,1-dichloroethylene	µg/L	Grab	0.5
1,2-dichloropropane	µg/L	Grab	0.5
1,3-dichloropropylene	µg/L	Grab	0.5
1,1,2,2-tetrachloroethane	µg/L	Grab	0.5
1,1,2-Trichloro-1,2,2-Trifluoroethane	µg/L	Grab	0.5
1,2,4-trichlorobenzene	µg/L	Grab	1
1,2-dichloroethane	µg/L	Grab	0.5
1,2-dichlorobenzene	µg/L	Grab	0.5
1,3-dichlorobenzene	µg/L	Grab	0.5
1,4-dichlorobenzene	µg/L	Grab	0.5
1,2-Benzanthracene	µg/L	Grab	5
1,2-Diphenylhydrazine	µg/L	Grab	1
2-Chlorophenol	µg/L	Grab	5
2,4-Dichlorophenol	µg/L	Grab	5
2,4-Dimethylphenol	µg/L	Grab	2
2,4-Dinitrophenol	µg/L	Grab	5
2,4-Dinitrotoluene	µg/L	Grab	5
2,4,6-Trichlorophenol	µg/L	Grab	10
2,6-Dinitrotoluene	µg/L	Grab	5
2-Nitrophenol	µg/L	Grab	10
2-Chloronaphthalene	µg/L	Grab	10
3,3'-Dichlorobenzidine	µg/L	Grab	5

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
3,4-Benzofluoranthene	µg/L	Grab	10
4-Chloro-3-methylphenol	µg/L	Grab	5
4,6-Dinitro-2-methylphenol	µg/L	Grab	10
4-Nitrophenol	µg/L	Grab	10
4-Bromophenyl phenyl ether	µg/L	Grab	10
4-Chlorophenyl phenyl ether	µg/L	Grab	5
Acenaphthene	µg/L	Grab	1
Acenaphthylene	µg/L	Grab	10
Anthracene	µg/L	Grab	10
Benzidine	µg/L	Grab	5
Benzo(a)pyrene (3,4-Benzopyrene)	µg/L	Grab	2
Benzo(g,h,i)perylene	µg/L	Grab	5
Benzo(k)fluoranthene	µg/L	Grab	2
Bis(2-chloroethoxy) methane	µg/L	Grab	5
Bis(2-chloroethyl) ether	µg/L	Grab	1
Bis(2-chloroisopropyl) ether	µg/L	Grab	10
Bis(2-ethylhexyl) phthalate ²	µg/L	Grab	5
Butyl benzyl phthalate	µg/L	Grab	10
Chrysene	µg/L	Grab	5
Di-n-butylphthalate	µg/L	Grab	10
Di-n-octylphthalate	µg/L	Grab	10
Dibenzo(a,h)-anthracene	µg/L	Grab	0.1
Diethyl phthalate	µg/L	Grab	10
Dimethyl phthalate	µg/L	Grab	10
Fluoranthene	µg/L	Grab	10
Fluorene	µg/L	Grab	10
Hexachlorocyclopentadiene	µg/L	Grab	5
Indeno(1,2,3-c,d)pyrene	µg/L	Grab	0.05
Isophorone	µg/L	Grab	1
N-Nitrosodiphenylamine	µg/L	Grab	1
N-Nitrosodimethylamine	µg/L	Grab	5
N-Nitrosodi-n-propylamine	µg/L	Grab	5
Nitrobenzene	µg/L	Grab	10
Pentachlorophenol	µg/L	Grab	1
Phenanthrene	µg/L	Grab	5
Phenol	µg/L	Grab	1
Pyrene	µg/L	Grab	10
Aluminum	µg/L	24-hr Composite ³	--
Antimony	µg/L	24-hr Composite ³	5
Arsenic	µg/L	24-hr Composite ³	10
Asbestos	MFL	24-hr Composite ³	--
Beryllium	µg/L	24-hr Composite ³	2
Cadmium	µg/L	24-hr Composite ³	0.5
Chromium (Total)	µg/L	24-hr Composite ³	10
Chromium (VI)	µg/L	24-hr Composite ³	10
Copper	µg/L	24-hr Composite ³	0.5
Cyanide	µg/L	24-hr Composite ³	5
Fluoride	µg/L	24-hr Composite ³	--
Iron	µg/L	24-hr Composite ³	--
Lead	µg/L	24-hr Composite ³	0.5

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WASTEWATER TREATMENT PLANT

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Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
Mercury	µg/L	Grab	0.5
Manganese	µg/L	24-hr Composite ³	--
Nickel	µg/L	24-hr Composite ³	20
Selenium	µg/L	24-hr Composite ³	5
Silver	µg/L	24-hr Composite ³	0.25
Thallium	µg/L	24-hr Composite ³	1
Tributyltin	µg/L	24-hr Composite ³	--
Zinc	µg/L	24-hr Composite ³	20
4,4'-DDD	µg/L	24-hr Composite ³	0.05
4,4'-DDE	µg/L	24-hr Composite ³	0.05
4,4'-DDT	µg/L	24-hr Composite ³	0.01
alpha-Endosulfan	µg/L	24-hr Composite ³	0.02
alpha-Hexachlorocyclohexane (BHC)	µg/L	24-hr Composite ³	0.01
Aldrin	µg/L	24-hr Composite ³	0.005
beta-Endosulfan	µg/L	24-hr Composite ³	0.01
beta-Hexachlorocyclohexane	µg/L	24-hr Composite ³	0.005
Chlordane	µg/L	24-hr Composite ³	0.1
delta-Hexachlorocyclohexane	µg/L	24-hr Composite ³	0.005
Dieldrin	µg/L	24-hr Composite ³	0.01
Endosulfan sulfate	µg/L	24-hr Composite ³	0.01
Endrin	µg/L	24-hr Composite ³	0.01
Endrin Aldehyde	µg/L	24-hr Composite ³	0.01
Heptachlor	µg/L	24-hr Composite ³	0.01
Heptachlor Epoxide	µg/L	24-hr Composite ³	0.02
Lindane (gamma-Hexachlorocyclohexane)	µg/L	24-hr Composite ³	0.5
PCB-1016	µg/L	24-hr Composite ³	0.5
PCB-1221	µg/L	24-hr Composite ³	0.5
PCB-1232	µg/L	24-hr Composite ³	0.5
PCB-1242	µg/L	24-hr Composite ³	0.5
PCB-1248	µg/L	24-hr Composite ³	0.5
PCB-1254	µg/L	24-hr Composite ³	0.5
PCB-1260	µg/L	24-hr Composite ³	0.5
Toxaphene	µg/L	24-hr Composite ³	--
2,3,7,8-TCDD (Dioxin)	µg/L	24-hr Composite ³	--
Ammonia (as N) ⁴	mg/L	24-hr Composite ³	--
Boron	µg/L	24-hr Composite ³	--
Chloride	mg/L	24-hr Composite ³	--
Flow	MGD	Meter	--
Hardness (as CaCO ₃) ⁴	mg/L	Grab	--
Foaming Agents (MBAS)	µg/L	24-hr Composite ³	--
Mercury, Methyl	ng/L	Grab	--
Nitrate (as N) ⁴	mg/L	24-hr Composite ³	--
Nitrite (as N) ⁴	mg/L	24-hr Composite ³	--
pH	Std Units	Grab	--
Phosphorus, Total (as P)	mg/L	24-hr Composite ³	--
Specific conductance (EC) ⁴	µmhos/cm	24-hr Composite ³	--
Sulfate	mg/L	24-hr Composite ³	--
Sulfide (as S)	mg/L	24-hr Composite ³	--
Sulfite (as SO ₃)	mg/L	24-hr Composite ³	--

Parameter	Units	Effluent Sample Type	Maximum Reporting Level ¹
Temperature ⁴	°C	Grab	--
Total Dissolved Solids (TDS) ⁴	mg/L	24-hr Composite ³	--

¹ The reporting levels required in this table for priority pollutant constituents are established based on Section 2.4.2 and Appendix 4 of the SIP.

² In order to verify if bis (2-ethylhexyl) phthalate is truly present, the Discharger shall take steps to assure that sample containers, sampling apparatus, and analytical equipment are not sources of the detected contaminant.

³ 24-hour flow proportional composite.

⁴ The Discharger is not required to conduct effluent monitoring for constituents that have already been sampled in a given month, as required in Table E-3, except for hardness, pH, and temperature, which shall be conducted concurrently with the effluent sampling.

X. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

1. The Discharger shall comply with all Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.
2. Upon written request of the Central Valley Water Board, the Discharger shall submit a summary monitoring report. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year(s).
3. The Discharger shall report to the Central Valley Water Board any toxic chemical release data it reports to the State Emergency Response Commission within 15 days of reporting the data to the Commission pursuant to section 313 of the "Emergency Planning and Community Right to Know Act" of 1986.

B. Self-Monitoring Reports (SMRs)

1. The Discharger shall electronically submit SMRs using the State Water Board's California Integrated Water Quality System (CIWQS) Program Web site (<http://www.waterboards.ca.gov/ciwqs/index.html>). The CIWQS Web site will provide additional information for SMR submittal in the event there will be a planned service interruption for electronic submittal.
2. The Discharger shall report in the SMR the results for all monitoring specified in this MRP under sections III through IX. The Discharger shall submit monthly, SMRs including the results of all required monitoring using U.S. EPA-approved test methods or other test methods specified in this Order. SMRs are to include all new monitoring results obtained since the last SMR was submitted. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
3. Monitoring periods and reporting for all required monitoring shall be completed according to the following schedule:

Table E-12. Monitoring Periods and Reporting Schedule

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
Continuous	Permit effective date	All	Submit with monthly SMR
1/Day	Permit effective date	(Midnight through 11:59 PM) or any 24-hour period that reasonably represents a	Submit with monthly SMR

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
		calendar day for purposes of sampling.	
1/Week	Permit effective date	Sunday through Saturday	Submit with monthly SMR
3/Week	Permit effective date	Sunday through Saturday	Submit with monthly SMR
1/Month	Permit effective date	1 st day of calendar month through last day of calendar month	First day of second calendar month following month of sampling
2/Month	Permit effective date	1 st day of calendar month through last day of calendar month	First day of second calendar month following month of sampling
1/Quarter	Permit effective date	1 January through 31 March 1 April through 30 June 1 July through 30 September 1 October through 31 December	1 May 1 August 1 November 1 February of following year
1/Year	Permit effective date	1 January through 31 December	1 February of following year
2/Year	Permit effective date	1 January through 30 June 1 July through 31 December	1 August 1 February of following year

4. **Reporting Protocols.** The Discharger shall report with each sample result the applicable Reporting Level (RL) and the current laboratory's Method Detection Limit (MDL), as determined by the procedure in 40 C.F.R. part 136.

The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- Sample results greater than or equal to the RL shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- Sample results less than the RL, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.

- Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
- Dischargers are to instruct laboratories to establish calibration standards so that the Minimum Level (ML) value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no

time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.

5. **Multiple Sample Data.** When determining compliance with an AMEL, AWEL, or MDEL for priority pollutants and more than one sample result is available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND). In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
 - a. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
 - b. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.
6. The Discharger shall submit SMRs in accordance with the following requirements:
 - a. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.
 - b. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the WDR's; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.
 - c. The Discharger shall attach all laboratory analysis sheets, including quality assurance/quality control information, with all its SMRs for which sample analyses were performed.
7. The Discharger shall submit in the SMRs calculations and reports in accordance with the following requirements:
 - a. **Calendar Annual Average Limitations.** For constituents with effluent limitations specified as "calendar annual average" (electrical conductivity) the Discharger shall report the calendar annual average in the December SMR. The annual average shall be calculated as the average of the samples gathered for the calendar year.
 - b. **Mass Loading Limitations.** For BOD₅, TSS, and ammonia, the Discharger shall calculate and report the mass loading (lbs/day) in the SMRs. The mass loading shall be calculated as follows:

$$\text{Mass Loading (lbs/day)} = \text{Flow (MGD)} \times \text{Concentration (mg/L)} \times 8.34$$

When calculating daily mass loading, the daily average flow and constituent concentration shall be used. For weekly average mass loading, the weekly average

flow and constituent concentration shall be used. For monthly average mass loading, the monthly average flow and constituent concentration shall be used.

- c. **Removal Efficiency (BOD₅ and TSS).** The Discharger shall calculate and report the percent removal of BOD₅ and TSS in the SMRs. The percent removal shall be calculated as specified in Section VII.A. of the Limitations and Discharge Requirements.
- d. **Total Coliform Organisms Effluent Limitations.** The Discharger shall calculate and report the 7-day median of total coliform organisms for the effluent. The 7 day median of total coliform organisms shall be calculated as specified in Section VII.D of the Limitations and Discharge Requirements.
- e. **Dissolved Oxygen Receiving Water Limitations.** The Discharger shall calculate and report monthly in the self-monitoring report: i) the dissolved oxygen concentration, ii) the percent of saturation in the main water mass, and iii) the 95th percentile dissolved oxygen concentration.
- f. **Turbidity Receiving Water Limitations.** The Discharger shall calculate and report the turbidity increase in the receiving water applicable to the natural turbidity condition specified in Section V.A.16.a-e. of the Limitations and Discharge Requirements. If there is no flow at RSW-001U at time of sampling, no RSW-001U sample is required, however, reporting the lack of flow is required. Flow is a downstream movement of water in sufficient volume to grab a reliable sample. Any effluent limitation dependent upon available flow in the receiving water shall not be considered in violation, if no flow is available for sampling.
- g. **Temperature Receiving Water Limitations.** The Discharger shall calculate and report the temperature increase in the receiving water based on the difference in temperature at Monitoring Locations RSW-001U and RSW-001D.

C. Discharge Monitoring Reports (DMR's)

1. The Discharger operates a "minor" facility, and thus is excepted from submitting DMR's under these requirements. However, at any time during the term of this permit, the State Water Board or Central Valley Water Board may notify the discharger to electronically submit DMR's, at which time this exception will no longer apply.

If notified, the Discharger shall electronically submit DMR's together with SMR's using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic submittal of DMR's will be in addition to electronic submittal of SMRs. Information about electronic submittal of DMR's is provided by the Discharge Monitoring Report website as follows:
(http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring/).

D. Other Reports

1. **Special Study Reports and Progress Reports.** As specified in the compliance time schedules required in the Special Provisions contained in section VI of the Order, special study and progress reports shall be submitted in accordance with the following reporting requirements. At minimum, the progress reports shall include a discussion of the status of final compliance, whether the Discharger is on schedule to meet the final compliance date, and the remaining tasks to meet the final compliance date.

Table E-13. Reporting Requirements for Special Provisions Reports

Special Provision	Reporting Requirements
Salinity Evaluation and Minimization Plan, Annual Reports (Special Provision VI.C.3.a)	1 February , annually
Salinity Evaluation and Minimization Plan, Updated Plan (only submit if applicable - Special Provision VI.C.3.a)	1 April following the calendar year in which the effluent electrical conductivity annual average of 1,500 µmhos/cm was exceeded

2. The Discharger shall report the results of any special studies, acute and chronic toxicity testing, TRE/TIE, Toxicity Evaluation Study, PMP, and Pollution Prevention Plan required by Special Provisions – VI.C. The Discharger shall submit reports with the first monthly SMR scheduled to be submitted on or immediately following the report due date.
3. Within **60 days of permit adoption**, the Discharger shall submit a report outlining reporting levels (RL's), method detection limits (MDL's), and analytical methods for the constituents listed in tables E-2, E-3, E-5, E-6, E-7, and E-8. In addition, **no less than 6 months** prior to conducting the effluent and receiving water characterization monitoring required in Section IX. D, the Discharger shall submit a report outlining RL's, MDL's, and analytical methods for the constituents listed in Table E-11. The Discharger shall comply with the monitoring and reporting requirements for CTR constituents as outlined in section 2.3 and 2.4 of the SIP. The maximum required reporting levels for priority pollutant constituents shall be based on the Minimum Levels (ML's) contained in Appendix 4 of the SIP, determined in accordance with Section 2.4.2 and Section 2.4.3 of the SIP. In accordance with Section 2.4.2 of the SIP, when there is more than one ML value for a given substance, the Central Valley Water Board shall include as RL's, in the permit, all ML values, and their associated analytical methods, listed in Appendix 4 that are below the calculated effluent limitation. The Discharger may select any one of those cited analytical methods for compliance determination. If no ML value is below the effluent limitation, then the Central Valley Water Board shall select as the RL, the lowest ML value, and its associated analytical method, listed in Appendix 4 for inclusion in the permit. **Table E-11** provides required maximum reporting levels in accordance with the SIP.
4. **Annual Operations Report. By 30 January of each year**, the Discharger shall submit a written report to the Executive Officer containing the following:
 - a. The names, certificate grades, and general responsibilities of all persons employed at the Facility.
 - b. The names and telephone numbers of persons to contact regarding the plant for emergency and routine situations.
 - c. A statement certifying when the flow meter(s) and other monitoring instruments and devices were last calibrated, including identification of who performed the calibration.
 - d. A statement certifying whether the current operation and maintenance manual, and contingency plan, reflect the wastewater treatment plant as currently constructed

and operated, and the dates when these documents were last revised and last reviewed for adequacy.

- e. The Discharger may also be requested to submit an annual report to the Central Valley Water Board with both tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the compliance record. If violations have occurred, the report shall also discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements.

ATTACHMENT F – FACT SHEET

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ATTACHMENT F – FACT SHEET

As described in section II.B of this Order, the Central Valley Water Board incorporates this Fact Sheet as findings of the Central Valley Water Board supporting the issuance of this Order. This Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for Dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the Facility.

Table F-1. Facility Information

WDID	5A060101001
CIWQS Facility Place ID	215225
Discharger	City of Colusa
Name of Facility	Wastewater Treatment Plant
Facility Address	2820 Will S Green Rd.
	Colusa, CA 95932
	Colusa County
Facility Contact, Title and Phone	Jesse Cain, Public Works/Utilities Administrator, (530) 458-3320
Authorized Person to Sign and Submit Reports	Jesse Cain, Public Works/Utilities Administrator, (530) 458-3320
Mailing Address	425 Webster Street, Colusa, CA 95932
Billing Address	SAME
Type of Facility	Publicly Owned Treatment Works
Major or Minor Facility	Minor
Threat to Water Quality	2
Complexity	B
Pretreatment Program	No
Recycling Requirements	none
Facility Permitted Flow	0.7 million gallons per day (mgd)
Facility Design Flow	0.7 million gallons per day (average dry weather flow)
Watershed	Sacramento River Watershed
Receiving Water	Unnamed tributary to Powell Slough
Receiving Water Type	Inland surface water

- A. The City of Colusa (hereinafter Discharger) is the owner and operator of the Colusa Wastewater Treatment Plant (hereinafter WWTP or Facility), a POTW.

For the purposes of this Order, references to the “discharger” or “permittee” in applicable

federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

- B.** The Facility discharges wastewater to an unnamed tributary to Powell Slough, a water of the United States, tributary to the Colusa Basin Drain within the Sacramento River Watershed. The Discharger was previously regulated by Order R5-2008-0184 and National Pollutant Discharge Elimination System (NPDES) Permit No. CA0078999 adopted on 5 December 2008 and expired on 1 December 2013. Attachment B provides a map of the area around the Facility. Attachment C provides a flow schematic of the Facility.

Prior to making any change in the point of discharge, place of use, or purpose of use of treated wastewater that results in a decrease of flow in any portion of a watercourse, the Discharger must file a petition with the State Water Board, Division of Water Rights, and receive approval for such a change. The State Water Board retains the jurisdictional authority to enforce such requirements under Water Code section 1211.

- C.** The Discharger filed a report of waste discharge (ROWD) and submitted an application for reissuance of its WDR's and NPDES permit on 13 June 2013. Supplemental information was received on 16 October 2013. The application was deemed complete on 12 May 2014. A site visit was conducted on 27 January 2016, to observe operations and collect additional data to develop permit limitations and requirements for waste discharge.

II. FACILITY DESCRIPTION

The Discharger provides sewerage service for the community of City of Colusa and serves a population of approximately 6,000. The design daily average flow capacity of the Facility is 0.7 million gallons per day (MGD).

A. Description of Wastewater and Biosolids Treatment and Controls

The treatment process includes an influent pump station, plant headworks with mechanical screens and flow metering, a nitrifying activated sludge system (an aeration basin, air blowers, secondary clarifier, and return sludge pump station), tertiary filtration facilities (chemical addition, flocculation, and cloth media filtration), ultraviolet (UV) light disinfection, and an effluent re-aeration basin and pump station. Sludge is anaerobically digested and dewatered using a belt filter press. Dried biosolids are hauled to a landfill.

B. Discharge Points and Receiving Waters

1. The Facility is located in Section 1, T15N, R2W, MDB&M, as shown in Attachment B (Figure B-1), a part of this Order.
2. Treated municipal wastewater is discharged at Discharge Point 001 to an unnamed tributary of Powell Slough, a water of the United States *and a tributary to* the Colusa Basin Drain at a point latitude N39°, 10', 50" N and longitude 122°, 01', 48" W.
3. The unnamed tributary to Powell Slough and Powell Slough are tributary to the Colusa Basin Drain. The Colusa Basin Drain discharges to either the Sacramento River at Knights Landing or may be diverted to the Yolo Bypass through the Knights Landing Ridge. The Colusa Basin Drain and the Yolo Bypass are specifically not designated as having MUN beneficial use. The Sacramento River has MUN beneficial use. Both the Yolo Bypass and the Sacramento River discharge to the Sacramento/San Joaquin Delta.
4. In April 2016 the US EPA approved a Basin Plan Amendment (BPA) to dedesignate the municipal (MUN) beneficial use from the unnamed tributary to Powell Slough and Powell

Slough. Final approval of the BPA removed the MUN beneficial use (BU) from the discharge. Therefore the monitoring requirements and effluent limitations associated with the MUN BU are excluded from this permit.

C. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data

Effluent limitations contained in Order R5-2008-0184 for discharges from Discharge Point 001 Monitoring Location EFF-001 and representative monitoring data from the term of Order R5-2008-0184 are as follows:

Table F-2. Historic Effluent Limitations and Monitoring Data

Parameter	Units	Effluent Limitation			Monitoring Data (June 2012 – January 2016)		
		Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	20	9.2	5.6	34
	lbs/day ¹	58	88	120	54	33	200
	% Removal ²	85	--	--	--	--	--
Total Suspended Solids	mg/L	10	15	20	2	9.5	13
	lbs/day ¹	58	88	120	12	56	76
	% Removal ²	85	--	--	--	--	--
pH	standard units	--	--	6.5-8.5	--	--	6.5-8.7
Turbidity	NTU	--	--	2/5/10	4.4	6.2	9.9
Settleable Solids	mL/L	0.1	--	0.2	0.1	--	0.1
Chlorodibromomethane	µg/L	0.41	--	0.82	10	--	10
Dichlorobromomethane	µg/L	0.56	--	1.1	2.4	--	2.4
Total Trihalomethanes	µg/L	80 ⁶	--	280	29	--	29
Aluminum	µg/L	330	--	750	46	--	46
Copper	µg/L	8.1	--	13	8	--	8
Iron	µg/L	300 ⁶	--	--	--	--	55 ⁵
Total Mercury	ng/L	--	--	--	8	--	--
	lbs/day ¹	0.098 ⁶	--	--	0.016 ³	--	--
Ammonia 1 April – 15 November	mg/L	0.60 ¹⁸	--	1.2	0.16 ¹⁹	0.6	1.2
	lbs/day ¹	3.5	--	7.0	0.9	3.5	7.0
Ammonia 16 November – 31 March	mg/L	1.2	--	2.1	0.5	0.5	0.56
	lbs/day ¹	7.0	--	12	2.9	2.9	3.2
Electrical Conductivity @ 25°C	µmhos/cm	4	--	--	928 ⁵	--	--
Manganese, Total Recoverable	µg/L	50 ⁶	--	--	1.6 ⁵	--	--
	µg/L	500 ⁶	--	--	0.18 ⁵	--	--

Parameter	Units	Effluent Limitation			Monitoring Data (June 2012 – January 2016)		
		Average Monthly	Average Weekly	Maximum Daily	Highest Average Monthly Discharge	Highest Average Weekly Discharge	Highest Daily Discharge
Methylene Active Blue Substances	lbs/day ¹	2.9			0.001		
Nitrate plus Nitrite, Total (as N)	mg/L	10	--	--	41.5	--	--
	lbs/day ¹	2	--	--	8	--	--
Total Coliform Organisms	MPN/100 mL	--	2.2 ⁷	23 ⁸ /240 ⁹	20	--	79
Total Residual Chlorine	mg/L	0.01 ¹⁰	--	0.02 ¹¹	0.005	--	0.05
Acute Toxicity	% Survival	--	--	70 ¹² /90 ¹³	--	--	85 ¹⁴
Chronic Toxicity	TUc	--	--	¹⁵	--	--	>1
Average Dry Weather Flow	MGD	--	--	0.70 ¹⁶	--	--	0.58 ¹⁷

NR = Not Reported

- ¹ Based on design average dry weather flow of 0.70 MGD.
- ² Lowest monthly percent removal.
- ³ The effluent mass mercury loading to Powell Slough shall not exceed 0.098 pounds as a twelve month running average.
- ⁴ The annual average effluent electrical conductivity shall not exceed 1500 µmhos/cm.
- ⁵ Maximum observed annual average.
- ⁶ Applied as an annual average.
- ⁷ Applied as a 7-day median effluent limitation.
- ⁸ Not to be exceeded more than once in any 30-day period.
- ⁹ Applied as an instantaneous maximum effluent limitation.
- ¹⁰ Applied as a 4-day average effluent limitation.
- ¹¹ Applied as a 1-hour average effluent limitation.
- ¹² Minimum reported for any one bioassay.
- ¹³ Median for any three consecutive bioassays.
- ¹⁴ Lowest reported percent survival.
- ¹⁵ There shall be no chronic toxicity in the effluent discharge.
- ¹⁶ The average dry weather flow shall not exceed 0.70 MGD.
- ¹⁷ Represents the maximum observed average daily flow.

D. Compliance Summary

1. The Central Valley Water Board issued Administrative Civil Liability (ACL) Order R5-2008-0535 on 1 October 2008 for exceedance of ammonia, aluminum, BOD, total coliform organisms, suspended solids, total residual chlorine, total suspended solids, and turbidity. The Discharger completed upgrades of an estimated \$15,500,000 which included constructing a new wastewater treatment plant to meet effluent limitations to satisfy this ACL.
2. ACL Order R5-2010-0517 subjected the Discharger to MMP for exceedance of total coliform organism limits in the amount of \$84,000. The ACL was satisfied through the completion a compliance project which included viral bioassay testing, re-coating the UV Channel, expanding tertiary filters, and particle size testing.

3. ACL Order R5-2010-0518 was issued on 10 June 2010 for exceedance of aluminum, ammonia, BOD, total coliform organisms, suspended solids, and TSS in the amount of \$78,000. This was satisfied through the completion of the new wastewater treatment plant.
4. ACL Order R5-2011-0519 was issued on 4 February 2011 for exceedance of total coliform organisms in the amount of \$3,000. This was satisfied through the completion of the new wastewater treatment plant.
5. ACL Order R5-2013-0532 was issued on 23 April 2013 for exceedance of copper in the amount of \$3,000. This ACL was satisfied through payment.
6. ACL Order R5-2014-0581 was issued on 25 November 2014 for exceedance of BOD, chlorodibromomethane, and dichlorobromomethane in the amount of \$21,000. Exceedance of chlorine-related constituent's dichlorobromomethane and chlorodibromomethane were addressed by purchasing new diffusers for the aeration tank with a project cost of \$13,800. The remaining amount was settled by payment.
7. ACL Order R5-2015-0516 was issued on 9 March 2015 for exceedance of BOD in the amount of \$3,000. This ACL was satisfied by payment.

E. Planned Changes

Planned upgrades will include a high speed turbo blower, second secondary clarifier, splitter box, RAS pump, and groundwater pump station. Since the Facility upgraded to include two sludge storage basins and an equalization basin, the equalization basin experienced a failure in 2010. Proposed upgrades to the Facility include making improvements to the equalization basin including adding a subsurface drainage system below the HDPE liner, replacing the HDPE liner, and adding paved equipment access and a concrete protective layer over the HDPE bottom in addition to adding a second secondary clarifier and Biolac basin upgrades to enhance nitrification/denitrification.

The Facility also plans to explore recycled water use. Upgrades include a secondary treatment basin and Biolac basin to enhance the nitrification/denitrification process and the addition of a seasonal storage pond and an additional 20 days of emergency storage. Potential reclamation uses include the irrigation of alfalfa crops in the surrounding area. Water will be applied using a sprinkler system with a tail water return system to return water to the irrigation storage pond. The Discharger has applied for funding from the State Revolving Fund Loan and Grant Program to provide funding for these upgrades and the addition of recycled water use.

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order serves as WDR's pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. EPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit for point source discharges from this Facility to surface waters. This Order also serves as a Master Recycling Permit pursuant to article 4, chapter 7, division 7 of the Water Code (commencing with section 13500).

B. California Environmental Quality Act (CEQA)

Under Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of Chapter 3 of CEQA, (commencing with section 21100) of Division 13 of the Public Resources Code.

C. State and Federal Laws, Regulations, Policies, and Plans

1. **Water Quality Control Plans.** Requirements of this Order specifically implement the applicable Water Quality Control Plans.
 - a. **Basin Plan.** The Central Valley Water Board adopted a Water Quality Control Plan for the Water Quality Control Plan, Fourth Edition (Revised April 2016), for the Sacramento and San Joaquin River Basins (hereinafter Basin Plan) that designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the plan. Requirements in this Order implement the Basin Plan. In addition, the Basin Plan implements State Water Board Resolution 88-63, which established state policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply.
 - b. **Basin Plan Amendment (BPA).** The Central Valley Water Board adopted Resolution R5-2015-0022 on 16 April 2015. Resolution R5-2015-0022 titled *Amendment to the Water Quality Control Plan for the Sacramento River and San Joaquin River Basins to Remove the Municipal and Domestic Supply (MUN) Beneficial Use in Twelve Constructed and/or Modified Water Bodies in the Sacramento River Basin that Receive Treated Municipal Wastewater from the Cities of Biggs, Colusa, Live Oak, or Willows* is an amendment to the Basin Plan. The State Water Board adopted Resolution No. 2015-0055 approving the BPA on 18 August 2015. On 23 December 2015, the Office of Administrative Law issued its Notice of Approval of Regulatory Action thereby ratifying the BPA effective under state law. On 21 April 2016, the U.S. EPA issued its Approval of the BPA thereby ratifying the BPA effective under the federal CWA. The BPA removes the MUN beneficial use designation from Powell Slough and the unnamed tributary. Therefore, the beneficial uses applicable to the unnamed Tributary are as follows:

Table F-3. Basin Plan Beneficial Uses

Discharge Point	Receiving Water Name	Beneficial Use(s)
001	Unnamed tributary to Powell Slough	<u>Existing:</u> Agricultural (AGR); Contact water recreation (REC-1); Warm freshwater habitat (WARM); Migration of Aquatic Organisms (MIGR); Spawning, reproduction, and/or early development (SPWN); Wildlife habitat (WILD) <u>Potential:</u> Cold freshwater habitat (COLD)

2. **National Toxics Rule (NTR) and California Toxics Rule (CTR).** U.S. EPA adopted the NTR on 22 December 1992, and later amended it on 4 May 1995 and 9 November 1999.

About forty criteria in the NTR applied in California. On 18 May 2000, U.S. EPA adopted the CTR. The CTR promulgated new toxics criteria for California and, in addition, incorporated the previously adopted NTR criteria that were applicable in the state. The CTR was amended on 13 February 2001. These rules contain federal water quality criteria for priority pollutants.

3. **State Implementation Policy.** On 2 March 2000, the State Water Board adopted the Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California (State Implementation Policy or SIP). The SIP became effective on 28 April 2000, with respect to the priority pollutant criteria promulgated for California by the U.S. EPA through the NTR and to the priority pollutant objectives established by the Central Valley Water Board in the Basin Plan. The SIP became effective on 18 May 2000, with respect to the priority pollutant criteria promulgated by the U.S. EPA through the CTR. The State Water Board adopted amendments to the SIP on 24 February 2005, that became effective on 13 July 2005. The SIP establishes implementation provisions for priority pollutant criteria and objectives and provisions for chronic toxicity control. Requirements of this Order implement the SIP.
4. **Antidegradation Policy.** Federal regulation 40 C.F.R. section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution 68-16 ("Statement of Policy with Respect to Maintaining High Quality of Waters in California"). Resolution 68-16 is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. Resolution 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. The Central Valley Water Board's Basin Plan implements, and incorporates by reference, both the State and federal antidegradation policies. The permitted discharge must be consistent with the antidegradation provision of 40 C.F.R. section 131.12 and State Water Board Resolution 68-16.
5. **Anti-Backsliding Requirements.** Sections 402(o) and 303(d)(4) of the CWA and federal regulations at 40 C.F.R. section 122.44(l) restrict backsliding in NPDES permits. These anti-backsliding provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed.
6. **Domestic Water Quality.** In compliance with Water Code section 106.3, it is the policy of the State of California that every human being has the right to safe, clean, affordable, and accessible water adequate for human consumption, cooking, and sanitary purposes. This Order promotes that policy by requiring discharges to meet maximum contaminant levels designed to protect human health and ensure that water is safe for domestic use.
7. **Endangered Species Act Requirements.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code, §§ 2050 to 2097) or the Federal Endangered Species Act (16 U.S.C.A. §§ 1531 to 1544). This Order requires compliance with effluent limits, receiving water limits, and other requirements to protect the beneficial uses of waters of the state. The Discharger is responsible for meeting all requirements of the applicable Endangered Species Act.
8. **Emergency Planning and Community Right to Know Act.** Section 13263.6(a) of the Water Code, requires that *"the Regional Water Board shall prescribe effluent limitations*

as part of the waste discharge requirements of a POTW for all substances that the most recent toxic chemical release data reported to the state emergency response commission pursuant to Section 313 of the Emergency Planning and Community Right to Know Act of 1986 (42 U.S.C. Sec. 11023) (EPCRA) indicate as discharged into the POTW, for which the State Water Board or the Regional Water Board has established numeric water quality objectives, and has determined that the discharge is or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to, an excursion above any numeric water quality objective”.

The most recent toxic chemical data report does not indicate any reportable off-site releases or discharges to the collection system for this Facility. Therefore, a reasonable potential analysis based on information from EPCRA cannot be conducted. Based on information from EPCRA, there is no reasonable potential to cause or contribute to an excursion above any numeric water quality objectives included within the Basin Plan or in any State Water Board plan, so no effluent limitations are included in this permit pursuant to Water Code section 13263.6(a).

However, as detailed elsewhere in this Order, available effluent data indicate that there are constituents present in the effluent that have a reasonable potential to cause or contribute to exceedances of water quality standards and require inclusion of effluent limitations based on federal and state laws and regulations.

9. **Storm Water Requirements.** U.S. EPA promulgated federal regulations for storm water on 16 November 1990 in 40 C.F.R. parts 122, 123, and 124. The NPDES Industrial Storm Water Program regulates storm water discharges from wastewater treatment facilities. Wastewater treatment plants are applicable industries under the storm water program and are obligated to comply with the federal regulations. The State Water Board Water Quality Order No. 97-03-DWQ, NPDES General Permit No. CAS000001, Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities Excluding Construction Activities, does not require facilities to obtain coverage if storm water is captured and treated and/or disposed of with the Facility's NPDES permitted process wastewater or if storm water is disposed of to evaporation ponds, percolation ponds, or combined sewer systems. The Discharger captures and treats all storm water that falls on-site. Therefore, coverage under the General Storm Water Permit is not required.

D. Impaired Water Bodies on CWA 303(d) List

1. Under section 303(d) of the 1972 CWA, states, territories and authorized tribes are required to develop lists of water quality limited segments. The waters on these lists do not meet water quality standards, even after point sources of pollution have installed the minimum required levels of pollution control technology. On 11 October 2011 USEPA gave final approval to California's 2008-2010 section 303(d) List of Water Quality Limited Segments. The Basin Plan references this list of Water Quality Limited Segments (WQLSs), which are defined as “...those sections of lakes, streams, rivers or other fresh water bodies where water quality does not meet (or is not expected to meet) water quality standards even after the application of appropriate limitations for point sources (40 C.F.R. part 130, et seq.).” The Basin Plan also states, “Additional treatment beyond minimum federal standards will be imposed on dischargers to [WQLSs]. Dischargers will be assigned or allocated a maximum allowable load of critical pollutants so that water quality objectives can be met in the segment.” The unnamed tributary and Powell Slough are tributary to the Colusa Drain. The unnamed tributary is not listed as an

impaired water body on the 2010 303(d) list. However, the Colusa Basin Drain is listed for: azinphos-methyl (Guthion), carbofuran, DDT, diazinon, dieldrin, Escherichia coli, group A pesticides, low dissolved oxygen, malathion, mercury, and unknown toxicity.

2. **Total Maximum Daily Loads (TMDL's).** USEPA requires the Central Valley Water Board to develop TMDL's for each 303(d) listed pollutant and water body combination. Table F-4, below, identifies the 303(d) listings and the status of each TMDL.

Table F-4. 303 (d) List for the Colusa Basin Drain

Pollutant	Potential Sources	TMDL Completion ¹
Azinphos-methyl (Guthion)	n/a	(2019)
Carbofuran	n/a	2012
DDT (Dichlorodiphenyltrichloroethane)	n/a	2012
Diazinon	n/a	2008
Dieldrin	n/a	(2021)
Escherichia coli (E. coli)	n/a	(2021)
Group A Pesticides	n/a	(2019)
Low Dissolved Oxygen	n/a	2012
Malathion	n/a	2010
Mercury	n/a	(2021)
Unknown toxicity	n/a	(2019)

¹ Dates in parenthesis are proposed TMDL completion dates.

3. The 303(d) listings and TMDL's have been considered in the development of the Order. A pollutant-by-pollutant evaluation of each pollutant of concern is described in section IV.C.3 of this Fact Sheet.

E. Other Plans, Policies and Regulations

1. **Title 27.** The discharge authorized herein and the treatment and storage facilities associated with the discharge of treated municipal wastewater, except for discharges of residual sludge and solid waste, are exempt from the requirements of Title 27, California Code of Regulations (CCR), section 20005 *et seq* (hereafter Title 27). The exemption, pursuant to Title 27 CCR section 20090(a), is based on the following:
 - a. The waste consists primarily of domestic sewage and treated effluent;
 - b. The waste discharge requirements are consistent with water quality objectives; and

- c. The treatment and storage facilities described herein are associated with a municipal wastewater treatment plant.

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

Effluent limitations and toxic and pretreatment effluent standards established pursuant to sections 301 (Effluent Limitations), 302 (Water Quality Related Effluent Limitations), 304 (Information and Guidelines), and 307 (Toxic and Pretreatment Effluent Standards) of the CWA and amendments thereto are applicable to the discharge.

The CWA mandates the implementation of effluent limitations that are as stringent as necessary to meet water quality standards established pursuant to state or federal law [33 U.S.C., §1311(b)(1)(C); 40 C.F.R. § 122.44(d)(1)]. NPDES permits must incorporate discharge limits necessary to ensure that water quality standards are met. This requirement applies to narrative criteria as well as to criteria specifying maximum amounts of particular pollutants. Pursuant to federal regulations, 40 C.F.R. section 122.44(d)(1)(i), NPDES permits must contain limits that control all pollutants that *"are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any state water quality standard, including state narrative criteria for water quality."* Federal regulations, 40 C.F.R. section 122.44(d)(1)(vi), further provide that *"[w]here a state has not established a water quality criterion for a specific chemical pollutant that is present in an effluent at a concentration that causes, has the reasonable potential to cause, or contributes to an excursion above a narrative criterion within an applicable State water quality standard, the permitting authority must establish effluent limits."*

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations in the Code of Federal Regulations: 40 C.F.R. section 122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 C.F.R. section 122.44(d) requires that permits include WQBEL's to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water where numeric water quality objectives have not been established. The Basin Plan at page IV-17.00, contains an implementation policy, *"Policy for Application of Water Quality Objectives,"* that specifies that the Central Valley Water Board *"will, on a case-by-case basis, adopt numerical limitations in orders which will implement the narrative objectives."* This Policy complies with 40 C.F.R. section 122.44(d)(1). With respect to narrative objectives, the Central Valley Water Board must establish effluent limitations using one or more of three specified sources, including: (1) USEPA's published water quality criteria, (2) a proposed state criterion (i.e., water quality objective) or an explicit state policy interpreting its narrative water quality criteria (i.e., the Central Valley Water Board's *"Policy for Application of Water Quality Objectives"*)(40 C.F.R. § 122.44(d)(1)(vi)(A), (B) or (C)), or (3) an indicator parameter.

The Basin Plan includes numeric site-specific water quality objectives and narrative objectives for toxicity, chemical constituents, discoloration, radionuclides, and tastes and odors. The narrative toxicity objective states: *"All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life."* (Basin Plan at III-8.00) The Basin Plan states that material and relevant information, including numeric criteria, and recommendations from other agencies and scientific literature will be utilized in evaluating compliance with the narrative toxicity objective. The narrative chemical constituents objective states that waters shall not contain chemical constituents in concentrations that adversely affect beneficial uses. At minimum, *"...water designated for use as domestic or*

municipal supply (MUN) shall not contain concentrations of chemical constituents in excess of the maximum contaminant levels (MCLs)" in Title 22 of CCR. The Basin Plan further states that, to protect all beneficial uses, the Central Valley Water Board may apply limits more stringent than MCLs. The narrative tastes and odors objective states: "Water shall not contain taste- or odor-producing substances in concentrations that impart undesirable tastes or odors to domestic or municipal water supplies or to fish flesh or other edible products of aquatic origin, or that cause nuisance, or otherwise adversely affect beneficial uses."

A. Discharge Prohibitions

1. **Prohibition III.A (No discharge or application of waste other than that described in this Order).** This prohibition is based on Water Code section 13260 that requires filing of a ROWD before discharges can occur. The Discharger submitted a ROWD for the discharges described in this Order; therefore, discharges not described in this Order are prohibited.
2. **Prohibition III.B (No bypasses or overflow of untreated wastewater, except under the conditions at 40 C.F.R. section 122.41(m)(4)).** As stated in section I.G of Attachment D, Standard Provisions, this Order prohibits bypass from any portion of the treatment facility. Federal regulations, 40 C.F.R. section 122.41(m), define "bypass" as the intentional diversion of waste streams from any portion of a treatment facility. This section of the federal regulations, 40 C.F.R. section 122.41(m)(4), prohibits bypass unless it is unavoidable to prevent loss of life, personal injury, or severe property damage. In considering the Regional Water Board's prohibition of bypasses, the State Water Board adopted a precedential decision, Order No. WQO 2002-0015, which cites the federal regulations, 40 C.F.R. section 122.41(m), as allowing bypass only for essential maintenance to assure efficient operation.
3. **Prohibition III.C (No controllable condition shall create a nuisance).** This prohibition is based on Water Code section 13050 that requires water quality objectives established for the prevention of nuisance within a specific area. The Basin Plan prohibits conditions that create a nuisance
4. **Prohibition III.D (No inclusion of pollutant free wastewater shall cause improper operation of the Facility's systems).** This prohibition is based on 40 C.F.R. section 122.41 et seq. that requires the proper design and operation of treatment facilities

B. Technology-Based Effluent Limitations

1. Scope and Authority

Section 301(b) of the CWA and implementing U.S. EPA permit regulations at 40 C.F.R. section 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. The discharge authorized by this Order must meet minimum federal technology-based requirements based on Secondary Treatment Standards at 40 C.F.R. part 133.

Regulations promulgated in 40 C.F.R. section 125.3(a)(1) require technology-based effluent limitations for municipal Dischargers to be placed in NPDES permits based on Secondary Treatment Standards or Equivalent to Secondary Treatment Standards.

The Federal Water Pollution Control Act Amendments of 1972 (PL 92-500) established the minimum performance requirements for POTW's [defined in section 304(d)(1)].

Section 301(b)(1)(B) of that Act requires that such treatment works must, as a minimum, meet effluent limitations based on secondary treatment as defined by the U.S. EPA Administrator.

Based on this statutory requirement, U.S. EPA developed secondary treatment regulations, which are specified in 40 C.F.R. part 133. These technology-based regulations apply to all municipal wastewater treatment plants and identify the minimum level of effluent quality attainable by secondary treatment in terms of biochemical oxygen demand (BOD₅), total suspended solids (TSS), and pH.

2. Applicable Technology-Based Effluent Limitations

- a. **BOD₅ and TSS.** Federal regulations at 40 C.F.R. part 133, establish the minimum weekly and monthly average level of effluent quality attainable by secondary treatment for BOD₅ and TSS. A daily maximum effluent limitation for BOD₅ and TSS is also included in the Order to ensure that the treatment works are not organically overloaded and operate in accordance with design capabilities. In addition, 40 C.F.R. section 133.102, in describing the minimum level of effluent quality attainable by secondary treatment, states that the 30-day average percent removal shall not be less than 85 percent. This Order contains a limitation requiring an average of 85 percent removal of BOD₅ and TSS over each calendar month. This Order requires Water Quality Based Effluent Limitations (WQBEL's) that are equal to or more stringent than the secondary technology-based treatment described in 40 CFR Part 133 (See section IV.C.3.b of the Fact Sheet for a discussion on Pathogens which includes WQBEL's for BOD₅ and TSS.)
- b. **Flow.** The Facility was designed to provide a tertiary level of treatment for up to a design flow of 0.70 mgd. Therefore, this Order contains an average dry weather discharge flow effluent limit of 0.70 mgd.
- c. **pH.** The secondary treatment regulations at 40 C.F.R. part 133 also require that pH be maintained between 6.0 and 9.0 standard units. This Order, however, requires more stringent WQBEL's for pH to comply with the Basin Plan's water quality objectives for pH.

**Summary of Technology-based Effluent Limitations
Discharge Point 001**

Table F-5. Summary of Technology-based Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Flow	MGD	0.70 ¹	--	--	--	--
Conventional Pollutants						
Biochemical Oxygen Demand (5-day @ 20°C) ²	mg/L	10	15	20	--	--
	lbs/day ³	58	88	120	--	--
	% Removal	85	--	--	--	--
pH ²	standard units	--	--	--	6.0	8.5
Total Suspended Solids ²	mg/L	10	15	20	--	--
	lbs/day ³	58	88	120	--	--
	% Removal	85	--	--	--	--

¹ The average dry weather flow shall not exceed 0.70 MGD.

² Note that more stringent WQBEL's for BOD₅, pH, and TSS are applicable and are established as final effluent limitations in this Order (see section IV.C.3.b of this Fact Sheet).

³ Based on an average dry weather flow of 0.70 MGD.

C. Water Quality-Based Effluent Limitations (WQBEL's)

1. Scope and Authority

CWA Section 301(b) and 40 C.F.R. section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards. This Order contains requirements, expressed as a technology equivalence requirement, more stringent than secondary treatment requirements that are necessary to meet applicable water quality standards. The rationale for these requirements, which consist of tertiary treatment or equivalent requirements or other provisions, is discussed in section IV.C.3 of this Fact Sheet.

Section 122.44(d)(1)(i) of 40 C.F.R. requires that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, WQBEL's must be established using: (1) U.S. EPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in section 122.44(d)(1)(vi).

The process for determining reasonable potential and calculating WQBEL's when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the CTR and NTR.

2. Applicable Beneficial Uses and Water Quality Criteria and Objectives

The Basin Plan designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the plan. In addition, the Basin Plan implements State Water Board Resolution No. 88-63, which established state policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply. A BPA removing the MUN beneficial use designation from the Unnamed Tributary to Powell Slough was approved under state law by the Office of Administrative Law on 23 December 2015 and was approved by the U.S. EPA on 21 April 2016 in compliance with the CWA.

The Basin Plan on page II-1.00 states: *"Protection and enhancement of existing and potential beneficial uses are primary goals of water quality planning..."* and with respect to disposal of wastewaters states that *"...disposal of wastewaters is [not] a prohibited use of waters of the State; it is merely a use which cannot be satisfied to the detriment of beneficial uses."*

The federal CWA section 101(a)(2), states: *"it is the national goal that wherever attainable, an interim goal of water quality which provides for the protection and propagation of fish, shellfish, and wildlife, and for recreation in and on the water be achieved by July 1, 1983."* Federal Regulations, developed to implement the requirements of the CWA, create a rebuttable presumption that all waters be designated as fishable and swimmable. Federal Regulations, 40 CFR sections 131.2 and 131.10, require that all waters of the State regulated to protect the beneficial uses of public water supply, protection and propagation of fish, shell fish and wildlife, recreation in and on the water, agricultural, industrial and other purposes including navigation. 40 C.F.R. section 131.3(e) defines existing beneficial uses as those uses actually attained after 28 November 1975, whether or not they are included in the water quality standards. Federal Regulation, 40 C.F.R. section 131.10 requires that uses be obtained by implementing effluent limitations, requires that all downstream uses be protected and states that in no case shall a state adopt waste transport or waste assimilation as a beneficial use for any waters of the United States.

- a. **Receiving Water and Beneficial Uses.** The unnamed Tributary to Powell Slough is an effluent dominated agricultural drainage canal that also transmits treated wastewater effluent. Refer to III.C.1. above for a complete description of the receiving water and beneficial uses.
- b. **Effluent and Ambient Background Data.** The Discharger completed replacing chlorine disinfection with UV disinfection and upgrading to include nitrifying activated sludge system, coagulation/flocculation, and filtration subsequent to the December 2008 adoption of the existing permit R5-2008-0184. The reasonable potential analysis (RPA), as described in section IV.C.3 of this Fact Sheet, was based on data from June 2012 through January 2016, which includes effluent, ambient background, and priority pollutant data submitted in SMRs and the Report of Waste Discharge (ROWD). Previous Order R5-2008-0184 required analysis of Priority Pollutants once per permit term. This Order requires the Discharger to sample for priority pollutants and other constituents of concern quarterly during the third year of the permit.
- c. **Conversion Factors.** The CTR contains aquatic life criteria for arsenic, cadmium, chromium III, chromium VI, copper, lead, nickel, silver, and zinc which are

presented in dissolved concentrations. USEPA recommends conversion factors to translate dissolved concentrations to total concentrations. The default USEPA conversion factors contained in Appendix 3 of the SIP were used to convert the applicable dissolved criteria to total recoverable criteria.

- d. **Hardness-Dependent CTR Metals Criteria.** The CTR and the NTR contain water quality criteria for seven metals that vary as a function of hardness. The lower the hardness the lower the water quality criteria. The metals with hardness-dependent criteria include cadmium, copper, chromium III, lead, nickel, silver, and zinc.

This Order has established the criteria for hardness-dependent metals based on the hardness of the receiving water (actual ambient hardness) as required by the SIP¹ and the CTR². The SIP and the CTR require the use of "receiving water" or "actual ambient" hardness, respectively, to determine effluent limitations for these metals. The CTR requires that the hardness values used shall be consistent with the design discharge conditions for design flows and mixing zones³. Where design flows for aquatic life criteria include the lowest one-day flow with an average reoccurrence frequency of once in ten years (1Q10) and the lowest average seven consecutive day flow with an average reoccurrence frequency of once in ten years (7Q10).⁴ This section of the CTR also indicates that the design conditions should be established such that the appropriate criteria are not exceeded more than once in a three year period on average.⁵ The CTR requires that when mixing zones are allowed the CTR criteria apply at the edge of the mixing zone, otherwise the criteria apply throughout the water body including at the point of discharge.⁶ The CTR does not define the term "ambient," as applied in the regulations. Therefore, the Central Valley Water Board has considerable discretion to consider upstream and downstream ambient conditions when establishing the appropriate water quality criteria that fully complies with the CTR and SIP.

Summary findings

At design discharge conditions the unnamed Tributary is effluent dominated. Under these regularly occurring critical conditions (no upstream flow) the effluent is the receiving water that is used to define the ambient receiving water conditions to define the appropriate water quality criteria in accordance with the CTR and SIP. The ambient hardness for the unnamed Tributary is represented by the data in Figure F-1, below, which shows ambient hardness ranging from 58 mg/L to 671 mg/L based on all collected ambient data from January 2012 through November 2015. Given the high variability in ambient hardness values, there is no single hardness value that describes the ambient receiving water for all possible scenarios (e.g., minimum, maximum). Because of this variability, staff has determined that based on the ambient hardness concentrations measured in the receiving water, the Central Valley Water Board has discretion to select ambient

¹ The SIP does not address how to determine the hardness for application to the equations for the protection of aquatic life when using hardness-dependent metals criteria. It simply states, in Section 1.2, that the criteria shall be properly adjusted for hardness using the hardness of the receiving water.

² The CTR requires that, for waters with a hardness of 400 mg/L (as CaCO₃), or less, the actual ambient hardness of the surface water must be used (40 C.F.R. § 131.38(c)(4)).

³ 40 C.F.R. §131.38(c)(4)(ii)

⁴ 40 C.F.R. §131.38(c)(2)(iii) Table 4

⁵ 40 C.F.R. §131.38(c)(2)(iii) Table 4, notes 1 and 2

⁶ 40 C.F.R. §131.38(c)(2)(i)

hardness values within the range of 58 mg/L (minimum) up to 671 mg/L (maximum). Staff recommends that the Board use the ambient hardness values shown in Table F-6 for the following reasons.

- i. The ambient receiving water hardness values shown in Table F-6 are consistent with design discharge conditions and will result in criteria and effluent limitations that ensure protection of beneficial uses under all ambient receiving water conditions.
- ii. The Water Code mandates that the Central Valley Water Board establish permit terms that will ensure the reasonable protection of beneficial uses. In this case, using the lowest measured ambient hardness to calculate effluent limitations is not required to protect beneficial uses. Calculating effluent limitations based on the lowest measured ambient hardness is not required by the CTR or SIP, and is not reasonable as it would result in overly conservative limits that will impart substantial costs to the Discharger and ratepayers without providing any additional protection of beneficial uses. In compliance with applicable state and federal regulatory requirements, after considering the entire range of ambient hardness values, Board staff has used the ambient hardness values shown in Table F-6 to calculate the proposed effluent limitations for hardness-dependent metals. The proposed effluent limitations are protective of beneficial uses under all flow conditions.
- iii. Using an ambient hardness that is higher than the minimum observed ambient hardness will result in limits that may allow increased metals to be discharged to the unnamed Tributary to Powell Slough, the Central Valley Water Board finds that this degradation is consistent with the Antidegradation Policy in State Water Board Resolution 68-16 (see antidegradation findings in Section IV.D.4 of the Fact Sheet). The Antidegradation Policy requires the Discharger to meet waste discharge requirements which will result in the best practicable treatment or control of the discharge necessary to assure that: a) a pollution or nuisance will not occur, and b) the highest water quality consistent with maximum benefit to the people of the State will be maintained.
- iv. Using the ambient hardness values shown in Table F-6 is consistent with the CTR and SIP's requirements for developing metals criteria.

Table F-6. Summary of CTR Criteria for Hardness-dependent Metals

CTR Metals	Ambient Hardness (mg/L) ²	CTR Criteria (µg/L, total recoverable) ¹	
		acute	chronic
Copper	65 ³	85	59
Chromium III	65 ³	1220	145
Cadmium	65 ³ (acute) 65 ³ (chronic)	2.7	1.8
Lead	65 ³	46	1.8
Nickel	65 ³	325	36
Silver	65 ³	1.9	--
Zinc	65 ³	83	83

- ¹ Metal criteria rounded to two significant figures in accordance with the CTR (40 C.F.R. §131.38(b)(2)).
- ² The ambient hardness values in this table represent actual observed receiving water hardness measurements from the dataset shown in Figure F-1.
- ³ Collected on 7 October 2014.

Background

The State Water Board provided direction regarding the selection of hardness in two precedential water quality orders: WQO 2008-0008 for the City of Davis Wastewater Treatment Plant (Davis Order) and WQO 2004-0013 for the Yuba City Wastewater Treatment Plant (Yuba City Order). The State Water Board recognized that the SIP and the CTR do not discuss the manner in which hardness is to be ascertained, thus regional water boards have considerable discretion in determining ambient hardness so long as the selected value is protective of water quality criteria under the given flow conditions. (Davis Order, p.10). The State Water Board explained that it is necessary that, "The [hardness] value selected should provide protection for all times of discharge under varying hardness conditions." (Yuba City Order, p. 8). The Davis Order also provides that, "Regardless of the hardness used, the resulting limits must always be protective of water quality criteria under all flow conditions." (Davis Order, p. 11)

The equation describing the total recoverable regulatory criterion, as established in the CTR, is as follows:

$$\text{CTR Criterion} = \text{WER} \times (e^{m[\ln(H)]+b}) \text{ (Equation 1)}$$

Where:

H = ambient hardness (as CaCO₃)¹

WER = water-effect ratio

m, b = metal- and criterion-specific constants

The direction in the CTR regarding hardness selection is that it must be based on ambient hardness and consistent with design discharge conditions for design flows and mixing zones. Consistent with design discharge conditions and design flows means that the selected "design" hardness must result in effluent limitations under design discharge conditions that do not result in more than one exceedance of the applicable criteria in a three year period.² Where design flows for aquatic life criteria include the lowest one-day flow with an average reoccurrence frequency of once in ten years (1Q10) and the lowest average seven consecutive day flow with an average reoccurrence frequency of once in ten years (7Q10). Since Unnamed Tributary regularly contains no upstream flow, the critical design flow is zero.

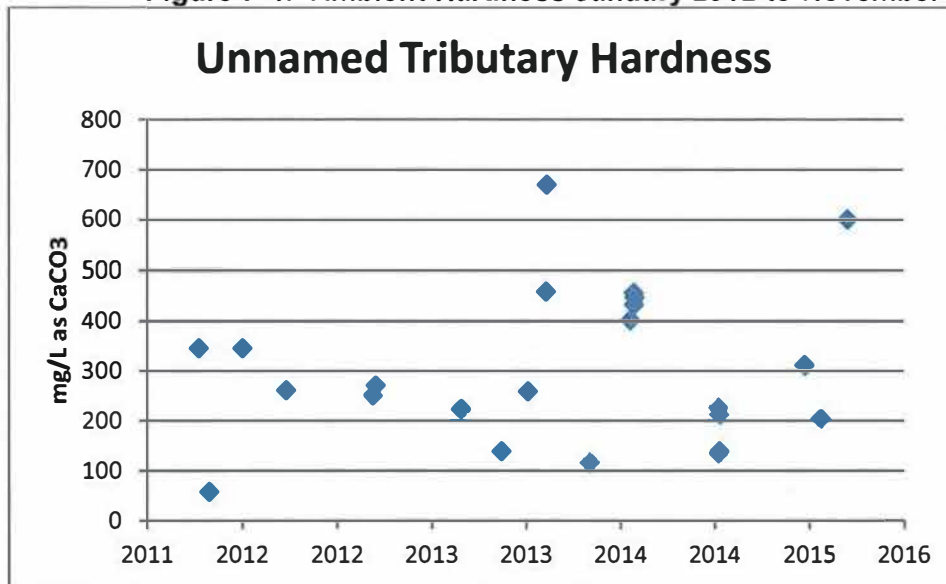
Ambient conditions

The ambient receiving water hardness varied from 58 mg/L to 671 mg/L, based on 21 samples from January 2012 through November 2015 (see Figure F-1).

¹ For this discussion, all hardness values are expressed in mg/L as CaCO₃.

² 40 C.F.R. §131.38(c)(2)(iii) Table 4, notes 1 and 2

Figure F-1. Ambient Hardness January 2012 to November 2015



In this analysis, the entire range of ambient hardness concentrations shown in Figure F-1 were considered to determine the appropriate ambient hardness to calculate the CTR criteria and effluent limitations that are protective under all discharge conditions.

Approach to derivation of criteria

As shown above, ambient hardness is variable. Because of the variation, there is no single hardness value that describes the ambient receiving water for all possible scenarios (e.g., minimum, maximum, mid-point). While the hardness selected must be hardness of the ambient receiving water, selection of an ambient receiving water hardness that is too high would result in effluent limitations that do not protect beneficial uses. Also, the use of minimum ambient hardness would result in criteria that may not be representative considering the wide range of ambient conditions.

Reasonable worst-case ambient conditions. To determine whether a selected ambient hardness value results in effluent limitations that are fully protective while complying with federal regulations and state policy, staff have conducted an analysis considering varying ambient hardness and flow conditions. To do this, the Central Valley Water Board has ensured that the receiving water hardness and criteria selected for effluent limitations are protective under “reasonable-worst case ambient conditions.” These conditions represent the receiving water conditions under which derived effluent limitations would ensure protection of beneficial uses under all ambient flow and hardness conditions.

Reasonable worst-case ambient conditions:

- “Low receiving water flow.” CTR design discharge conditions (1Q10 and 7Q10) have been selected to represent reasonable worst case receiving water flow conditions.
- “High receiving water flow (maximum receiving water flow).” This additional flow condition has been selected consistent with the Davis Order, which required that

the hardness selected be protective of water quality criteria under all flow conditions.

- “Low receiving water hardness.” The minimum ambient receiving water hardness condition of 58 mg/L was selected to represent the reasonable worst case receiving water hardness.
- “Background ambient metal concentration at criteria.” This condition assumes that the metal concentration in the background receiving water is equal to CTR criteria (upstream of the facility’s discharge). Based on data in the record, this is a design condition that does not regularly occur in the receiving water and is used in this analysis to ensure that limits are protective of beneficial uses even in the situation where there is no assimilative capacity.

Iterative approach. An iterative analysis has been used to select the ambient hardness to calculate the criteria that will result in effluent limitations that protect beneficial uses under all flow conditions.

The iterative approach is summarized in the following algorithm and described below in more detail.



1. **CRITERIA CALCULATION.** CTR criteria are calculated using the CTR equations based on actual measured ambient hardness sample results, starting with the maximum observed ambient hardness of 671 mg/L. Effluent metal concentrations necessary to meet the above calculated CTR criteria in the receiving water are calculated in accordance with the SIP.¹ This should not be confused with an effluent limit. Rather, it is the Effluent Concentration

¹ SIP Section 1.4.B, Step 2, provides direction for calculating the Effluent Concentration Allowance.

Allowance (ECA), which is synonymous with the wasteload allocation defined by USEPA as "a definition of effluent water quality that is necessary to meet the water quality standards in the receiving water."¹ If effluent limits are found to be needed, the limits are calculated to enforce the ECA considering effluent variability and the probability basis of the limit.

2. CHECK. USEPA's simple mass balance equation² is used to evaluate if discharge at the computed ECA is protective. Resultant downstream metal concentrations are compared with downstream calculated CTR criteria under reasonable worst-case ambient conditions.
3. ADAPT. If step 2 results in:
 - (A) receiving water metal concentration that complies with CTR criteria under reasonable worst-case ambient conditions, then the hardness value is selected.
 - (B) receiving water metal concentration greater than CTR criteria, then return to bullet 1, selecting a lower ambient hardness value.

The CTR's hardness dependent metals criteria equations contain metal-specific constants, so the criteria vary depending on the metal. Therefore, steps 1 through 3 must be repeated separately for each metal until ambient hardness values are determined that will result in criteria and effluent limitations that comply with the CTR and protect beneficial uses for all metals.

Results of iterative analysis

The above iterative analysis for each CTR hardness-dependent metal results in the selected ambient hardness values shown in Table F-6, above. Using these hardness values to calculate criteria, which are actual ambient sample results, will result in effluent limitations that are protective under all ambient flow conditions. Zinc and silver are used as examples below to illustrate the results of the analysis. Tables F-7 and F-8 below summarize the numeric results of the three step iterative approach for zinc and silver. As shown in the example tables, an ambient hardness value of 65 mg/L for zinc and silver are used in the CTR equations to derive criteria and effluent limitations. Then under the "check" step, worst-case ambient receiving water conditions are used to test whether the discharge results in compliance with CTR criteria and protection of beneficial uses.

The results of the above analysis, summarized in the tables below, show that the ambient hardness values selected using the three-step iterative process results in protective effluent limitations that achieve CTR criteria under all flow conditions. Tables F-7 and F-8 summarize the critical flow conditions. However, the analysis evaluated all flow conditions to ensure compliance with the CTR criteria at all times.

¹ U.S. EPA Technical Support Document for Water Quality-based Toxics Control (TSD), pg. 96.

² U.S. EPA NPDES Permit Writers' Handbook (EPA 833-K-10-001 September 2010, pg. 6-24)

Table F-7. Verification of CTR Compliance for Zinc

Receiving water hardness used to compute effluent limitations				58 mg/L
Effluent Concentration Allowance (ECA) for Zinc ²				75 µg/L
	Downstream Ambient Concentrations Under Worst-Case Ambient Receiving Water Conditions			Complies with CTR Criteria?
	Hardness	CTR Criteria (µg/L)	Ambient Zinc Concentration ¹ (µg/L)	
1Q10	65	83	83	Yes
7Q10	65	83	83	Yes
Max receiving water flow	58	75	75	Yes

¹ This concentration is derived using worst-case ambient conditions. These conservative assumptions will ensure that the receiving water always complies with CTR criteria.

² The ECA defines effluent quality necessary to meet the CTR criteria in the receiving water. There is no effluent limitation for zinc as it demonstrates no reasonable potential.

Table F-8. Verification of CTR Compliance for Silver

Receiving water hardness used to compute effluent limitations				58 mg/L
Effluent Concentration Allowance (ECA) for Silver ²				1.9 µg/L
	Downstream Ambient Concentrations Under Worst-Case Ambient Receiving Water Conditions			Complies with CTR Criteria?
	Hardness	CTR Criteria (µg/L)	Ambient Silver Concentration ¹ (µg/L)	
1Q10	65	1.9	1.9	Yes
7Q10	65	1.9	1.9	Yes
Max receiving water flow	58	1.6	1.6	Yes

¹ This concentration is derived using worst-case ambient conditions. These conservative assumptions will ensure that the receiving water always complies with CTR criteria.

² The ECA defines effluent quality necessary to meet the CTR criteria in the receiving water. There is no effluent limitation for silver as it demonstrates no reasonable potential.

3. Determining the Need for WQBEL's

- a. **Constituents with No Reasonable Potential.** WQBEL's are not included in this Order for constituents that do not demonstrate reasonable potential (i.e. constituents were not detected in the effluent or receiving water); however, monitoring for those pollutants is established in this Order as required by the SIP. If the results of effluent monitoring demonstrate reasonable potential, this Order may be reopened and modified by adding an appropriate effluent limitation.

Most constituents with no reasonable potential are not discussed in this Order. However, the following constituents were found to have no reasonable potential after assessment of the data:

i. **Aluminum**

Aluminum is the third most abundant element in the earth's crust and is ubiquitous in both soils and aquatic sediments. When mobilized in surface waters, aluminum has been shown to be toxic to various fish species. However, the potential for aluminum toxicity in surface waters is directly related to the chemical form of aluminum present, and the chemical form is highly dependent on water quality characteristics that ultimately determine the mechanism of aluminum toxicity. Surface water characteristics, including pH, temperature, colloidal material, fluoride and sulfate concentrations, and total organic carbon, all influence aluminum speciation and its subsequent bioavailability to aquatic life. Calcium [hardness] concentrations in surface water may also reduce aluminum toxicity by competing with monomeric aluminum (Al^{3+}) binding to negatively charged fish gills.

- (a) **WQO.** The State Water Board, Division of Drinking Water (DDW) has established Secondary MCL's to assist public drinking water systems in managing their drinking water for aesthetic conditions such as taste, color, and odor. The Secondary MCL for aluminum is 200 µg/L for protection of the MUN beneficial use. Title 22 requires compliance with Secondary MCL's on an annual average basis. The previous Order R5-2008-0184 included average monthly (AMEL) and maximum daily (MDEL) limitations of 327 µg/L and 750 µg/L, respectively, for the protection of the MUN beneficial use; the BPA (see Fact Sheet section III.C.1.b) removed the MUN beneficial use from this discharge.

The Code of Federal Regulations promulgated criteria for priority toxic pollutants for California's surface waters as part of section 131.38 Establishment of Numeric Criteria for Priority Toxic Pollutants for the State of California (California Toxics Rule or CTR), including metals criteria. However, aluminum criteria were not promulgated as part of the CTR. Absent numeric aquatic life criteria for aluminum, WQBEL's in the Central Valley Region's NPDES permits are based on the Basin Plans' narrative toxicity objective. The Basin Plans' *Policy for Application of Water Quality Objectives* requires the Central Valley Water Board to consider, "*on a case-by-case basis, direct evidence of beneficial use impacts, all material and relevant information submitted by the discharger and other interested parties, and relevant numerical criteria and guidelines developed and/or published by other agencies and organizations. In considering such criteria, the Board evaluates whether the specific numerical criteria which are available through these sources and through other information supplied to the Board, are relevant and appropriate to the situation at hand and, therefore, should be used in determining compliance with the narrative objective.*" Relevant information includes, but is not limited to (1) U.S. EPA National Ambient Water Quality Criteria (NAWQC) and subsequent Correction, (2) site-specific conditions of the unnamed tributary, the receiving water, and (3) site-specific aluminum studies conducted by dischargers within the Central Valley Region. (Basin Plan, p.IV.17.00; see also, 40 C.F.R. 122.44(d)(vi).)

U.S. EPA NAWQC. U.S. EPA recommended the NAWQC aluminum acute criterion at 750 µg/L based on test waters with a pH of 6.5 to 9.0.

U.S. EPA also recommended the NAWQC aluminum chronic criterion at 87 µg/L based upon the following two toxicity tests. All test waters contained hardness at 12 mg/L as CaCO₃.

- (1) Acute toxicity tests at various aluminum doses were conducted in various acidic waters (pH 6.0 – 6.5) on 159- and 160-day old striped bass. The 159-day old striped bass showed no mortality in waters with pH at 6.5 and aluminum doses at 390 µg/L, and the 160-day old striped bass showed 58% mortality at a dose of 174.4 µg/L in same pH waters. However, the 160-day old striped bass showed 98% mortality at aluminum dose of 87.2 µg/L in waters with pH at 6.0, which is U.S. EPA's basis for the 87 µg/L chronic criterion. The varied results draw into question this study and the applicability of the NAWQC chronic criterion of 87 µg/L.
- (2) Chronic toxicity effects on 60-day old brook trout were evaluated in circumneutral pH waters (6.5-6.9 pH) in five cells at various aluminum doses (4, 57, 88, 169, and 350 µg/L). Chronic evaluation started upon hatching of eyed eggs of brook trout, and their weight and length were measure after 45 days and 60 days. The 60-day old brook trout showed 24% weight loss at 169 µg/L of aluminum and 4% weight loss at 88 µg/L of aluminum, which is the basis for U.S. EPA's chronic criteria. Though this test study shows chronic toxic effects of 4% reduction in weight after exposure for 60-days, the chronic criterion is based on 4-day exposure; so again, the applicability of the NAWQC chronic criterion of 87 µg/L is questionable.

Site-specific Conditions. U.S. EPA advises that a water effects ratio may be more appropriate to better reflect the actual toxicity of aluminum to aquatic organisms when the pH and hardness conditions of the unnamed tributary are not similar to that of the test conditions.¹ Effluent and unnamed tributary monitoring data indicate that the pH and hardness values are not similar to the low pH and hardness conditions under which the chronic criterion for aluminum was developed, as shown in the table below, and therefore, the Central Valley Water Board does not expect aluminum to be as toxic in the unnamed tributary as in the previously described toxicity tests. The pH of the unnamed tributary, the receiving water, ranged from 6.5 to 9.6, *with a median of 7.8, based on 156 monitoring results obtained between January 2012 and January 2016.* These water conditions typically are circumneutral pH where aluminum is predominately in the form of Al(OH)₃ and non-toxic to aquatic life. The hardness of the unnamed lateral ranged from 58 to 671 mg/L (only two samples were below 120 mg/L), with a median of 260 mg/L and an average of 290 mg/L, based on 24 samples from January 2012 to October 2015. The hardness values are well above the test conditions for the NAWQC chronic criterion and thus, are less toxic.

¹ "The value of 87 micro-g/L is based on a toxicity test with striped bass in water with pH = 6.5-6.6 and hardness < 10 mg/L. Data in [a 1994 Study] indicate that aluminum is substantially less toxic at higher pH and hardness, but the effects of pH and hardness are not well quantified at this time." U.S. EPA 1999 NAWQC Correction, Footnote L

Parameter	Units	Test Conditions for Applicability of Chronic Criterion	Effluent	Receiving Water
pH	standard units	6.0 – 6.5	6.5 – 8.7	6.5 – 9.6
Hardness, Total (as CaCO ₃)	mg/L	12	67	58 – 671
Aluminum, Total Recoverable	µg/L	87.2 - 390	ND – 46	n/a

Local Environmental Conditions and Studies. Twenty-one site-specific aluminum toxicity tests have been conducted within the Central Valley Region. The pH of the unnamed tributary is similar to dischargers shown in the table below. The lowest hardness values measured in the unnamed tributary compare with the dischargers shown in the table below although the typical hardness of the unnamed tributary is significantly higher. Thus, the results of these site-specific aluminum toxicity tests are relevant and appropriate as a conservative comparison for the unnamed tributary. As shown in the following table, all EC₅₀¹ toxicity study result values are at concentrations of aluminum above 5,000 µg/L. Thus, the toxic effects of aluminum in these surface waters is less toxic (or less reactive) to aquatic species than demonstrated in the toxicity tests that U.S. EPA used for the basis of establishing the chronic criterion of 87 µg/L. This new information, and review of the toxicity tests U.S. EPA used to establish the chronic criterion, indicates that 87 µg/L is overly stringent and not applicable to the unnamed tributary.

Central Valley Region Site-Specific Aluminum Toxicity Data

Discharger	Test Waters	Hardness Value	Total Aluminum EC ₅₀ Value	pH	WER
<i>Oncorhynchus mykiss</i> (rainbow trout)					
Manteca	Surface Water/Effluent	124	>8600	9.14	N/C
Auburn	Surface Water	16	>16500	7.44	N/C
Modesto	Surface Water/Effluent	120/156	>34250	8.96	>229
Yuba City	Surface Water/Effluent	114/164 ¹	>8000	7.60/7.46	>53.5
<i>Ceriodaphnia dubia</i> (water flea)					
Auburn	Effluent	99	>5270	7.44	>19.3
	Surface Water	16	>5160	7.44	>12.4
Manteca	Surface Water/Effluent	124	>8800	9.14	N/C
	Effluent	117	>8700	7.21	>27.8
	Surface Water	57	7823	7.58	25.0
	Effluent	139	>9500	7.97	>21.2
	Surface Water	104	>11000	8.28	>24.5
	Effluent	128	>9700	7.78	>25.0

¹ The effect concentration is a point estimate of the toxicant concentration that would cause an observable adverse effect (e.g. death, immobilization, or serious incapacitation) in a given percent of the test organisms, calculated from a continuous model (e.g. Probit Model). EC₅₀ is a point estimate of the toxicant concentration that would cause an observable adverse effect in 50 percent of the test organisms. The EC₅₀ is used in toxicity testing to determine the appropriate chronic criterion.

Discharger	Test Waters	Hardness Value	Total Aluminum EC ₅₀ Value	pH	WER
	Surface Water	85	>9450	7.85	>25.7
	Effluent	106	>11900	7.66	>15.3
	Surface Water	146	>10650	7.81	>13.7
Modesto	Surface Water/Effluent	120/156	31604	8.96	211
Yuba City	Surface Water/Effluent	114/164 ¹	>8000	7.60/7.46	>53.5
Placer County (SMD 1)	Effluent	150	>5000	7.4 – 8.7	>13.7
<i>Daphnia magna</i> (water flea)					
Manteca	Surface Water/Effluent	124	>8350	9.14	N/C
Modesto	Surface Water/Effluent	120/156	>11900	8.96	>79.6
Yuba City	Surface Water/Effluent	114/164 ¹	>8000	7.60/7.46	>53.5

Applicable WQOs. The Discharger has not conducted a toxicity test for aluminum; however, the City of Manteca conducted a Water-Effects Ratio (WER) site-specific study in the San Joaquin River which concluded a WER of 22.7 is applicable to the acute and chronic objectives. The City of Manteca is located on the floor of the Sacramento-San Joaquin Valley, similar to the Discharger. The test water quality characteristics of the San Joaquin River are similar to those in the unnamed tributary regarding pH and the hardness characteristics of the unnamed tributary are less toxic than in the San Joaquin River. Thus, results of site-specific studies conducted by the City of Manteca would represent conservative assumptions for the Discharger and the unnamed tributary. The City of Manteca aluminum WER study resulted in a site-specific chronic aluminum objective of 1,975 µg/L.

- (b) **RPA Results.** For priority pollutants, the SIP dictates the procedures for conducting the RPA. Aluminum is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used its judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent. The most stringent applicable objective is the NAWQC acute criterion of 750 µg/L. The RPA was conducted based on the maximum observed effluent aluminum concentration. The maximum effluent aluminum concentration was 46 µg/L based on 44 samples collected between October 2013 and January 2016. The MEC occurred on 5 October 2015. Therefore, aluminum in the discharge does not demonstrate reasonable potential to cause or contribute to an in-stream excursion above the NAWQC acute criterion. Removal of these effluent limitations is in accordance with federal anti-backsliding regulations (see section IV.D.3 of this Fact Sheet).

ii. **Bis (2-ethylhexyl) phthalate**

- (a) **WQO.** The CTR includes a criterion of 1.8 µg/L for the protection of human health and for waters where both water and organisms are consumed. Order R5-2008-0184 monitoring requirements for bis (2-ethylhexyl) phthalate. Based on the BPA (see Fact Sheet section III.C.1.b) and the

subsequent removal of the MUN beneficial use, effluent limits for bis (2-ethylhexyl) phthalate criteria will no longer be applicable; however, the 5.9 µg/L Fish Consumption Only criteria is still applicable.

- (b) **RPA Results.** The MEC is 3.6 µg/L based on 13 samples collected between June 2012 and January 2016. The MEC is less than the 5.9 µg/L fish consumption only criterion. Therefore, there is no reasonable potential for this constituent. Effluent monitoring for bis (2-ethylhexyl) phthalate has not been retained in this Order. However, this Order requires continuing to characterize the effluent quality from the treatment system. Removal of these effluent limitations is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

iii. **Copper.**

- (a) **WQO.** The CTR includes hardness-dependent criteria for the protection of freshwater aquatic life for copper. These criteria for copper are presented in dissolved concentrations. USEPA recommends conversion factors to translate dissolved concentrations to total concentrations.

The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study*, dated October 2017) in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper and 9.57 for dissolved copper apply to the discharge. The site-specific WER of 9.11 is used in place of the default WER.

- (b) **RPA Results.** Section IV.C.2.e of this Fact Sheet includes procedures for conducting the RPA for hardness-dependent CTR metals, such as copper. The CTR includes hardness-dependent criteria for copper for the receiving water. The upstream receiving water hardness and reasonable worst-case downstream hardness, plus the site-specific WER of 9.11, were used to calculate the criteria. The acute criterion and chronic criterion were calculated to be 85 µg/L and 59 µg/L, respectively. The maximum background concentration was 671 µg/L (based on the dataset from January 2012 to November 2015) and the MEC is 8 µg/L from 44 effluent samples (based on the dataset from January 2012 to November 2015) and 2 additional effluent samples (based on the dataset from June and July 2017). Therefore, copper in the discharge does not have reasonable potential to cause or contribute to an in-stream excursion above the water quality criteria. Removal of copper effluent limitations is in accordance with federal and anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

iv. **Dibromochloromethane.**

- (a) **WQO.** The CTR includes a dibromochloromethane criterion of 0.41 µg/L for the protection of human health for waters where both water and organisms are consumed. Order R5-2008-0184 included effluent limitations for dibromochloromethane based on the CTR criteria. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the human health CTR criteria no longer

applies and there is no criteria recommended for the protection of aquatic life.

- (b) **RPA Results.** Dibromochloromethane was detected twice at 0.8 µg/L and 10 µg/L in 44 effluent samples collected between June 2012 and January 2016. Monitoring for this parameter was not conducted in the receiving water. Dibromochloromethane is a common byproduct of chlorine disinfection. The Discharger converted from chlorine to UV disinfection in October 2008 after the adoption of the existing permit and has confirmed the discontinued use of chlorine for all purposes. However, the Discharger has exceeded of the current permit limits after their request to discontinue effluent monitoring for chlorine by-products. This was found by the Discharger to be the result of sludge accumulation in the bottom of the aeration basin indicating that the aeration basin did not have complete mixing. The Discharger has explained that the drinking water source is chlorinated with trichlor, which is suspected to cause a chlorine residual to appear in aeration basin samples. Due to the sludge accumulation, when more than one blower was active, the accumulated sludge would be disturbed causing the sludge to be sent over the weirs and on through the wastewater treatment system. This was corrected by installing new diffusers for the aeration basin to ensure that there is complete mixing in the aeration basin and eliminate sludge settling. Based on these factors, the Central Valley Water Board finds that dibromochloromethane in the discharge does not demonstrate reasonable potential and effluent limitations have not been retained in this Order. Removal of these effluent limitations are in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

v. **Dichlorobromomethane.**

- (a) **WQO.** The CTR includes a dichlorobromomethane criterion of 0.56 µg/L for the protection of human health for waters where both water and organisms are consumed. Order R5-2008-0184 included effluent limitations for dichlorobromomethane based on the CTR criteria. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the human health CTR criteria no longer applies and there is no criteria recommended for the protection of aquatic life.
- (b) **RPA Results.** Dichlorobromomethane was detected five times in 44 effluent samples collected between June 2012 and January 2016. None of the detections exceeded the CTR criterion. Sampling was not conducted in the receiving water. Dichlorobromomethane is a common byproduct of chlorine disinfection. The Discharger completed upgrades to the Facility in October 2008 to replace chlorine disinfection with UV disinfection. Based on these factors, the Central Valley Water Board finds that dichlorobromomethane in the discharge does not demonstrate reasonable potential and effluent limitations have not been retained in this Order. Removal of these effluent limitations is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

vi. **Iron.**

- (a) **WQO.** Order R5-2008-0184 included an average annual final effluent limitation of 300 µg/L for iron based on the Secondary MCL for the protection of human health to protect the MUN beneficial use. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the Secondary MCL no longer applies to this discharge and there is no criteria recommended for the protection of aquatic life.
- (b) **RPA Results.** The MEC for iron was 135 µg/L based on 44 samples collected between June 2012 and January 2016. The effluent limitation for iron has not been retained in this Order because there is no applicable water quality criteria for use in determining of reasonable potential; therefore, reasonable potential does not exist for iron. Removal of this effluent limitation is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

vii. **Manganese**

- (a) **WQO.** Order R5-2008-0184 included an average annual final effluent limitation of 50 µg/L for manganese based on the Secondary MCL for the protection of human health to protect the MUN beneficial use. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the Secondary MCL no longer applies to this discharge. Manganese is not a CTR constituent and there are no applicable water quality criteria for the protection of aquatic life.

RPA Results. The MEC for manganese was 74 µg/L based on 44 samples collected between June 2012 and January 2016. The effluent limitation for manganese has not been retained in this Order because there is no applicable water quality criteria for use in determining of reasonable potential; therefore, reasonable potential does not exist for manganese. Removal of this effluent limitation is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

viii. **Methylene Blue Activated Substances**

- (a) **WQO.** Order R5-2008-0184 included an average annual final effluent limitation of 500 µg/L for methylene blue activated substances (MBAS) based on the Secondary MCL for the protection of human health to protect the MUN beneficial use. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the Secondary MCL no longer applies to this discharge. MBAS is not a CTR constituent and there are no applicable water quality criterion for the protection of aquatic life.
- (b) **RPA Results.** The MEC for MBAS was 600 µg/L based on 44 samples collected between June 2012 and January 2016. The Central Valley Water Board calculates WQBEL's in accordance with SIP procedures for non-CTR constituents, and MBAS is a non-CTR constituent. The SIP procedure assumes comparison to a MEC for determining reasonable potential. However, U.S. EPA recommends modifying the procedure for

calculating permit limits for MBAS using a 365-day averaging period. The highest annual average concentration in the discharge was 180 µg/L. Therefore, the discharge does not demonstrate reasonable potential and the effluent limitation for MBAS has not been retained in this Order. Removal of this effluent limitation is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

ix. **Nitrate plus Nitrite**

- (a) **WQO.** Order R5-2008-0184 included an AMEL of 10 mg/L for nitrate plus nitrite based on the Primary MCL for the protection of human health and to protect the MUN beneficial use. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the Primary MCL no longer applies to this discharge. Nitrate plus nitrite are not CTR constituents and there are no applicable water quality criteria for the protection of aquatic life.
- (b) **RPA Results.** The MEC for nitrate was 41.5 mg/L based on 39 monthly samples collected between June 2012 and August 2015. Upon approval of BPA, the nitrate plus nitrite limit of 10 mg/L will no longer be applicable. The effluent limitation for nitrate has not been retained in this Order because there is no applicable water quality criteria for use in determining reasonable potential; therefore, reasonable potential does not exist for nitrate. Removal of this effluent limitation is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

x. **Total Residual Chlorine**

- (a) **WQO.** Order R5-2008-0184 contains a 4-day average effluent limitation and 1-hour average effluent limitation for chlorine residual of 0.01 mg/L and 0.02 mg/L, respectively, based on USEPA's NAWQC, which implements the Basin Plan's narrative toxicity objective for protection of aquatic life. The Discharger does not use chlorine for disinfection of the effluent; however, chlorine residual has been detected in the effluent. The source water is treated with trichlor prior to use and residual chlorine is treated with captor prior to UV disinfection at the Facility.
- (b) **RPA Results.** Continuous monitoring conducted between June 2012 and January 2016 produced 1,353 non-detectes (NDs) at MDLs ranging from 0.001 mg/L to 0.1 mg/L. Chlorine in the discharge does not demonstrate reasonable potential to cause or contribute to an in-stream excursion above the NAWQC criteria and effluent limitations have not been retained in this Order. Removal of these effluent limitations is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

xi. **Total Trihalomethanes**

- (a) **WQO.** Order R5-2008-0184 contains an AMEL and a MDEL effluent limitation for total trihalomethanes of 80 µg/L and 280 µg/L, respectively, based on the Primary MCL for the protection of human health and to protect the MUN beneficial use. Based on the BPA (see Fact Sheet section III.C.1.b) and the subsequent removal of the MUN beneficial use, the Primary MCL no longer applies to this discharge. Total trihalomethanes is calculated as the sum of the four CTR constituents:

bromoform, chloroform, dibromochloromethane, and dichlorobromomethane.

- (b) **RPA Results.** The MEC for total trihalomethanes was 29 µg/L based on 44 samples collected between June 2012 and January 2016. The effluent limitation for total trihalomethanes has not been retained in this Order because there is no applicable water quality criteria for use in determining of reasonable potential; therefore, reasonable potential does not exist for total trihalomethanes. Removal of this effluent limitation is in accordance with federal anti-backsliding regulations (see section IV.D.3 of the Fact Sheet).

- b. **Constituents with Reasonable Potential.** The Central Valley Water Board finds that the discharge has a reasonable potential to cause or contribute to an in-stream excursion above a water quality standard for ammonia. WQBEL's for these constituents are included in this Order. A summary of the RPA is provided in Attachment G, and a detailed discussion of the RPA for each constituent is provided below.

i. **Ammonia**

- (a) **WQO.** The existing permit contains ammonia limits based on the USEPA 1999 National Ambient Water Quality Criteria for summer (1 April through 15 November) and winter (16 November through 31 March) seasons. The 1999 USEPA National Ambient Water Quality Criteria (NAWQC) for the protection of freshwater aquatic life for total ammonia (the "1999 Criteria"), recommends acute (1-hour average; criteria maximum concentration or CMC) standards based on pH and chronic (30-day average; criteria continuous concentration or CCC) standards based on pH and temperature. USEPA also recommends that no 4-day average concentration should exceed 2.5 times the 30-day CCC. U.S. EPA found that as pH increased, both the acute and chronic toxicity of ammonia increased. Salmonids were more sensitive to acute toxicity effects than other species. However, while the acute toxicity of ammonia was not influenced by temperature, it was found that invertebrates and young fish experienced increasing chronic toxicity effects with increasing temperature.

The USEPA recently published national recommended water quality criteria for the protection of aquatic life from the toxic effects of ammonia in freshwater (the "2013 Criteria")¹. The 2013 Criteria is an update to USEPA's 1999 Criteria, and varies based on pH and temperature. Although the 2013 Criteria reflects the latest scientific knowledge on the toxicity of ammonia to certain freshwater aquatic life, including new toxicity data on sensitive freshwater mussels in the Family Unionidae, the species tested for development of the 2013 Criteria may not be present in some Central Valley waterways. The 2013 Criteria document therefore states that, "*unionid mussel species are not prevalent in some waters, such as the arid west ...*" and provides that, "*In the case of ammonia, where a*

¹ Aquatic Life Ambient Water Quality Criteria for Ammonia – Freshwater, published August 2013 [EPA 822-R-13-001]

state demonstrates that mussels are not present on a site-specific basis, the recalculation procedure may be used to remove the mussel species from the national criteria dataset to better represent the species present at the site."

The Central Valley Water Board issued a 3 April 2014 *California Water Code Section 13267 Order for Information: 2013 Final Ammonia Criteria for Protection of Freshwater Aquatic Life* (13267 Order) requiring the Discharger to either participate in an individual or group study to determine the presence of mussels or submit a method of compliance for complying with effluent limitations calculated assuming mussels present using the 2013 Criteria. The Discharger submitted a 24 June 2014 letter to the Central Valley Water Board indicating their preference to assume mussels are present (no study), determine if the WWTP can comply with the new criteria, and decide whether or not to conduct additional mussel studies. Studies are currently underway to determine how the latest scientific knowledge on the toxicity of ammonia reflected in the 2013 Criteria can be implemented in the Central Valley Region as part of a Basin Planning effort to adopt nutrient and ammonia objectives. Until the Basin Planning process is completed, the Central Valley Water Board will continue to implement the 1999 Criteria to interpret the Basin Plan's narrative toxicity objective. The 1999 NAWQC for the protection of freshwater aquatic life for total ammonia, recommends acute (1-hour average; criteria maximum concentration or CMC) standards based on pH and chronic (30-day average; criteria continuous concentration or CCC) standards based on pH and temperature. USEPA also recommends that no 4-day average concentration should exceed 2.5 times the 30-day CCC. USEPA found that as pH increased, both the acute and chronic toxicity of ammonia increased. Salmonids were more sensitive to acute toxicity effects than other species. However, while the acute toxicity of ammonia was not influenced by temperature, it was found that invertebrates and young fish experienced increasing chronic toxicity effects with increasing temperature. Because the unnamed tributary has a beneficial use of cold freshwater habitat and the presence of salmonids and early fish life stages in the unnamed tributary is well-documented, the recommended criteria for waters where salmonids and early life stages are present were used.

The previous permit contained seasonal criteria that occurred during the summer (1 April through 15 November) and winter (16 November through 31 March). The maximum permitted effluent pH is 8.5, as the Basin Plan objective for pH in the receiving stream is the range of 6.5 to 8.5. In order to protect against the worst-case short-term exposure of an organism, a pH value of 8.5 was used to derive the acute criterion. The resulting acute criteria are 2.14 mg/L ammonia as N for both summer (1 April through 15 November) and winter (16 November through 31 March).

The maximum observed 30-day average receiving water temperatures at RSW-001U for summer and winter periods were 83°F (28.4°C) and 67°F (19.5°C), respectively for the rolling 30-day periods ending August 2015 and March 2015. The maximum observed receiving water pH values were

7.7 on 1 April 2015 and 7.9 on 18 November 2013. Using a maximum permitted effluent pH value of 8.5 and the worst-case temperature values of 83°F (28.4°C) (summer) and 67°F (19.5°C) (winter) on a rolling 30-day basis, the resulting 30-day CCCs are 1.46 (summer) and 2.88 mg/L (as N) (winter). *The 4-day average concentrations are derived in accordance with the USEPA criterion as 2.5 times the 30-day CCC.* Based on the 30-day CCCs of 1.46 (summer) and 2.88 mg/L (as N) (winter)mg/L (as N), the 4-day average concentrations that should not be exceeded are 3.66 (summer) and 7.21 mg/L (as N) (winter).

- (b) **RPA Results.** The Facility is a POTW that treats domestic wastewater. Untreated domestic wastewater contains ammonia in concentrations that, without treatment, would be harmful to fish and would violate the Basin Plan narrative toxicity objective if discharged to the receiving water. Reasonable potential therefore exists and effluent limitations are required.

Federal regulations at 40 C.F.R. §122.44(d)(1)(i) requires that, "*Limitations must control all pollutants or pollutant parameters (either conventional, nonconventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*" For priority pollutants, the SIP dictates the procedures for conducting the RPA. Ammonia is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

USEPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" USEPA's TSD also recommends that factors other than effluent data should be considered in the RPA, "When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data." With regard to POTW's, USEPA recommends that, "*POTW's should also be characterized for the possibility of chlorine and ammonia problems.*" (TSD, p. 50)

Nitrification is a biological process that converts ammonia to nitrite and

nitrite to nitrate. Denitrification is a process that converts nitrate to nitrite or nitric oxide and then to nitrous oxide or nitrogen gas, which is then released to the atmosphere. The Discharger currently uses nitrification to remove ammonia from the waste stream. Inadequate or incomplete nitrification may result in the discharge of ammonia to the receiving stream. Ammonia is known to cause toxicity to aquatic organisms in surface waters. Discharges of ammonia in concentrations that produce detrimental physiological responses to human, plant, animal, or aquatic life would violate the Basin Plan narrative toxicity objective. Although the Discharger nitrifies the discharge, inadequate or incomplete nitrification creates the potential for ammonia to be discharged and provides the basis for the discharge to have a reasonable potential to cause or contribute to an in-stream excursion above the NAWQC. Therefore, the Central Valley Water Board finds the discharge has reasonable potential for ammonia and WQBEL's are required.

- (c) **WQBEL's.** The Central Valley Water Board calculates WQBEL's in accordance with SIP procedures for non-CTR constituents, and ammonia is a non-CTR constituent. The SIP procedure assumes a 4-day averaging period for calculating the long-term average discharge condition (LTA). However, USEPA recommends modifying the procedure for calculating permit limits for ammonia using a 30-day averaging period for the calculation of the LTA corresponding to the 30-day CCC. Therefore, while the LTAs corresponding to the acute and 4-day chronic criteria were calculated according to SIP procedures, the LTA corresponding to the 30-day CCC was calculated assuming a 30-day averaging period. The lowest LTA representing the acute, 4-day CCC, and 30-day CCC is then selected for deriving the average monthly effluent limitation (AMEL) and the average weekly effluent limitation (AWEL). The remainder of the WQBEL calculation for ammonia was performed according to the SIP procedures. Based on the 2012 to 2015 data average monthly effluent limitations (AMEL) for ammonia are 1.1 mg/L (as N) for both 1 April through 15 November and from 16 November through 31 March. Average weekly effluent limitations (AWEL) for ammonia are 1.8 mg/L (as N) for both 1 April through 15 November and from 16 November through 31 March. Consistent with protocol for current tentative ammonia WQBELs determination this permit will retain the seasonal discharge limitations from Order R5-2008-0184. The AMELs for 1 April through 15 November and for 16 November through 31 March will be 0.6 mg/L (as N) and 1.2 mg/L (as N), respectively. The AWELs for 1 April through 15 November and for 16 November through 31 March will be 1.0 mg/L (as N) and 1.8 mg/L (as N), respectively.
- (d) **Plant Performance and Attainability.** Based on 182 samples there were 161 non-detects. The maximum effluent concentration of ammonia of 5.7 mg/L on 16 April 2014 was due to improper mixing in the Biolac basin. The malfunction was corrected by replacing filters and diffusers in the basin. By removing this data point the MEC becomes a single detection of 1.2 mg/L from 13 July 2015. No receiving water ammonia sampling

was conducted. The Central Valley Water Board concludes, therefore, that immediate compliance with these effluent limitations is feasible.

ii. **Mercury**

- (a) **WQO.** The current NAWQC for protection of freshwater aquatic life, continuous concentration, for mercury is 0.77 µg/L (30-day average, chronic criteria). The CTR contains a human health criterion (based on a threshold dose level causing neurological effects in infants) of 0.050 µg/L for waters from which both water and aquatic organisms are consumed. Both values are controversial and subject to change. In 40 C.F.R. part 131, USEPA acknowledges that the human health criteria may not be protective of some aquatic or endangered species and that “...more stringent mercury limits may be determined and implemented through use of the State’s narrative criterion.” In the CTR, USEPA reserved the mercury criteria for freshwater and aquatic life and may adopt new criteria at a later date.
- (b) **RPA Results.** The maximum observed effluent mercury concentration was 0.008 µg/L. Mercury bioaccumulates in fish tissue and, therefore, the discharge of mercury to the receiving water may contribute to exceedances of the narrative toxicity objective and impact beneficial uses. The unnamed tributary has been listed as an impaired water body pursuant to CWA section 303(d) because of mercury and the discharge must not cause or contribute to increased mercury levels.
- (c) **WQBEL’s.** Order R5-2008-0184 contains a monthly effluent limitation of 0.0082 pounds (lbs)/month to protect the Sacramento/San Joaquin Delta. This Order retains this performance-based mass effluent limitation, expressed as an annual limit of 0.098 lbs/year for mercury for the effluent discharged to the receiving water. This limitation is based on maintaining the mercury loading at the current level until a TMDL can be established and USEPA develops mercury standards that are protective of human health. The mass limitation was derived using the maximum observed effluent mercury concentration and the design average daily flow rate of the current treatment plant 0.70 mgd):

Effluent concentration (mg/L) * Design average daily flow rate * 8.34
(conversion factor) * 365 days/year = lbs/year

If USEPA develops new water quality standards for mercury, this permit may be reopened and the effluent limitations adjusted.

- (d) **Plant Performance and Attainability.** The highest annual average discharge for the period from June 2012 to January 2016 is 0.016 lbs/year. Since 0.098 lbs/year is a performance-based effluent limitation, the Discharger can meet this limitation.

iii. **Pathogens**

- (a) **WQO.** DDW has developed reclamation criteria, CCR, Division 4, Chapter 3 (Title 22), for the reuse of wastewater. Title 22 requires that for spray irrigation of food crops, parks, playgrounds, schoolyards, and other areas

of similar public access, wastewater be adequately disinfected, oxidized, coagulated, clarified, and filtered, and that the effluent total coliform levels not exceed 2.2 MPN/100 mL as a 7-day median; 23 MPN/100 mL, not to be exceeded more than once in a 30-day period; and 240 MPN/100 mL, at any time.

Title 22 also requires that recycled water used as a source of water supply for non-restricted recreational impoundments be disinfected tertiary recycled water that has been subjected to conventional treatment. A non-restricted recreational impoundment is defined as “...an impoundment of recycled water, in which no limitations are imposed on body-contact water recreational activities.” Title 22 is not directly applicable to surface waters; however, the Central Valley Water Board finds that it is appropriate to apply an equivalent level of treatment to that required by the DDW’s reclamation criteria because the receiving water is used for irrigation of agricultural land and for contact recreation purposes. The stringent disinfection criteria of Title 22 are appropriate since the undiluted effluent may be used for the irrigation of food crops and/or for body-contact water recreation. Coliform organisms are intended as an indicator of the effectiveness of the entire treatment train and the effectiveness of removing other pathogens.

- (b) **RPA Results.** Raw domestic wastewater inherently contains human pathogens that threaten human health and life, and constitute a threatened pollution and nuisance under CWC Section 13050 if discharged untreated to the receiving water. Reasonable potential for pathogens therefore exists and WQBEL’s are required.

Federal regulations at 40 C.F.R. §122.44(d)(1)(i) requires that, “*Limitations must control all pollutants or pollutant parameters (either conventional, nonconventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*” For priority pollutants, the SIP dictates the procedures for conducting the RPA. Pathogens are not priority pollutants. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

USEPA’s September 2010 NPDES Permit Writer’s Manual, page 6-30, states, “*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL’s are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL’s for pathogens in all permits for POTW’s discharging to contact recreational waters).*” USEPA’s TSD also recommends that factors other than effluent data should be considered in

the RPA, *"When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data."* (TSD, p. 50)

The beneficial uses of the unnamed tributary include water contact recreation, and agricultural irrigation supply, and there is, at times, less than 20:1 dilution. To protect these beneficial uses, the Central Valley Water Board finds that the wastewater must be disinfected and adequately treated to prevent disease. Although the Discharger provides disinfection, inadequate or incomplete disinfection creates the potential for pathogens to be discharged. Therefore, the Central Valley Water Board finds the discharge has reasonable potential for pathogens and WQBEL's are required.

- (c) **WQBEL's.** In accordance with the requirements of Title 22, this Order includes effluent limitations for total coliform organisms of 2.2 MPN/100 mL as a 7-day median; 23 MPN/100 mL, not to be exceeded more than once in a 30-day period; and 240 MPN/100 mL as an instantaneous maximum.

This Order contains effluent limitations for BOD₅, total coliform organisms, and TSS and requires a tertiary level of treatment, or equivalent, necessary to protect the beneficial uses of the receiving water. The Central Valley Water Board has previously considered the factors in Water Code section 13241 in establishing these requirements.

Final WQBEL's for BOD₅ and TSS are based on the technical capability of the tertiary process, which is necessary to protect the beneficial uses of the receiving water. BOD₅ is a measure of the amount of oxygen used in the biochemical oxidation of organic matter. The tertiary treatment standards for BOD₅ and TSS are indicators of the effectiveness of the tertiary treatment process. The principal design parameter for wastewater treatment plants is the daily BOD₅ and TSS loading rates and the corresponding removal rate of the system. The application of tertiary treatment processes results in the ability to achieve lower levels for BOD₅ and TSS than the secondary standards currently prescribed. Therefore, this Order requires AMEL's for BOD₅ and TSS of 10 mg/L, which is technically based on the capability of a tertiary system. In addition to the average weekly and average monthly effluent limitations, a daily maximum effluent limitation for BOD₅ and TSS is included in the Order to ensure that the treatment works are not organically overloaded and operate in accordance with design capabilities.

- (d) **Plant Performance and Attainability.** The Facility provides tertiary treatment and utilizes a UV disinfection system which was designed to achieve Title 22 criteria. The Central Valley Water Board concludes,

therefore, that immediate compliance with these effluent limitations is feasible.

iv. pH

- (a) **WQO.** The Basin Plan includes a water quality objective for surface waters (except for Goose Lake) that the "...pH shall not be depressed below 6.5 nor raised above 8.5."
- (b) **RPA Results.** Raw domestic wastewater inherently has variable pH. Additionally, some wastewater treatment processes can increase or decrease wastewater pH which if not properly controlled, would violate the Basin Plan's numeric objective for pH in the receiving water. Therefore, reasonable potential exists for pH and WQBEL's are required.

Federal regulations at 40 C.F.R. §122.44(d)(1)(i) requires that, "*Limitations must control all pollutants or pollutant parameters (either conventional, nonconventional, or toxic pollutants) which the Director determines are or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to an excursion above any State water quality standard, including State narrative criteria for water quality.*" For priority pollutants, the SIP dictates the procedures for conducting the RPA. pH is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA for this non-priority pollutant constituent.

USEPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available... A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" USEPA's TSD also recommends that factors other than effluent data should be considered in the RPA, "*When determining whether or not a discharge causes, has the reasonable potential to cause, or contributes to an excursion of a numeric or narrative water quality criterion for individual toxicants or for toxicity, the regulatory authority can use a variety of factors and information where facility-specific effluent monitoring data are unavailable. These factors also should be considered with available effluent monitoring data.*" (TSD, p. 50)

The Facility is a POTW that treats domestic wastewater. Based on 586 samples taken from June 2012 to January 2016, the maximum pH reported was 8.3 and the minimum was 6.5. Although the Discharger has proper pH controls in place, the pH for the Facility's influent varies due to the nature of municipal sewage, which provides the basis for the discharge to have a reasonable potential to cause or contribute to an in-stream

excursion above the Basin Plan's numeric objective for pH in the receiving water. Therefore, WQBEL's for pH are required in this Order.

- (c) **WQBEL's.** Effluent limitations for pH of 6.5 as an instantaneous minimum and 8.5 as an instantaneous maximum are included in this Order based on protection of the Basin Plan objectives for pH.
- (d) **Plant Performance and Attainability.** Effluent pH ranged from 6.5 to 8.3. The Central Valley Water Board concludes, therefore, that immediate compliance with these effluent limitations is feasible.

v. **Salinity**

- (a) **WQO.** The Basin Plan contains a chemical constituent objective that incorporates state MCLs, contains a narrative objective, and contains numeric water quality objectives for certain specified water bodies for electrical conductivity, total dissolved solids, sulfate, and chloride. The USEPA Ambient Water Quality Criteria for Chloride recommends acute and chronic criteria for the protection of aquatic life. There are no USEPA water quality criteria for the protection of aquatic life for electrical conductivity, total dissolved solids, and sulfate. Additionally, there are no USEPA numeric water quality criteria for the protection of agricultural, livestock, and industrial uses. Numeric values for the protection of these uses are typically based on site specific conditions and evaluations to determine the appropriate constituent threshold necessary to interpret the narrative chemical constituent Basin Plan objective. The Central Valley Water Board must determine the applicable numeric limit to implement the narrative objective for the protection of agricultural supply. The Central Valley Water Board is currently implementing the CV-SALTS initiative to develop a Basin Plan Amendment that will establish a salt and nitrate Management Plan for the Central Valley. Through this effort the Basin Plan will be amended to define how the narrative water quality objective is to be interpreted for the protection of agricultural use. All studies conducted through this Order to establish an agricultural limit to implement the narrative objective will be reviewed by and consistent with the efforts currently underway by CV-SALTS.

Table F-9. Salinity Water Quality Criteria/Objectives

Parameter	Agricultural WQ Objective ¹	USEPA NAWQC	Effluent	
			Average ²	Maximum
EC (µmhos/cm)	Varies ²	N/A	928	1160
TDS (mg/L)	Varies	N/A	608	775
Sulfate (mg/L)	Varies	N/A	N/A	N/A
Chloride (mg/L)	Varies	860 1-hr 230 4-day	N/A	N/A

-
- ¹ Narrative chemical constituent objective of the Basin Plan. Procedures for establishing the applicable numeric limitation to implement the narrative objective can be found in the Policy for Application of Water Quality, Chapter IV, Section 8 of the Basin Plan. However, the Basin Plan does not require improvement over naturally occurring background concentrations. In cases where the natural background concentration of a particular constituent exceeds an applicable water quality objective, the natural background concentration will be considered to comply with the objective.
- ² Maximum calendar annual average.

(b) **RPA Results.**

- (1) **Chloride.** Sampling for chloride was not conducted in either the effluent or in the receiving water.
- (2) **Electrical Conductivity.** A review of the Discharger's monitoring reports shows an average effluent EC of 928 $\mu\text{mhos/cm}$, with a range from 752 $\mu\text{mhos/cm}$ to 1160 $\mu\text{mhos/cm}$. The background receiving water EC averaged 1094 $\mu\text{mhos/cm}$.
- (3) **Sulfate.** Sampling for sulfate was not conducted in either the effluent or in the receiving water.
- (4) **Total Dissolved Solids.** The average TDS effluent concentration was 608 mg/L with concentrations ranging from 470 mg/L to 775 mg/L. Sampling for TDS was not conducted in the receiving water.

- (c) **WQBEL's.** The Central Valley Water Board, with cooperation of the State Water Board, has begun the process to develop a new policy for the regulation of salinity in the Central Valley. In a statement issued at the 16 March 2006, Central Valley Water Board meeting, Board Member Dr. Karl Longley recommended that the Central Valley Water Board continue to exercise its authority to regulate discharges of salt to minimize salinity increases within the Central Valley. Dr. Longley stated, "*The process of developing new salinity control policies does not, therefore, mean that we should stop regulating salt discharges until a salinity Policy is developed. In the meantime, the Board should consider all possible interim approaches to continue controlling and regulating salts in a reasonable manner, and encourage all stakeholder groups that may be affected by the Regional Board's policy to actively participate in policy development.*"

The maximum effluent concentration (MEC) for EC, was 1160 $\mu\text{mhos/cm}$ while the maximum observed upstream receiving water concentration was 1094 $\mu\text{mhos/cm}$. Since the Discharger discharges to an unnamed tributary to Powell Slough, a tributary of the Sacramento River and eventually the Sacramento-San Joaquin Delta, of additional concern is the salt contribution to Delta waters. Allowing the Discharger to increase its current salt loading may be contrary to the Region-wide effort to address salinity in the Central Valley. Therefore, this Order maintains the performance-based effluent limit of 1500 $\mu\text{mhos/cm}$ to continue to control and regulate salt discharges.

Until the Central Valley Water Board completes development of a new salinity policy for the Central Valley, this Order includes an interim performance-based monthly average effluent limitation of 1500 $\mu\text{mhos/cm}$

for EC. This interim performance-based effluent limitation is derived using the maximum effluent concentration observed from the Facility and maintaining the discharge of salinity at the existing discharge EC levels.

The Antidegradation Policy (Resolution No. 68-16) requires that the Discharger implement best practicable treatment or control (BPTC) of its discharge. For salinity, the Central Valley Water Board is considering limiting effluent salinity of municipal wastewater treatment plants to an increment of 500 $\mu\text{mhos/cm}$ over the salinity of the municipal water supply as representing BPTC. This Order includes an interim performance-based effluent limitation for EC but no final effluent limitation because sufficient information does not exist for the water supply for the Discharger. Final effluent limitations for salinity based on BPTC will be established subsequent to the collection and analysis by the Discharger of EC in the Discharger's water supply. This Order requires weekly monitoring of EC and twice monthly monitoring of TDS of the Discharger's influent, and annual monitoring of EC and TDS in the Dischargers water supply (see Attachment E sections III.A. and IX.B.).

This Order also requires the Discharger to implement salinity minimization measures to reduce the salinity in its discharge to the unnamed tributary. Specifically, the Special Provision contained in VI.C.3.a. of this Order requires the Discharger to continue to implement a salinity evaluation and minimization plan to address sources of salinity from the Facility. The Discharger shall provide annual reports discussing the effectiveness of implementing the salinity evaluation and minimization plan, and changes in the salinity in the effluent discharge if it is increasing. The salinity evaluation and minimization plan shall be reviewed and updated if the effluent annual average calendar year electrical conductivity concentration is greater than 1500 $\mu\text{mhos/cm}$. Implementation measures to reduce salt loading may include source control, mineralization reduction, chemical addition reductions, changing to water supplies with lower salinity, and limiting the salt load from domestic and industrial dischargers. Compliance with these requirements will result in a salinity reduction in the effluent discharged to the receiving water; however, the discharge may cause or contribute to an exceedance of a water quality objective for salinity until adequate measures are implemented to meet those objectives.

- (d) **Plant Performance and Attainability.** Based on monitoring data obtained between June 2012 and January 2016 the maximum annual average EC concentration was 928 $\mu\text{mhos/cm}$. The Central Valley Water Board concludes, therefore, that immediate compliance with this effluent limitation is feasible.

vi. **Settleable Solids**

- (a) **WQO.** For inland surface waters, the Basin Plan states that "water shall not contain substances in concentrations that result in the deposition of material that causes nuisance or adversely affects beneficial uses."

- (b) **RPA Results.** The discharge of tertiary treated effluent has a reasonable potential to cause or contribute to an excursion above the Basin Plan's narrative objective for settleable solids.
- (c) **WQBEL's.** This Order contains average monthly and average daily effluent limitations for settleable solids. Because the amount of settleable solids is measured in terms of volume per volume without a mass component, it is impracticable to calculate mass limitations for inclusion in this Order. A daily maximum effluent limitation for settleable solids is included in the Order, in lieu of a weekly average, to ensure that the treatment works operate in accordance with design capabilities.
- (d) **Plant Performance and Attainability.** Based on monitoring data obtained between June 2012 and January 2016 the maximum annual average total settleable solids concentration was non-detect (ND). The Central Valley Water Board concludes, therefore, that immediate compliance with this effluent limitation is feasible.

4. WQBEL Calculations

- a. This Order includes WQBEL's for ammonia, BOD₅, electrical conductivity, pH, settleable solids, total coliform organisms, and TSS. The general methodology for calculating WQBEL's based on the different criteria/objectives is described in subsections IV.C.4.b through e, below. See Attachment H for the WQBEL calculations.
- b. **Effluent Concentration Allowance.** For each water quality criterion/objective, the ECA is calculated using the following steady-state mass balance equation from Section 1.4 of the SIP:

$$\begin{array}{ll} ECA = C + D(C - B) & \text{where } C > B, \text{ and} \\ ECA = C & \text{where } C \leq B \end{array}$$

where:

ECA	= effluent concentration allowance
D	= dilution credit
C	= the priority pollutant criterion/objective
B	= the ambient background concentration.

According to the SIP, the ambient background concentration (B) in the equation above shall be the observed maximum with the exception that an ECA calculated from a priority pollutant criterion/objective that is intended to protect human health from carcinogenic effects shall use the arithmetic mean concentration of the ambient background samples. For ECAs based on MCLs, which implement the Basin Plan's chemical constituents objective and are applied as annual averages, an arithmetic mean is also used for B due to the long-term basis of the criteria.

- c. **Basin Plan Objectives and MCLs.** For WQBEL's based on site-specific numeric Basin Plan objectives or MCLs, the effluent limitations are applied directly as the ECA as either an MDEL, AWEL, AMEL, or average annual effluent limitations, depending on the averaging period of the objective.

- d. **Aquatic Toxicity Criteria.** WQBEL's based on acute and chronic aquatic toxicity criteria are calculated in accordance with Section 1.4 of the SIP. The ECAs are converted to equivalent long-term averages (i.e. LTA_{acute} and $LTA_{chronic}$) using statistical multipliers and the lowest LTA is used to calculate the AMEL and MDEL using additional statistical multipliers.
- e. **Human Health Criteria.** WQBEL's based on human health criteria, are also calculated in accordance with Section 1.4 of the SIP. The AMEL is set equal to ECA and a statistical multiplier was used to calculate the MDEL.

$$AMEL = mult_{AMEL} \left[\min \left(\overbrace{M_A ECA_{acute}}^{LTA_{acute}}, M_C ECA_{chronic} \right) \right]$$

$$MDEL = mult_{MDEL} \left[\min \left(M_A ECA_{acute}, \underbrace{M_C ECA_{chronic}}_{LTA_{chronic}} \right) \right]$$

$$MDEL_{HH} = \left(\frac{mult_{MDEL}}{mult_{AMEL}} \right) AMEL_{HH}$$

where:

$mult_{AMEL}$ = statistical multiplier converting minimum LTA to AMEL

$mult_{MDEL}$ = statistical multiplier converting minimum LTA to MDEL

M_A = statistical multiplier converting acute ECA to LTA_{acute}

M_C = statistical multiplier converting chronic ECA to $LTA_{chronic}$

Summary of Water Quality-Based Effluent Limitations Discharge Point No. 001

Table F-10. Summary of Water Quality-Based Effluent Limitations

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Conventional Pollutants						
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	20	--	--
	lbs/day ¹	58	88	120	--	--
pH	standard units	--	--	--	6.5	8.5
Total Suspended Solids	mg/L	10	15	20	--	--
	lbs/day ¹	58	88	120	--	--
Non-Conventional Pollutants						
Ammonia Nitrogen, Total (as N) 1 April to 15 November	mg/L	0.6	1.0	--	--	--
	lbs/day ¹	3.5	5.8	--	--	--
	mg/L	1.2	1.8	--	--	--

Parameter	Units	Effluent Limitations				
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum
Ammonia Nitrogen, Total (as N) 16 November to 31 March	lbs/day ¹	7.0	10	--	--	--
Electrical Conductivity	µmhos/cm	1,500 ²	--	--	--	--
Settleable Solids	mL/L	0.1	--	0.2	--	--
Total Coliform Organisms	MPN/100 mL	--	2.2 ³	23 ⁴	--	240

¹ Based on a design average dry weather flow of 0.7 MGD.

² Applied as an annual average.

³ Applied as a 7-day median effluent limitation.

⁴ Not to be exceeded more than once in any 30-day period.

5. Whole Effluent Toxicity (WET)

For compliance with the Basin Plan's narrative toxicity objective, this Order requires the Discharger to conduct whole effluent toxicity testing for acute and chronic toxicity, as specified in the Monitoring and Reporting Program (Attachment E section V.). This Order also contains effluent limitations for acute toxicity and requires the Discharger to implement best management practices to investigate the causes of, and identify corrective actions to reduce or eliminate effluent toxicity.

- a. **Acute Aquatic Toxicity.** The Basin Plan contains a narrative toxicity objective that states, "*All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.*" (Basin Plan at page III-8.00) The Basin Plan also states that, "...effluent limits based upon acute biotoxicity tests of effluents will be prescribed where appropriate...".

For priority pollutants, the SIP dictates the procedures for conducting the RPA. Acute toxicity is not a priority pollutant. Therefore, the Central Valley Water Board is not restricted to one particular RPA method. Therefore, due to the site-specific conditions of the discharge, the Central Valley Water Board has used professional judgment in determining the appropriate method for conducting the RPA. USEPA's September 2010 NPDES Permit Writer's Manual, page 6-30, states, "*State implementation procedures might allow, or even require, a permit writer to determine reasonable potential through a qualitative assessment process without using available facility-specific effluent monitoring data or when such data are not available...A permitting authority might also determine that WQBEL's are required for specific pollutants for all facilities that exhibit certain operational or discharge characteristics (e.g., WQBEL's for pathogens in all permits for POTW's discharging to contact recreational waters).*" Although the discharge has been consistently in compliance with the acute effluent limitations, the Facility is a POTW that treats domestic wastewater containing ammonia and other acutely toxic pollutants. Acute

toxicity effluent limits are required to ensure compliance with the Basin Plan's narrative toxicity objective.

USEPA Region 9 provided guidance for the development of acute toxicity effluent limitations in the absence of numeric water quality objectives for toxicity in its document titled "Guidance for NPDES Permit Issuance", dated February 1994. In section B.2. "Toxicity Requirements" (pgs. 14-15) it states that, *"In the absence of specific numeric water quality objectives for acute and chronic toxicity, the narrative criterion 'no toxics in toxic amounts' applies. Achievement of the narrative criterion, as applied herein, means that ambient waters shall not demonstrate for acute toxicity: 1) less than 90% survival, 50% of the time, based on the monthly median, or 2) less than 70% survival, 10% of the time, based on any monthly median. For chronic toxicity, ambient waters shall not demonstrate a test result of greater than 1 TUC."* Accordingly, effluent limitations for acute toxicity have been included in this Order as follows:

Acute Toxicity. Survival of aquatic organisms in 96-hour bioassays of undiluted waste shall be no less than:

Minimum for any one bioassay----- 70%
Median for any three consecutive bioassays ----- 90%

- b. **Chronic Aquatic Toxicity.** The Basin Plan contains a narrative toxicity objective that states, *"All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life."* (Basin Plan at page III-8.00. As shown in the table below, based on chronic WET testing performed by the Discharger from 24 January 2012 through 12 August 2015, the discharge does not have reasonable potential to cause or contribute to an in-stream excursion above the Basin Plan's narrative toxicity objective.

Table F-11. Whole Effluent Chronic Toxicity Testing Results

Chronic Toxicity Data					
Date	Pimephales Promelas		Ceriodaphnia Dubia		Selenastrum Capricornutum
	Survival	Growth	Survival	Growth	Growth
1/24/2012	1	1	1	1	1
4/24/2012	1	1	1	1	1
1/9/2013	1	1	1	1	1
7/9/2013	1	1	1	1	1
1/7/2014	1	1	1	1	1
7/8/2014	1	1 ¹	1	1	1
1/6/2015	1	1	1	1	1
8/12/2015	1	1	1	1	1

¹ Growth of pimephales promelas exposed to 100% effluent was significantly reduced from that in RSW-001U control. Based on the draft Test of Significant Toxicity TUC=1

The Monitoring and Reporting Program of this Order requires quarterly chronic WET monitoring for demonstration of compliance with the narrative toxicity objective. In addition to WET monitoring, the Special Provision in section VI.C.2.a of the Order requires the Discharger to submit to the Central Valley Water Board an Initial Investigative TRE Workplan for approval by the Executive Officer, to ensure the Discharger has a plan to immediately move forward with the initial tiers of a TRE, in the event effluent toxicity is encountered in the future. The provision also includes a numeric toxicity monitoring trigger, requirements for accelerated monitoring, and requirements for TRE initiation if toxicity is demonstrated.

Numeric chronic WET effluent limitations have not been included in this Order. The SIP contains implementation gaps regarding the appropriate form and implementation of chronic toxicity limits. This has resulted in the petitioning of a NPDES permit in the Los Angeles Region¹ that contained numeric chronic toxicity effluent limitations. To address the petition, the State Water Board adopted WQO 2003-012 directing its staff to revise the toxicity control provisions in the SIP. The State Water Board states the following in WQO 2003-012, *"In reviewing this petition and receiving comments from numerous interested persons on the propriety of including numeric effluent limitations for chronic toxicity in NPDES permits for publicly-owned treatment works that discharge to inland waters, we have determined that this issue should be considered in a regulatory setting, in order to allow for full public discussion and deliberation. We intend to modify the SIP to specifically address the issue. We anticipate that review will occur within the next year. We therefore decline to make a determination here regarding the propriety of the final numeric effluent limitations for chronic toxicity contained in these permits."* The process to revise the SIP is currently underway. Proposed changes include clarifying the appropriate form of effluent toxicity limits in NPDES permits and general expansion and standardization of toxicity control implementation related to the NPDES permitting process. Since the toxicity control provisions in the SIP are under revision it is infeasible to develop numeric effluent limitations for chronic toxicity. Therefore, this Order requires that the Discharger meet best management practices for compliance with the Basin Plan's narrative toxicity objective, as allowed under 40 C.F.R. section 122.44(k).

To ensure compliance with the Basin Plan's narrative toxicity objective, the Discharger is required to conduct chronic WET testing, as specified in the Monitoring and Reporting Program (Attachment E section V.). Furthermore, the Special Provision contained at VI.C.2.a. of this Order requires the Discharger to investigate the causes of, and identify and implement corrective actions to reduce or eliminate effluent toxicity. If the discharge demonstrates toxicity exceeding the numeric toxicity monitoring trigger, the Discharger is required to initiate a Toxicity Reduction Evaluation (TRE) in accordance with an approved TRE work plan. The numeric toxicity monitoring trigger is not an effluent limitation; it is the toxicity threshold at which the

¹ In the Matter of the Review of Own Motion of Waste Discharge Requirements Order Nos. R4-2002-0121 [NPDES No. CA0054011] and R4-2002-0123 [NPDES NO. CA0055119] and Time Schedule Order Nos. R4-2002-0122 and R4-2002-0124 for Los Coyotes and Long Beach Wastewater Reclamation Plants Issued by the California Regional Water Quality Control Board, Los Angeles Region SWRCB/OCC FILES A-1496 AND 1496(a)

Discharger is required to perform accelerated chronic toxicity monitoring, as well as, the threshold to initiate a TRE if effluent toxicity has been demonstrated.

D. Final Effluent Limitation Considerations

1. Mass-based Effluent Limitations

40 C.F.R. section 122.45(f)(1) requires effluent limitations be expressed in terms of mass, with some exceptions, and 40 C.F.R. section 122.45(f)(2) allows pollutants that are limited in terms of mass to additionally be limited in terms of other units of measurement. This Order includes effluent limitations expressed in terms of mass and concentration. In addition, pursuant to the exceptions to mass limitations provided in 40 C.F.R. section 122.45(f)(1), some effluent limitations are not expressed in terms of mass, such as pH and temperature, and when the applicable standards are expressed in terms of concentration (e.g., CTR criteria and MCL's) and mass limitations are not necessary to protect the beneficial uses of the receiving water.

Mass-based effluent limitations were calculated based upon the design flow (Average Dry Weather Flow) permitted in section IV.A.1.f of this Order.

2. Averaging Periods for Effluent Limitations

40 C.F.R. section 122.45 (d) requires average weekly and average monthly discharge limitations for POTW's unless impracticable. The rationale for using shorter averaging periods for these constituents is discussed in section IV.C.3 of this Fact Sheet.

3. Satisfaction of Anti-Backsliding Requirements

The CWA specifies that a revised permit may not include effluent limitations that are less stringent than the previous permit unless a less stringent limitation is justified based on exceptions to the anti-backsliding provisions contained in CWA sections 402(o) or 303(d)(4), or, where applicable, 40 C.F.R. section 122.44(l).

The effluent limitations in this Order are at least as stringent as the effluent limitations in the previous Order, with the exception of effluent limitations for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes. The effluent limitations for these pollutants are less stringent than those in Order R5-2008-0184. This relaxation of effluent limitations is consistent with the anti-backsliding requirements of the CWA and federal regulations.

- a. **CWA section 402(o)(1) and 303(d)(4).** CWA section 402(o)(1) prohibits the establishment of less stringent water quality-based effluent limits "*except in compliance with Section 303(d)(4).*" CWA section 303(d)(4) has two parts: paragraph (A) which applies to nonattainment waters and paragraph (B) which applies to attainment waters.
 - i. For waters where standards are not attained, CWA section 304(d)(4)(A) specifies that any effluent limit based on a TMDL or other WLA may be revised only if the cumulative effect of all such revised effluent limits based on such TMDL's or WLAs will assure the attainment of such water quality standards.

- ii. For attainment waters, CWA section 303(d)(4)(B) specifies that a limitation based on a water quality standard may be relaxed where the action is consistent with the antidegradation policy.

The unnamed tributary is considered an attainment water for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes because the receiving water is not listed as impaired on the 303(d) list for these constituents.¹ As discussed in section IV.D.4, below, removal of the effluent limits complies with federal and state antidegradation requirements. Thus, removal of the effluent limitations for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes from Order R5-2008-0184 meets the exception in CWA section 303(d)(4)(B).

- b. **CWA section 402(o)(2).** CWA section 402(o)(2) provides several exceptions to the anti-backsliding regulations. CWA 402(o)(2)(B)(i) allows a renewed, reissued, or modified permit to contain a less stringent effluent limitation for a pollutant if information is available which was not available at the time of permit issuance (other than revised regulations, guidance, or test methods) and which would have justified the application of a less stringent effluent limitation at the time of permit issuance.

As described further in section IV.C.3.b of this Fact Sheet, updated information that was not available at the time Order R5-2008-0184 was issued indicates that aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes do not exhibit reasonable potential to cause or contribute to an exceedance of water quality objectives in the receiving water. Additionally, updated information that was not available at the time Order R5-2008-0184 was issued indicates that less stringent effluent limitations for aluminum, bis (2-ethylhexyl) phthalate, copper, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes based on available dilution credits satisfy requirements in CWA section 402(o)(2). The updated information that supports the relaxation of effluent limitations for these constituents includes the following:

- i. **Aluminum.** Effluent monitoring data collected between June 2012 and January 2016 indicates that aluminum in the discharge does not exhibit reasonable potential to cause or contribute to an exceedance of the Secondary MCL.
- ii. **Bis (2-ethylhexyl) Phthalate.** Effluent and receiving water monitoring data collected between June 2012 and January 2016 for bis (2-ethylhexyl) phthalate

¹ "The exceptions in Section 303(d)(4) address both waters in attainment with water quality standards and those not in attainment, i.e. waters on the section 303(d) impaired waters list." State Water Board Order WQ 2008-0006, Berry Petroleum Company, Poso Creek/McVan Facility.

indicates that the discharge does not exhibit reasonable potential to cause or contribute to an exceedance of the fish consumption only criteria.

- iii. **Chlorine Residual.** The Discharger converted from chlorine disinfection to UV disinfection upon operation of the updated facility in October 2008. With approval of the BPA, the criteria no longer apply so there is no RP for chlorine residual.
- iv. **Chlorodibromomethane.** The Discharger converted from chlorine disinfection to UV disinfection upon operation of the updated facility in October 2008. With approval of the BPA, the criteria no longer apply so there is no RP for chlorodibromomethane.
- v. **Copper.** The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study*, dated October 2017) in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper and 9.57 for dissolved copper apply to the discharge. Application of the site-specific WER of 9.11 to the effluent discharge results in the Facility no longer exhibiting reasonable potential to cause or contribute to exceedance of the water quality objective for copper.
- vi. **Dichlorobromomethane.** The Discharger converted from chlorine disinfection to UV disinfection upon operation of the updated facility in October 2008. With approval of the BPA, the criteria no longer apply so there is no RP for dichlorobromomethane.
- vii. **Methylene Blue Active Substances.** Effluent monitoring data collected between June 2012 and January 2016 indicates that methylene blue active substances in the discharge does not exhibit reasonable potential to cause or contribute to an exceedance of the Secondary MCL. With approval of the BPA, the criteria no longer apply so there is no RP for methylene blue active substances.
- viii. **Nitrate plus Nitrite.** Effluent monitoring data collected between June 2012 and January 2016 indicates that nitrate plus nitrite in the discharge does exhibit reasonable potential to cause or contribute to an exceedance of the Secondary MCL. With approval of the BPA, the criteria no longer apply so there is no reasonable potential for nitrate plus nitrite.
- ix. **Total Trihalomethanes.** Trihalomethanes are common byproducts of chlorine disinfection. The Discharger converted from chlorine disinfection to UV disinfection in October 2008. With approval of the BPA, the criteria no longer apply so there is no reasonable potential for total trihalomethanes.

Thus, removal or relaxation of the effluent limitations aluminum, bis (2-ethylhexyl) phthalate, dibromochloromethane, dichlorobromomethane, iron, methylene blue active substances, manganese, nitrate plus nitrite, total residual chlorine, and total trihalomethanes from Order R5-2008-0184 is in accordance with CWA section 402(o)(2)(B)(i), which allows for the removal of effluent limitations based on information that was not available at the time of permit issuance.

- c. **Turbidity.** Order R5-2008-0184 contained effluent limitations for turbidity. The prior limitations were solely an operational check to ensure the treatment system was

functioning properly and could meet the limits for solids and coliform. The prior effluent limitations were not intended to regulate turbidity in the receiving water. Rather, turbidity is an operational parameter to determine proper system functioning and not a WQBEL.

This Order contains operational turbidity specifications to be met in lieu of effluent limitations. The revised Order does not include effluent limitations for turbidity. However, the performance-based specification in this Order is an equivalent limit that is not less stringent, and therefore does not constitute backsliding.

The revised operational specifications for turbidity are the same as the effluent limitations in Order R5-2008-0184. These revisions are consistent with State regulations implementing recycled water requirements. The revision in the turbidity limitation is consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and State Water Board Resolution 68-16 because this Order imposes equivalent or more stringent requirements than Order R5-2008-0184 and therefore does not allow degradation.

4. Antidegradation Policies

- a. **Surface Water.** The permitted surface water discharge is consistent with the antidegradation provisions of 40 C.F.R. section 131.12 and State Water Board Resolution No. 68-16. Compliance with these requirements will result in the use of best practicable treatment or control of the discharge. The impact on existing water quality will be insignificant.
- b. **Groundwater.** The Facility includes unlined equalization basins which store untreated wastewater during the treatment process. Domestic wastewater contains constituents such as total dissolved solids (TDS), specific conductivity, pathogens, nitrates, organics, metals and oxygen demanding substances (BOD). The increase in the concentration of these constituents in groundwater must be consistent with Resolution No. 68-16. Any increase in pollutant concentrations in groundwater must be shown to be necessary to allow wastewater utility service necessary to accommodate housing and economic expansion in the area and must be consistent with maximum benefit to the people of the State of California. Some degradation of groundwater by the Discharger is consistent with Resolution No. 68-16 provided that:
 - i. the degradation is limited in extent;
 - ii. the degradation after effective source control, treatment, and control is limited to waste constituents typically encountered in municipal wastewater as specified in the groundwater limitations in this Order;
 - iii. the Discharger minimizes the degradation by fully implementing, regularly maintaining, and optimally operating best practicable treatment and control (BPTC) measures; and
 - iv. the degradation does not result in water quality less than that prescribed in the Basin Plan.

Groundwater monitoring results, submitted as part of the Report of Waste Discharge, show that nitrate, TDS, and EC have degraded groundwater quality when compared to background. Water quality objectives for nitrate, TDS, and EC

are 10 mg/L, 450 mg/L, and 900 µmhos/cm. This Order requires the Discharger to evaluate the background groundwater quality to determine the source of elevated constituents at RGW-003. This Order also requires the implementation of BPTC measures to minimize impacts to groundwater.

5. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based effluent limitations and WQBEL's for individual pollutants. The technology-based effluent limitations consist of restrictions on flow and percent removal requirements for BOD₅ and TSS. Restrictions on these parameters are discussed in section IV.B.2 of this Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements. In addition, this Order contains effluent limitations more stringent than the minimum, federal technology-based requirements that are necessary to meet water quality standards.

WQBEL's have been derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. To the extent that toxic pollutant WQBEL's were derived from the CTR, the CTR is the applicable standard pursuant to 40 C.F.R. section 131.38. The procedures for calculating the individual water quality-based effluent limitations for priority pollutants are based on the CTR implemented by the SIP, which was approved by U.S. EPA on 18 May 2000. Most beneficial uses and water quality objectives contained in the Basin Plan were approved under state law and submitted to and approved by U.S. EPA prior to 30 May 2000. Any water quality objectives and beneficial uses submitted to U.S. EPA prior to 30 May 2000, but not approved by U.S. EPA before that date, are nonetheless "applicable water quality standards for purposes of the CWA" pursuant to 40 C.F.R. section 131.21(c)(1). The remaining water quality objectives and beneficial uses implemented by this Order were approved by U.S. EPA and are applicable water quality standards pursuant to section 131.21(c)(2). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

Summary of Final Effluent Limitations Discharge Point No.001

Table F-12. Summary of Final Effluent Limitations

Parameter	Units	Effluent Limitations					Basis ¹
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum	
Average Dry Weather Flow	MGD	0.7 ²	--	--	--	--	DC
Conventional Pollutants							
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	20	--	--	TTC
	lbs/day ³	58	88	120	--	--	
	% Removal	85	--	--	--	--	CFR
pH	standard units	--	--	--	6.5	8.5	BP/PO

Parameter	Units	Effluent Limitations					Basis ¹
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum	
Total Suspended Solids	mg/L	10	15	20	--	--	TTC
	lbs/day ³	58	88	120	--	--	
	% Removal	85	--	--	--	--	CFR
Priority Pollutants							
Mercury	lbs ³	0.098 ⁴	--	--	--	--	TMDL
Non-Conventional Pollutants							
Ammonia Nitrogen, Total (as N) 1 April to 15 November	mg/L	0.6	1.0	--	--	--	NAWQC
	lbs/day ¹	3.5	5.8	--	--	--	
Ammonia Nitrogen, Total (as N) 16 November to 31 March	mg/L	1.2	1.8	--	--	--	NAWQC
	lbs/day ¹	7.0	10	--	--	--	
Settleable Solids	mL/L-hr.	0.1	--	0.2	--	--	BP
Electrical Conductivity	µmhos/cm	1,500 ⁵	--	--	--	--	PB
Total Coliform Organisms	MPN/ 100 mL	--	2.2 ⁶	23 ⁷	--	240	Title 22
Acute Toxicity	% Survival	70 ⁸ /90 ⁹	--	--	--	--	BP

Parameter	Units	Effluent Limitations					Basis ¹
		Average Monthly	Average Weekly	Maximum Daily	Instantaneous Minimum	Instantaneous Maximum	
Chronic Toxicity	TUc	--	--	Narrative ¹⁰	--	--	BP

- ¹ DC – Based on the design capacity of the Facility.
TTC – Based on tertiary treatment capability. These effluent limitations reflect the capability of a properly operated tertiary treatment plant.
CFR – Based on secondary treatment standards contained in 40 C.F.R. part 133.
PO – Based on previous Order R5-2011-0034.
BP – Based on water quality objectives contained in the Basin Plan.
TMDL – Based on proposed mercury TMDL.
CTR – Based on water quality criteria contained in the California Toxics Rule and applied as specified in the SIP.
NAWQC – Based on U.S. EPA's National Ambient Water Quality Criteria for the protection of freshwater aquatic life.
PB – Performance Based
Title 22 – Based on DDW Reclamation Criteria, CCR, Division 4, Chapter 3 (Title 22).
- ² The average dry weather flow shall not exceed 0.7 MGD.
³ Based on an average dry weather flow of 0.7 MGD.
⁴ Applied as a total calendar year annual mass.
⁵ Applied as an annual average effluent limitation.
⁶ Applied as a 7-day median effluent limitation.
⁷ Not to be exceeded more than once in any 30-day period.
⁸ 70% minimum for any one bioassay.
⁹ 90% median for any three consecutive bioassays.
¹⁰ There shall be no chronic toxicity in the effluent discharge.

E. Interim Effluent Limitations– Not Applicable

F. Land Discharge Specifications– Not Applicable

G. Recycling Specifications– Not Applicable

V. RATIONALE FOR RECEIVING WATER LIMITATIONS

A. Surface Water

1. CWA section 303(a-c), requires states to adopt water quality standards, including criteria where they are necessary to protect beneficial uses. The Central Valley Water Board adopted water quality criteria as water quality objectives in the Basin Plan. The Basin Plan states that “[t]he numerical and narrative water quality objectives define the least stringent standards that the Regional Water Board will apply to regional waters in order to protect the beneficial uses.” The Basin Plan includes numeric and narrative water quality objectives for various beneficial uses and water bodies. This Order contains receiving surface water limitations based on the Basin Plan numerical and narrative water quality objectives for bacteria, biostimulatory substances, chemical constituents, color, dissolved oxygen, floating material, oil and grease, pH, pesticides, radioactivity, suspended sediment, settleable substances, suspended material, tastes and odors, temperature, toxicity, and turbidity.
 - a. **Bacteria.** The Basin Plan includes a water quality objective that “[i]n water designated for contact recreation (REC-1), the fecal coliform concentration based on a minimum of not less than five samples for any 30-day period shall not exceed a geometric mean of

200/100 ml, nor shall more than ten percent of the total number of samples taken during any 30-day period exceed 400/100 ml." Numeric Receiving Water Limitations for bacteria are included in this Order and are based on the Basin Plan objective.

- b. **Biostimulatory Substances.** The Basin Plan includes a water quality objective that *"[W]ater shall not contain biostimulatory substances which promote aquatic growths in concentrations that cause nuisance or adversely affect beneficial uses."* Receiving Water Limitations for biostimulatory substances are included in this Order and are based on the Basin Plan objective.
- c. **Color.** The Basin Plan includes a water quality objective that *"[W]ater shall be free of discoloration that causes nuisance or adversely affects beneficial uses."* Receiving Water Limitations for color are included in this Order and are based on the Basin Plan objective.
- d. **Chemical Constituents.** The Basin Plan includes a water quality objective that *"[W]aters shall not contain chemical constituents in concentrations that adversely affect beneficial uses."* Receiving Water Limitations for chemical constituents are included in this Order and are based on the Basin Plan objective.
- e. **Dissolved Oxygen.** The Colusa Basin Drain, to which the receiving water is tributary, has been designated as having the beneficial use of potential cold freshwater aquatic habitat (COLD). For water bodies designated as having COLD as a beneficial use, the Basin Plan includes a water quality objective of maintaining a minimum of 7.0 mg/L of dissolved oxygen.
- f. **Floating Material.** The Basin Plan includes a water quality objective that *"[W]ater shall not contain floating material in amounts that cause nuisance or adversely affect beneficial uses."* Receiving Water Limitations for floating material are included in this Order and are based on the Basin Plan objective.
- g. **Oil and Grease.** The Basin Plan includes a water quality objective that *"[W]aters shall not contain oils, greases, waxes, or other materials in concentrations that cause nuisance, result in a visible film or coating on the surface of the water or on objects in the water, or otherwise adversely affect beneficial uses."* Receiving Water Limitations for oil and grease are included in this Order and are based on the Basin Plan objective.
- h. **pH.** The Basin Plan includes water quality objective that *"[T]he pH shall not be depressed below 6.5 nor raised above 8.5. Changes in normal ambient pH levels shall not exceed 0.5 in fresh waters with designated COLD or WARM beneficial uses"* This Order includes receiving water limitations for both pH range and pH change.
- i. **Pesticides.** The Basin Plan includes a water quality objective for pesticides beginning on page III-6.00. Receiving Water Limitations for pesticides are included in this Order and are based on the Basin Plan objective.
- j. **Radioactivity.** The Basin Plan includes a water quality objective that *"[R]adionuclides shall not be present in concentrations that are harmful to human, plant, animal or aquatic life nor that result in the accumulation of radionuclides in the food web to an extent that*

presents a hazard to human, plant, animal or aquatic life.” The Basin Plan states further that “[A]t a minimum, waters designated for use as domestic or municipal supply (MUN) shall not contain concentrations of radionuclides in excess of the maximum contaminant levels (MCLs) specified in Table 4 (MCL Radioactivity) of Section 64443 of Title 22 of the California Code of Regulations...” Receiving Water Limitations for radioactivity are included in this Order and are based on the Basin Plan objective.

- k. **Suspended Sediments.** The Basin Plan includes a water quality objective that *“[T]he suspended sediment load and suspended sediment discharge rate of surface waters shall not be altered in such a manner as to cause nuisance or adversely affect beneficial uses”* Receiving Water Limitations for suspended sediments are included in this Order and are based on the Basin Plan objective.
- l. **Settleable Substances.** The Basin Plan includes a water quality objective that *“[W]aters shall not contain substances in concentrations that result in the deposition of material that causes nuisance or adversely affects beneficial uses.”* Receiving Water Limitations for settleable material are included in this Order and are based on the Basin Plan objective.
- m. **Suspended Material.** The Basin Plan includes a water quality objective that *“[W]aters shall not contain suspended material in concentrations that cause nuisance or adversely affect beneficial uses.”* Receiving Water Limitations for suspended material are included in this Order and are based on the Basin Plan objective.
- n. **Taste and Odors.** The Basin Plan includes a water quality objective that *“[W]ater shall not contain taste- or odor-producing substances in concentrations that impart undesirable tastes or odors to domestic or municipal water supplies or to fish flesh or other edible products of aquatic origin, or that cause nuisance, or otherwise adversely affect beneficial uses.”* Receiving Water Limitations for taste- or odor-producing substances are included in this Order and are based on the Basin Plan objective.
- o. **Temperature.** The Colusa Basin Drain, to which the receiving water is tributary, has the beneficial uses of both COLD and WARM. The Basin Plan includes the objective that *“[a]t no time or place shall the temperature of COLD or WARM intrastate waters be increased more than 5°F above natural receiving water temperature.”* This Order includes a receiving water limitation based on this objective.
- p. **Toxicity.** The Basin Plan includes a water quality objective that *“[A]ll waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.”* Receiving Water Limitations for toxicity are included in this Order and are based on the Basin Plan objective.
- q. **Turbidity.** The Basin Plan includes a water quality objective that *“[I]ncreases in turbidity attributable to controllable water quality factors shall not exceed the following limits:*
 - *Where natural turbidity is between 0 and 5 Nephelometric Turbidity Units (NTUs), increases shall not exceed 1 NTU.*

- *Where natural turbidity is between 5 and 50 NTUs, increases shall not exceed 20 percent.*
- *Where natural turbidity is between 50 and 100 NTUs, increases shall not exceed 10 NTUs.*
- *Where natural turbidity is greater than 100 NTUs, increases shall not exceed 10 percent."*

B. Groundwater

1. The beneficial uses of the underlying groundwater are municipal and domestic supply, industrial service supply, industrial process supply, and agricultural supply.
2. Basin Plan water quality objectives include narrative objectives for chemical constituents, tastes and odors, and toxicity of groundwater. The toxicity objective requires that groundwater be maintained free of toxic substances in concentrations that produce detrimental physiological responses in humans, plants, animals, or aquatic life. The chemical constituent objective states groundwater shall not contain chemical constituents in concentrations that adversely affect any beneficial use. The tastes and odors objective prohibits taste- or odor-producing substances in concentrations that cause nuisance or adversely affect beneficial uses. The Basin Plan also establishes numerical water quality objectives for chemical constituents and radioactivity in groundwaters designated as municipal supply. These include, at a minimum, compliance with MCLs in Title 22 of the CCR. The Basin Plan requires the application of the most stringent objective necessary to ensure that waters do not contain chemical constituents, toxic substances, radionuclides, taste- or odor-producing substances, or bacteria in concentrations that adversely affect municipal or domestic supply, agricultural supply, industrial supply or some other beneficial use.
3. Groundwater limitations are required to protect the beneficial uses of the underlying groundwater.

VI. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 C.F.R. section 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 C.F.R. section 122.42, are provided in Attachment D. The discharger must comply with all standard provisions and with those additional conditions that are applicable under section 122.42.

Sections 122.41(a)(1) and (b) through (n) of 40 C.F.R. establish conditions that apply to all state-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) of 40 C.F.R. allows the state to omit or modify conditions to impose more stringent requirements. In accordance with 40 C.F.R. section 123.25, this Order omits federal conditions that address enforcement authority specified in 40 C.F.R. sections 122.41(j)(5) and (k)(2) because the enforcement authority under the Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code section 13387(e).

B. Special Provisions

1. Reopener Provisions

- a. **Mercury.** This provision allows the Central Valley Water Board to reopen this Order in the event mercury is found to be causing toxicity based on acute or chronic toxicity test results, or if a TMDL program is adopted. In addition, this Order may be reopened if the Central Valley Water Board determines that a mercury offset program is feasible for dischargers subject to NPDES permits.
- b. **Whole Effluent Toxicity.** This Order requires the Discharger to investigate the causes of, and identify corrective actions to reduce or eliminate effluent toxicity through a Toxicity Reduction Evaluation (TRE). This Order may be reopened to include a numeric chronic toxicity limitation, a new acute toxicity limitation, and/or a limitation for a specific toxicant identified in the TRE. Additionally, if a numeric chronic toxicity water quality objective is adopted by the State Water Board, this Order may be reopened to include a numeric chronic toxicity limitation based on that objective.
- c. **Water Effects Ratio (WER) and Metal Translators.** A default WER of 1.0 has been used in this Order for calculating criteria for applicable inorganic constituents. The Discharger conducted a site-specific WER for copper (*City of Colusa Copper Water-Effect Ratio Study*, dated October 2017) in accordance with applicable USEPA guidance (i.e., EPA-822-R-01-005 and EPA-821-R-02-012), and the results concluded that a site-specific WER of 9.11 for total recoverable copper apply to the discharge. The site-specific WER of 9.11 is used in place of the default WER. Based on this new information, the Central Valley Water Board adopted an amendment to Order R5-2016-0062 on 6 April 2018 and effluent limitation and monthly compliance monitoring for copper were removed.
- d. **Ultraviolet Light (UV) Disinfection Operating Specifications.** UV system operating specifications are required to ensure that the UV system is operated to achieve the required pathogen removal. UV disinfection system specifications and monitoring and reporting requirements are required to ensure that adequate UV dosage is applied to the wastewater to inactivate pathogens (e.g., viruses) in the wastewater. UV dosage is dependent on several factors such as UV transmittance, UV power setting, wastewater turbidity, and wastewater flow through the UV disinfection system. The UV specifications in this Order are based on the National Water Research Institute (NWRI) and American Water Works Association Research Foundation (AWWRF) "*Ultraviolet Disinfection Guidelines for Drinking Water and Water Reuse*" first published in December 2000 and revised as a Third Edition dated August 2012 (NWRI guidelines). If the Discharger conducts a site-specific UV engineering study that identifies site-specific UV operating specifications that will achieve the virus inactivation required by Title 22 for disinfected tertiary recycled water, this Order may be reopened to modify the UV specifications, in accordance with Reopener Provision VI.C.1.f.
- e. **Receiving Water Temperature Limitation.** If a site-specific alternative to the receiving water temperature limitation (section V.A.16) is approved by the Executive Officer, this Order may be reopened to amend the temperature limitation.

2. Special Studies and Additional Monitoring Requirements

- a. **Chronic Whole Effluent Toxicity Requirements.** The Basin Plan contains a narrative toxicity objective that states, "*All waters shall be maintained free of toxic substances in concentrations that produce detrimental physiological responses in human, plant, animal, or aquatic life.*" (Basin Plan at page III-8.00). Based on whole effluent chronic toxicity testing performed by the Discharger from January 2012 through September 2015, the discharge has reasonable potential to cause or contribute to an in-stream excursion above of the Basin Plan's narrative toxicity objective.

This provision requires the Discharger to develop a TRE Work plan in accordance with USEPA guidance. In addition, the provision provides a numeric toxicity monitoring trigger and requirements for accelerated monitoring, as well as, requirements for TRE if toxicity has been demonstrated.

Monitoring Trigger. A numeric toxicity monitoring trigger of > 1 TUc (where TUc = 100/NOEC) is applied in the provision, because this Order does not allow any dilution for the chronic condition. Therefore, a TRE is triggered when the effluent exhibits toxicity at 100% effluent.

Accelerated Monitoring. The provision requires accelerated WET testing when a regular WET test result exceeds the monitoring trigger. The purpose of accelerated monitoring is to determine, in an expedient manner, whether there is toxicity before requiring the implementation of a TRE. Due to possible seasonality of the toxicity, the accelerated monitoring should be performed in a timely manner, preferably taking no more than 2 to 3 months to complete.

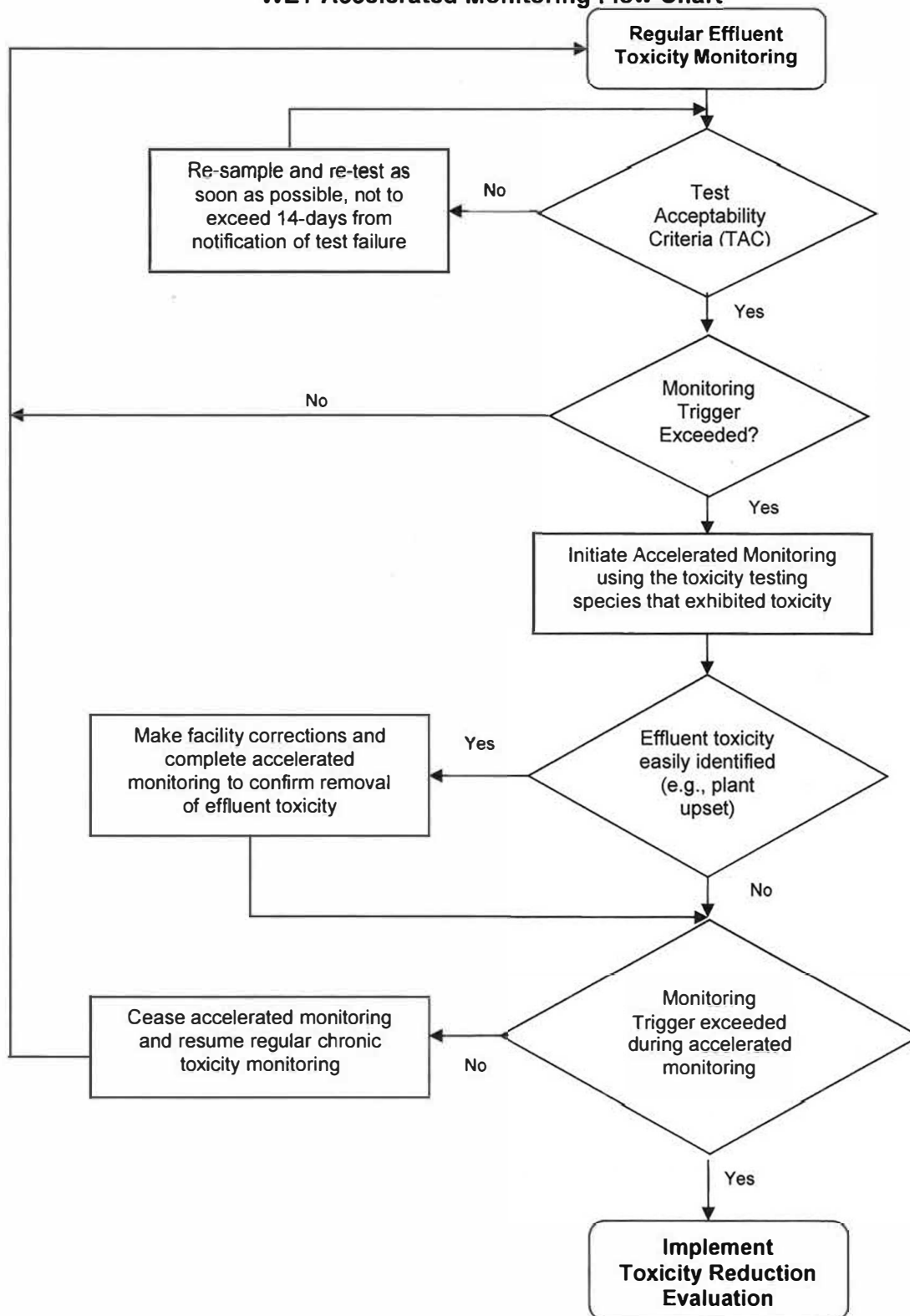
The provision requires accelerated monitoring consisting of four chronic toxicity tests in a six-week period (i.e., one test every two weeks) using the species that exhibited toxicity. Guidance regarding accelerated monitoring and TRE initiation is provided in the *Technical Support Document for Water Quality-based Toxics Control*, EPA/505/2-90-001, March 1991 (TSD). The TSD at page 118 states, "*EPA recommends if toxicity is repeatedly or periodically present at levels above effluent limits more than 20 percent of the time, a TRE should be required.*" Therefore, four accelerated monitoring tests are required in this provision. If no toxicity is demonstrated in the four accelerated tests, then it demonstrates that toxicity is not present at levels above the monitoring trigger more than 20 percent of the time (only 1 of 5 tests are toxic, including the initial test). However, notwithstanding the accelerated monitoring results, if there is adequate evidence of effluent toxicity (i.e. toxicity present exceeding the monitoring trigger more than 20 percent of the time), the Executive Officer may require that the Discharger initiate a TRE.

See the WET Accelerated Monitoring Flow Chart (Figure F-2), below, for further clarification of the accelerated monitoring requirements and for the decision points for determining the need for TRE initiation.

TRE Guidance. The Discharger is required to prepare a TRE Work plan in accordance with USEPA guidance. Numerous guidance documents are available, as identified below:

- i. *Toxicity Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants*, EPA/833-B-99/002, August 1999.
- ii. *Generalized Methodology for Conducting Industrial Toxicity Reduction Evaluations (TREs)*, EPA/600/2-88/070, April 1989.
- iii. *Methods for Aquatic Toxicity Identification Evaluations: Phase I Toxicity Characterization Procedures, Second Edition*, EPA 600/6-91/003, February 1991.
- iv. *Toxicity Identification Evaluation: Characterization of Chronically Toxic Effluents, Phase I*, EPA/600/6-91/005F, May 1992.
- v. *Methods for Aquatic Toxicity Identification Evaluations: Phase II Toxicity Identification Procedures for Samples Exhibiting Acute and Chronic Toxicity, Second Edition*, EPA/600/R-92/080, September 1993.
- vi. *Methods for Aquatic Toxicity Identification Evaluations: Phase III Toxicity Confirmation Procedures for Samples Exhibiting Acute and Chronic Toxicity, Second Edition*, EPA 600/R-92/081, September 1993.
- vii. *Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms, Fifth Edition*, EPA-821-R-02-012, October 2002.
- viii. *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms, Fourth Edition*, EPA-821-R-02-013, October 2002.
- ix. *Technical Support Document for Water Quality-based Toxics Control*, EPA/505/2-90-001, March 1991.

**Figure F-2
WET Accelerated Monitoring Flow Chart**



- a. **Groundwater Monitoring.** To determine compliance with the groundwater limitations contained in section V.B. of this Order, the Discharger is required to evaluate the adequacy of its groundwater monitoring network. This provision requires the Discharger to evaluate its groundwater monitoring network to determine the source of pollution detected in RGW-003 and a sufficient number of designated monitoring wells downgradient of every treatment, storage, and disposal unit that does or may release waste constituents to groundwater. Currently, there is one groundwater monitoring well downgradient of the unlined former lagoons. The Discharger must install new groundwater monitoring wells, if necessary, collect 2 years of monitoring data, and submit a report evaluating the underlying groundwater by **1 April 2020**.
- b. **Best Practical Treatment or Control (BPTC).** If the groundwater monitoring results show that the discharge of waste is threatening to cause or has caused groundwater to contain waste constituents in concentrations statistically greater than background water quality, the Discharger shall submit, **within 6 months following the second year of monitoring** that documents constituent concentrations increased beyond background water quality, a BPTC Evaluation Work Plan. This work plan shall set forth a scope and schedule for a systematic and comprehensive technical evaluation of each component of the Facility's waste management system to determine best practicable treatment or control for each of the waste constituents of concern. The work plan shall include a preliminary evaluation of each component of the waste management system and propose a time schedule for completing the comprehensive technical evaluation. The schedule to complete the evaluation shall be as short as practicable, and shall not exceed one year.

3. Best Management Practices and Pollution Prevention

- a. **Salinity Evaluation and Minimization Plan.** An Evaluation and Minimization Plan for salinity is required to be maintained in this Order to ensure adequate measures are developed and implemented by the Discharger to reduce the discharge of salinity to the unnamed tributary. The Discharger shall provide annual reports discussing the effectiveness of implementing the salinity evaluation and minimization plan, and changes in the salinity in the effluent discharge if it is increasing. The salinity evaluation and minimization plan shall be reviewed and updated if the effluent annual average calendar year electrical conductivity concentration is greater than 1500 $\mu\text{mhos/cm}$. If the plan must be updated, it shall be submitted by 1 April following the calendar year in which the effluent electrical conductivity annual average of 1500 $\mu\text{mhos/cm}$ was exceeded. The annual reports shall be submitted in accordance with the Monitoring and Reporting Program (Attachment E, section X.D).

4. Construction, Operation, and Maintenance Specifications

- a. **Filtration System Operating Specifications.** Turbidity is included as an operational specification as an indicator of the effectiveness of the filtration system for providing adequate disinfection. The tertiary treatment process utilized at this Facility is capable of reliably meeting a turbidity limitation of 2 nephelometric turbidity units (NTU) as a daily average. Failure of the treatment system such that virus removal is impaired would normally result in increased particles in the effluent, which result in higher effluent turbidity and could impact UV dosage. Turbidity has a

major advantage for monitoring filter performance, allowing immediate detection of filter failure and rapid corrective action. The operational specification requires that turbidity prior to disinfection shall not exceed 2 NTU as a daily average; 5 NTU, more than 5 percent of the time within a 24-hour period, and an instantaneous maximum of 10 NTU.

- b. **Ultraviolet (UV) Disinfection System Operating Specifications.** This Order requires that wastewater shall be oxidized, coagulated, filtered, and adequately disinfected pursuant to the DDW reclamation criteria, CCR, Title 22, division 4, chapter 3, (Title 22), or equivalent. To ensure that the UV disinfection system is operated to achieve the required pathogen removal, this Order includes effluent limits for total coliform organisms, filtration system operating specifications, and UV disinfection system operating specifications. Compliance with total coliform effluent limits alone does not ensure that pathogens in the municipal wastewater have been deactivated by the UV disinfection system. Compliance with the effluent limits and the filtration system and UV disinfection operating specifications demonstrates compliance with the equivalency to Title 22 disinfection requirement.

The NWRI guidelines include UV operating specifications for compliance with Title 22. For water recycling in accordance with Title 22, the UV system shall be an approved system included in the *Treatment Technology Report for Recycled Water*, December 2009 (or a later version, as applicable) published by the DPH. The UV system shall also conform to all requirements and operating specifications of the NWRI guidelines. A memorandum dated 1 November 2004 issued by DPH to Regional Water Board executive offices recommended that provisions be included in permits for water recycling treatment plants employing UV disinfection requiring dischargers to establish fixed cleaning frequency of lamp sleeves, as well as, include provisions that specify minimum delivered UV dose that must be maintained (per the NWRI Guidelines).

For non-membrane filtration, the NWRI Guidelines recommend a minimum hourly average UV dose of 100 mJ/cm². Therefore, this Order includes UV operating specifications requiring a minimum hourly average UV dose of 100 mJ/cm² and a minimum hourly average UV transmittance of 55%, per the NWRI Guidelines. If the Discharger conducts a site-specific UV engineering study that demonstrates a lower UV dose meets a Title 22 equivalent virus removal, this Order may be reopened to revise the UV operating specifications accordingly.

5. Special Provisions for Municipal Facilities (POTW's Only)

- a. The State Water Board issued General Waste Discharge Requirements for Sanitary Sewer Systems, Water Quality Order 2006-0003-DWQ (General Order) on 2 May 2006. The Monitoring and Reporting Requirements for the General Order were amended by Water Quality Order WQ 2008-0002-EXEC on 20 February 2008. The General Order requires public agencies that own or operate sanitary sewer systems with greater than one mile of pipes or sewer lines to enroll for coverage under the General Order. The General Order requires agencies to develop sanitary sewer management plans (SSMPs) and report all sanitary sewer overflows (SSOs), among other requirements and prohibitions.

Furthermore, the General Order contains requirements for operation and maintenance of collection systems and for reporting and mitigating sanitary sewer overflows. Inasmuch that the Discharger's collection system is part of the system

that is subject to this Order, certain standard provisions are applicable as specified in Provisions, section VI.C.5. For instance, the 24-hour reporting requirements in this Order are not included in the General Order. The Discharger must comply with both the General Order and this Order. The Discharger and public agencies that are discharging wastewater into the facility were required to obtain enrollment for regulation under the General Order by 1 December, 2006.

- b. **Anaerobically Digestible Material.** Managers of POTW's increasingly are considering the addition of organic material such as food waste, fats, oils and grease (FOG) into their anaerobic digesters for co-digestion. Benefits of accepting these materials include increasing the volume of methane and other biogases available for energy production and ensuring such materials are disposed of at the POTW instead of discharged into the collection system potentially causing sanitary sewer overflows. The State Water Board has been working with the California Department of Resources Recycling and Recovery (CalRecycle), the California Department of Food and Agriculture (CDFA), and the California Association of Sanitation Agencies (CASA) to delineate jurisdictional authority for the receipt of hauled-in anaerobically digestible material (ADM¹) at POTW's for co-digestion.

CalRecycle is proposing an exclusion from Process Facility/Transfer Station permits for direct injection of ADM to POTW anaerobic digesters for co-digestion that are regulated under waste discharge requirements or NPDES permits. The proposed CalRecycle exclusion is restricted to ADM that has been prescreened, slurried, and processed/conveyed in a closed system to be co-digested with regular POTW sludge. The CalRecycle exclusion assumes that a POTW has developed Standard Operating Procedures (SOP's) for the proper handling, processing, tracking, and management of the ADM received.

The Discharger currently does not accept hauled-in ADM for direct injection into its anaerobic digester for co-digestion. However, if the Discharger proposes to receive hauled-in ADM for injection into its anaerobic digester for co-digestion, this provision requires the Discharger to notify the Central Valley Water Board and develop and implement SOP's for this activity prior to initiation of the hauling. The requirements of the SOP's are discussed in Section VI.C.5.e.

6. Other Special Provisions

- a. **Title 22, or Equivalent, Disinfection Requirements.** Consistent with Order R5-2011-0034, this Order requires wastewater to be oxidized, coagulated, filtered, and adequately disinfected pursuant to DDW reclamation criteria, CCR, Title 22, division 4, chapter 3 (Title 22), or equivalent.

7. Compliance Schedules-- Not Applicable

VII. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

CWA section 308 and 40 C.F.R. sections 122.41(h), (j)-(l), 122.44(i), and 122.48 require that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Valley Water Board to establish monitoring, inspection, entry,

¹ CalRecycle has proposed to define "anaerobically digestible material" to include inedible kitchen grease as defined in Food and Agricultural Code section 19216, food material as defined in California Code of Regulations, title 14, section 17852 and vegetative food material.

reporting, and recordkeeping requirements. The Monitoring and Reporting Program (MRP), Attachment E of this Order establishes monitoring, reporting, and recordkeeping requirements that implement federal and state requirements. The following provides the rationale for the monitoring and reporting requirements contained in the MRP for this facility.

A. Influent Monitoring

1. Influent monitoring is required to collect data on the characteristics of the wastewater and to assess compliance with effluent limitations (e.g., BOD₅ and TSS reduction requirements). The monitoring frequencies for flow (continuous), BOD (2/month), electrical conductivity (1/week) and total suspended solids (2/month) have been retained from Order No. R5-2008-0184.

B. Effluent Monitoring

1. Pursuant to the requirements of 40 C.F.R. section 122.44(i)(2) effluent monitoring is required for all constituents with effluent limitations. Effluent monitoring is necessary to assess compliance with effluent limitations, assess the effectiveness of the treatment process, and to assess the impacts of the discharge on the receiving stream and groundwater.
2. Effluent monitoring frequencies and sample types for flow (continuous), ammonia (1/week), BOD₅ (1/week), electrical conductivity (1/week), hardness (1/quarter), total mercury (1/quarter), pH (3/week), standard minerals (1/year), settleable solids (1/month), temperature (1/week), total dissolved solids (1/week), and total suspended solids (1/week) have been retained from Order R5-2008-0184 to determine compliance with effluent limitations for these parameters.
3. Monitoring data collected over the previous permit term for aluminum, MBAS, chlorodibromomethane, dichlorobromomethane, methyl mercury, and manganese did not demonstrate reasonable potential to exceed water quality objectives/criteria. Thus, specific monitoring requirements for these parameters have not been retained from Order R5-2008-0184.
4. Monitoring data collected from 1 January 2012 to 18 July 2017, did not demonstrate reasonable potential to exceed water quality objectives/criteria. Thus, specific monitoring requirements for copper has been removed from this Order.
5. Monitoring data collected over the term of Order R5-2008-0184 for mercury did not demonstrate reasonable potential to exceed water quality objectives. Therefore, this Order reduces the effluent monitoring frequency from monthly to quarterly.
6. Order R5-2008-0184 required once per permit term (1/permit term) monitoring for priority pollutants. This order increases the frequency to quarterly (1/quarter) during the third year and adds the requirement for quarterly monitoring for other constituents of concern at once per quarter (1/quarter) during the third year.
7. Order R5-2008-0184 required biannual (2/year) monitoring for bis (2-ethylhexyl) phthalate, and monthly (1/month) for iron and nitrate plus nitrite. Upon approval of BPA, the limits for bis (2-ethylhexyl) phthalate, iron, and nitrate plus nitrite will no longer be applicable. Thus, specific monitoring requirements for these parameters have not been retained from Order No. R5-2008-0184.
8. Order R5-2008-0184 required daily monitoring for chlorine and monthly monitoring for total trihalomethanes. The Discharger converted from chlorine disinfection to UV disinfection in October 2008. Chlorine is not used at the Facility. However, chlorine

residual has been detected in the effluent due to the source water being treated with trichlor prior to use. Residual chlorine is treated with captor prior to UV disinfection at the Facility. Thus, specific monitoring requirements for these parameters have not been retained from Order No. R5-2008-0184.

9. Order R5-2008-0184 required continuous monitoring for turbidity at Monitoring Location EFF-001. This Order retains the monitoring frequency for turbidity, but moves the point of compliance from Monitoring Location EFF-001 to Monitoring Location FIL-001, located downstream of the filter.
10. Order R5-2008-0184 required trice weekly (3/week) monitoring for total coliform organisms at Monitoring Location EFF-001. This Order retains the monitoring frequency for total coliform organisms at (3/week) but moves the point of compliance from Monitoring Location EFF-001 to Monitoring Location UVS-002, located downstream of the UV disinfection system.
11. In accordance with Section 1.3 of the SIP, periodic monitoring for priority pollutants for which criteria or objectives apply and for which no effluent limitations have been established is required. This Order requires quarterly monitoring during the year 2019 in order to collect data to conduct an RPA for the next permit renewal. See section IX.D of the MRP for more detailed requirements related to performing priority pollutant monitoring.
12. Water Code section 13176, subdivision (a), states: "*The analysis of any material required by [Water Code sections 13000-16104] shall be performed by a laboratory that has accreditation or certification pursuant to Article 3 (commencing with Section 100825) of Chapter 4 of Part 1 of Division 101 of the Health and Safety Code.*" The DDW certifies laboratories through its Environmental Laboratory Accreditation Program (ELAP).

Section 13176 cannot be interpreted in a manner that would violate federal holding time requirements that apply to NPDES permits pursuant to the CWA. (Wat. Code §§ 13370, subd. (c), 13372, 13377.) Section 13176 is inapplicable to NPDES permits to the extent it is inconsistent with CWA requirements. (Wat. Code § 13372, subd. (a).) The holding time requirements are 15 minutes for chlorine residual, dissolved oxygen, and pH, and immediate analysis is required for temperature. (40 C.F.R. § 136.3(e), Table II) Due to the location of the Facility, it is both legally and factually impossible for the Discharger to comply with section 13176 for constituents with short holding times.

C. Whole Effluent Toxicity Testing Requirements

1. **Acute Toxicity.** Quarterly 96-hour bioassay testing is required to demonstrate compliance with the effluent limitation for acute toxicity. Acute toxicity testing may be conducted as part of the chronic test provided the testing is in accordance with the Monitoring and Reporting Requirements (Attachment E), Section V.
2. **Chronic Toxicity.** Semi-annual (2/year) chronic whole effluent toxicity testing is required in order to demonstrate compliance with the Basin Plan's narrative toxicity objective.

D. Receiving Water Monitoring

1. Surface Water

- a. Receiving water monitoring is necessary to assess compliance with receiving water limitations and to assess the impacts of the discharge on the receiving stream.
- b. Order R5-2008-0184 required monitoring for pH (1/week), dissolved oxygen (1/month), electrical conductivity (1/month), total hardness (1/quarterl), temperature

(1/week), turbidity (1/quarter), radionuclides (1/year) and priority pollutants and other pollutants of concern (1/permit term) in the upstream receiving waters of the unnamed tributary (RSW-001U) and Powell Slough (RSW-002U), and downstream of the unnamed tributary (RSW-001D) and Powell Slough (RSW-002D) concurrent with effluent monitoring, in order to collect data to conduct the *Sacramento River and San Joaquin River Basins to Remove the Municipal and Domestic Supply (MUN) beneficial use in Twelve Constructed and/or Modified Water Bodies in the Sacramento river Basin* de-designation and fecal coliform compliance studies. On 21 April 2016 the US Environmental Protection Agency (EPA) approved the de-designation of the unnamed tributary and Powell Slough for the MUN beneficial use effectively concluding the study. The up (RSW-002U) and downstream (RSW-002D) Powell Slough sampling locations were also utilized to conduct a fecal coliform compliance study that commenced in January 2009. In June 2013 the Discharger submitted a report with findings, thereby concluding the study. Thus, monitoring locations RSW-002U and RSW-002D are no longer needed and have not been retained from Order No. R5-2008-0184.

- c. Receiving water monitoring for temperature has been removed from this Order because the unnamed tributary does not have a "natural receiving water temperature". "Natural receiving water temperature" is defined in the Board's Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California (1975) (Thermal Plan). It means "[t]he temperature of the receiving water at locations, depths, and times which represent conditions unaffected by any elevated temperature waste discharge or irrigation return waters." The flow upstream of the facility discharge is often zero during dry periods of the year and highly variable during the rainy season only consisting of urban and agricultural runoff. This finding is consistent with the findings of presidential State Board Order WQO 2002-0015 for Vacaville's Easterly Wastewater Treatment Plant in regard to Old Alamo Creek.
- d. Receiving water frequencies and sample types for dissolved oxygen (1/month), electrical conductivity (1/month), hardness (1/quarter), pH (1/week), turbidity (1/quarter), and priority pollutants and other constituents of concern (1/permit term) have been retained for sampling locations RSW-001U and RSW-001D from Order R5-2011-0034. See section IX.D of the Monitoring and Reporting Program (Attachment E) for more detailed requirements related to performing priority pollutant monitoring.
- e. This Order requires monitoring for nitrate monthly (1/month) at locations RSW-001U and RSW-001D.

2. Groundwater

- a. Water Code section 13267 states, in part, "(a) A Regional Water Board, in establishing...waste discharge requirements... may investigate the quality of any waters of the state within its region" and "(b) (1) In conducting an investigation..., the Regional Water Board may require that any person who... discharges... waste...that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the Regional Water Board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports." In requiring those reports, a Regional Water Board shall provide the person with a written explanation with regard to the need for the reports, and

shall identify the evidence that supports requiring that person to provide the reports. The Monitoring and Reporting Program is issued pursuant to Water Code section 13267. The groundwater monitoring and reporting program required by this Order and the Monitoring and Reporting Program are necessary to assure compliance with these waste discharge requirements. The Discharger is responsible for the discharges of waste at the facility subject to this Order.

- b. Monitoring of the groundwater must be conducted to determine if the discharge has caused an increase in constituent concentrations, when compared to background. The monitoring must, at a minimum, require a complete assessment of groundwater impacts including the vertical and lateral extent of degradation, an assessment of all wastewater-related constituents which may have migrated to groundwater, an analysis of whether additional or different methods of treatment or control of the discharge are necessary to provide best practicable treatment or control to comply with Resolution No. 68-16. Economic analysis is only one of many factors considered in determining best practicable treatment or control. If monitoring indicates that the discharge has incrementally increased constituent concentrations in groundwater above background, this permit may be reopened and modified. Until groundwater monitoring is sufficient, this Order contains Groundwater Limitations that allow groundwater quality to be degraded for certain constituents when compared to background groundwater quality, but not to exceed water quality objectives. If groundwater quality has been degraded by the discharge, the incremental change in pollutant concentration (when compared with background) may not be increased. If groundwater quality has been or may be degraded by the discharge, this Order may be reopened and specific numeric limitations established consistent with Resolution No. 68-16 and the Basin Plan.
- c. This Order requires the Discharger to continue groundwater monitoring and includes a regular schedule of groundwater monitoring in the attached Monitoring and Reporting Program. The groundwater monitoring reports are necessary to evaluate impacts to waters of the State to assure protection of beneficial uses and compliance with Central Valley Water Board plans and policies, including Resolution No. 68-16. Evidence in the record includes effluent monitoring data that indicates the presence of constituents that may degrade groundwater and surface water.

E. Other Monitoring Requirements

1. Biosolids Monitoring

Biosolids monitoring is required to ensure compliance with the biosolids disposal requirements contained in the Special Provision contained in section VI.C.5.b. of this Order. Biosolids disposal requirements are imposed pursuant to 40 C.F.R. part 503 to protect public health and prevent groundwater degradation.

2. Water Supply Monitoring

Order R5-2008-0184 required monitoring for electrical conductivity (1/year), total dissolved solids (1/year) and standard minerals (1/year). The requirement to monitor the water supply for electrical conductivity (1/year), total dissolved solids (1/year) has been retained from Order R5-2008-0184 in this proposed order to evaluate the source of constituents in the wastewater. The proposed order does not continue the requirement to monitor for standard minerals.

3. Filtration System and UV Disinfection System Monitoring

UV system monitoring and reporting are required to ensure that the UV system is operated to adequately inactivate pathogens in the wastewater. UV disinfection system monitoring is imposed to achieve equivalency to requirements established by the DDW and the NWRI, Guidelines.

Order R5-2008-0184 required monitoring for turbidity at Monitoring Locations EFF-001. This Order moves the monitoring and point of compliance to Monitoring Location FIL-001. Order R5-2008-0184 required monitoring for total coliform organisms at Monitoring Location EFF-001. This Order moves the monitoring and point of compliance to Monitoring Location UVS-002.

4. Land Discharge Monitoring

Order R5-2008-0184 required monitoring at Monitoring Locations PND-007, PND-008, PND-009, and PND010 at these unlined stabilization ponds when the facility discharged waste to the ponds for equivalent-to-secondary treatment. These unlined ponds have not received effluent since the facility was upgraded in 2008.

The unlined monthly equalization storage pond is periodically utilized during occasions of insufficient treatment, major upset, or equipment failure. The HDPE liner in the equalization pond has leaked. This Order discontinues monitoring at Monitoring Locations PND-007, PND-008, PND-009, and PND010, and moves the monitoring and point(s) of compliance to Monitoring Locations PND-001 and PND-002. Monitoring of the equalization pond and the monthly storage pond are included in this Order to ensure proper operation of the ponds.

VIII. PUBLIC PARTICIPATION

The Central Valley Water Board has considered the issuance of WDR's that will serve as an NPDES permit for the City of Colusa Wastewater Treatment Plant. As a step in the WDR adoption process, the Central Valley Water Board staff has developed tentative WDR's and has encouraged public participation in the WDR adoption process.

A. Notification of Interested Parties

The Central Valley Water Board notified the Discharger and interested agencies and persons of its intent to prescribe WDR's for the discharge and provided an opportunity to submit written comments and recommendations. Notification was provided through the following Posting of the Notice of Public Hearing at the City of Colusa Post Office and City Hall if allowed.

The public had access to the agenda and any changes in dates and locations through the Central Valley Water Board's website at:
http://www.waterboards.ca.gov/centralvalley/board_info/meetings/

B. Written Comments

Interested persons were invited to submit written comments concerning tentative WDR's as provided through the notification process. Comments were due either in person or by mail to the Executive Office at the Central Valley Water Board at the address on the cover page of this Order.

To be fully responded to by staff and considered by the Central Valley Water Board, the written comments were due at the Central Valley Water Board office by 5:00 p.m. on **15 August 2016**.

C. Public Hearing

The Central Valley Water Board held a public hearing on the tentative WDR's during its regular Board meeting on the following date and time and at the following location:

Date: **18 August 2016**
Time: 8:30 a.m.
Location: Regional Water Quality Control Board, Central Valley Region
11020 Sun Center Dr., Suite #200
Rancho Cordova, CA 95670

Interested persons were invited to attend. At the public hearing, the Central Valley Water Board heard testimony pertinent to the discharge, WDR's, and permit. For accuracy of the record, important testimony was requested in writing.

D. Reconsideration of Waste Discharge Requirements

Any aggrieved person may petition the State Water Board to review the decision of the Central Valley Water Board regarding the final WDR's. The petition must be received by the State Water Board at the following address within 30 calendar days of the Central Valley Water Board's action:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

For instructions on how to file a petition for review, see
http://www.waterboards.ca.gov/public_notices/petitions/water_quality/wgpetition_instr.shtml

E. Information and Copying

The Report of Waste Discharge, other supporting documents, and comments received are on file and may be inspected at the address above at any time between 8:30 a.m. and 4:45 p.m., Monday through Friday. Copying of documents may be arranged through the Central Valley Water Board by calling (916) 464-3291.

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDR's and NPDES permit should contact the Central Valley Water Board, reference this facility, and provide a name, address, and phone number.

G. Additional Information

Requests for additional information or questions regarding this order should be directed to Brian Taylor at 916-464-4662.

ATTACHMENT G – SUMMARY OF REASONABLE POTENTIAL ANALYSIS

Constituent	Units	MEC	B	C	CMC	CCC	Water & Org	Org. Only	Basin Plan	MCL	Reasonable Potential
Aluminum	µg/L	40	630	750	750 ²	--	--	--	--	--	No
Copper, Total Recoverable	µg/L	8	58	8.4	85	59	1,300	--	--	1,000	No
Dibromochloromethane	µg/L	10	--	0.41	--	--	0.41	34	--	80	No
Dichlorobromomethane	µg/L	2.4	--	1.1	--	--	0.56	46	--	80	No
Electrical Conductivity @ 25°C	µmhos/cm	1,160	2,053	--	--	--	--	--	--	--	No
Iron, Total Recoverable	µg/L	135	1,300	--	--	--	--	--	--	--	No
Manganese, Total Recoverable	µg/L	74	750	--	--	--	--	100	--	--	No
MBAS	mg/L	0.6	--	--	--	--	--	--	--	--	No
Mercury, Total Recoverable	µg/L	0.008	0.0027	2	-- ²	-- ³	--	--	--	2	No
Nitrate plus nitrite	mg/L	41.5	--	--	--	--	--	--	--	--	No
Total Trihalomethanes	µg/L	2.1	--	--	--	--	--	--	--	--	No
Bis (2-Ethylhexyl) Phthalate	µg/L	3.6	3.1	5.9	--	--	--	5.9	--	--	No
Chlorine (total residual)	mg/L	0.01	--	--	--	--	--	--	--	--	No

General Note: All inorganic concentrations are given as a total recoverable.

MEC = Maximum Effluent Concentration

B = Maximum Receiving Water Concentration or lowest detection level, if non-detect

C = Criterion used for Reasonable Potential Analysis

CMC = Criterion Maximum Concentration (CTR or NTR)

CCC = Criterion Continuous Concentration (CTR or NTR)

Water & Org = Human Health Criterion for Consumption of Water & Organisms (CTR or NTR)

Org. Only = Human Health Criterion for Consumption of Organisms Only (CTR or NTR)

Basin Plan = Numeric Site-specific Basin Plan Water Quality Objective

MCL = Drinking Water Standards Maximum Contaminant Level

NA = Not Available

ND = Non-detect

Footnotes:

- (1) See discussion in Fact Sheet section IV.C.3.
- (2) U.S. EPA National Recommended Ambient Water Quality
- (3) U.S. EPA National Recommended Ambient Water Quality Criteria, Freshwater Aquatic Life Protection, 4-day average.

ATTACHMENT H – CALCULATION OF WQBEL'S

Aquatic Life WQBEL's Calculations															
Parameter	Units	Criteria		Dilution Factors		Aquatic Life Calculations							Final Effluent Limitations		
		CMC	CCC	CMC	CCC	ECA Multiplier ^{acute}	LTA ^{acute}	ECA Multiplier ^{chronic}	LTA ^{chronic}	AMEL Multiplier ⁹⁵	AWEL Multiplier	MDEL Multiplier ⁹⁹	AMEL ¹	AWEL ²	MDEL ³
Ammonia Nitrogen, Total (as N) ⁴	mg/L	2.14	0.56	--	--	0.39	0.84	0.84	0.46	1.2	2.2	--	0.6	1.0	--
Ammonia Nitrogen, Total (as N) ⁵	mg/L	2.14	1.09	--	--	0.40	0.86	0.40	0.83	1.4	2.1	--	1.2	1.8	--

¹ Average Monthly Effluent Limitations are calculated according to Section 1.4 of the SIP using a 95th percentile occurrence probability.

² Average Weekly Effluent Limitations are calculated according to Section 1.4 of the SIP using a 98th percentile occurrence probability.

³ Maximum Daily Effluent Limitations are calculated according to Section 1.4 of the SIP using a 99th percentile occurrence probability.

⁴ 1 March to 15 November (summer) limitations

⁵ 16 November to 30 April (winter) limitations